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OF THE

LEGISLATIVE ASSEMBLY

FOR THE

AUSTRALIAN CAPITAL TERRITORY

DAILY HANSARD

Edited proof transcript

17 September 2026

This is an **EDITED PROOF TRANSCRIPT** of proceedings that is subject to further checking. Members' suggested corrections for the official *Weekly Hansard* are requested to be lodged in writing with the Hansard office no later than **Wednesday, 7 October 2026.**

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MR SPEAKER (Mr Hanson) (10.00): Members:

> Dhawura nguna, dhawura Ngunnawal.
> Yanggu ngalawiri dhunimanyin Ngunnawalwari dhawurawari.
> Nginggada Dindi wanggiralidjinyin.

The words I have just spoken are in the language of the traditional custodians and translate to:

> This is Ngunnawal country.
> Today we are all meeting on Ngunnawal country.
> We always pay respect to Elders, female and male.

Members, I ask you to stand in silence and pray or reflect on our responsibilities to the people of the Australian Capital territory.

Coroner's report—inquest into the death of Paul Edward Storey—report and government response
Ministerial statement

MS CHEYNE (Ginninderra—Manager of government Business, Attorney-General, Minister for City and government Services, and Minister for Transport) (10.01): Let me begin by first acknowledging Mr Paul Edward Storey's family, including his daughter, Meredith, and her partner, Adrian, who are present in the gallery today. I sincerely thank them for their presence and recognise the courage it takes to be here for this statement.

Mr Storey's family has lived with the consequences of this tragedy every day since his death. The passage of time since Paul's death, the coronial proceedings and the government's consideration of its response have inevitably extended a period of grief that no family ever anticipates they will have to endure. While these processes are important and necessary, they can also require families to repeatedly revisit their loss. I recognise the very real burden of that and I acknowledge the toll it has taken on Mr Storey's family, friends and loved ones over what is now many years, and that today must be another difficult moment in a long and painful journey.

On behalf of the ACT government, I extend our deepest condolences to all those who knew Mr Storey. We recognise that no words can lessen the profound grief that comes with the loss of a loved one in such sudden and devastating circumstances. The impacts on those with him when the incident occurred, our first responders and the cycling community more broadly are also recognised with sincere regret. Our thoughts remain with Mr Storey's family, friends and community and all those whose lives have been forever changed by his passing.

I will not pretend that the actions I outline today or that this statement undo their loss or lessen the grief that his absence continues to bring. They cannot restore the years that have passed since Mr Storey's death, nor remove the pain that has accompanied the search for answers. However, what I hope this response and these words can do is appropriately acknowledge what occurred, accept the findings of the coronial process,

recognise, formally and permanently in this place, the failures that contributed to this tragedy, and re-affirm our commitment to acting on the lessons identified. On behalf of the ACT government, I sincerely apologise.

Coroner Archer found that the hazard reported before the incident should have been appropriately identified, assessed and actioned. System and process failures occurred, and the reported hazard was not addressed before Mr Storey's death. Plain and simple, this should not have happened. Those failures had irrevocable and permanent consequences and impacts that continue to be felt. We are sorry, and I am sorry.

Canberra's parks, shared paths and open spaces are among our city's most treasured assets. They connect us to nature, support recreation and active travel, and contribute significantly to our quality of life. Our urban forest is a source of great pride for Canberrans and it provides substantial environmental, social and cultural benefits to our community. However, as this tragic incident reminds us, natural environments can also present risks. The ACT government has a responsibility to manage those risks in a way that is reasonable, in a way that is proportionate and in a way that is focused on protecting public safety while preserving the benefits that our urban forest provides.

In responding to the coroner's findings, the government has carefully considered the observations regarding the territory's previous response, the concerns raised about risk assessment and response timeframes, and the recommendation relating to public guidance on risk management practices. The government accepts the coroner's finding that the hazard reported prior to the incident should have been appropriately identified, assessed and actioned. We cannot change the events that led to Mr Storey's death, but we can—we must—learn from them.

Since January 2022, significant improvements have been implemented to strengthen the territory's ability to identify, assess and respond to tree-related hazards. These changes include the enhanced integration of reporting systems, improved triaging arrangements, the establishment of a dedicated City Operations Triage Team, and the adoption of more consistent risk assessment practices across City Services.

Importantly, the government has strengthened its after-hours response capability. Tree-related incidents are now directly routed to on-call Urban Treescapes arborists, supported by a year-round on-call service. Qualified arborists are able and available to respond promptly, undertake risk assessments and implement immediate safety measures when high-risk hazards are identified. These arrangements now ensure that the government can respond rapidly at any time of day or night to protect public safety.

The government also wholly accepts the coroner's recommendation to provide clearer public information about how infrastructure-related risks are identified, assessed and managed. Greater transparency invariably assists the community to understand how concerns are reported, how risks are assessed and prioritised, and how decisions are made. To support this, the government has reviewed and improved public communications, and we have also published practical and accessible guidance online explaining these processes in clear and straightforward language.

The actions outlined in this response reflect our commitment to continuous improvement. They are intended to strengthen our systems, improve accountability and

better protect the Canberra community. Today, however, our foremost thoughts remain with Mr Storey's family and loved ones.

To Mr Storey's family, I acknowledge your loss, your patience through this lengthy process, and the courage that you have shown in pursuing answers. On behalf of the ACT government, I again offer our sincere apology for the failures identified by the coroner. This should not have happened. In acknowledging that, I affirm our commitment—I personally do so—to honouring the lessons from this tragedy through meaningful action to strengthen public safety for the Canberra community.

I present the following papers:

> Coroners Act, pursuant to section 57—Report of Coroner—Inquest into the death of Paul Edward Storey—
>
> Report, dated 20 March 2026.
>
> Government response, undated.
>
> Government response—Ministerial statement, 17 September 2026.

I move:

> That the Assembly take note of the papers.

Question resolved in the affirmative.

National Disability Insurance Scheme—Assembly resolution 10 June 2026—government response
Thriving Kids foundational support program—update
Ministerial statement

MS ORR (Yerrabi—Minister for Aboriginal and Torres Strait Islander Affairs, Minister for Climate Change, Environment, Energy and Water, Minister for Disability, Autism and Neurodiversity, Minister for Housing and Homelessness, and Minister for Equality) (10.11): I rise today in response to the resolution passed by this Assembly on 10 June 2026 concerning the National Disability Insurance Scheme: NDIS—Proposed changes—Reform. The resolution calls on the ACT government to advocate for a strong, fair and sustainable NDIS; support meaningful consultation for disability reform; publicly release an implementation roadmap for Foundational Supports and Thriving Kids; and provide six-monthly updates to the Assembly on implementation progress.

Members may also recall the Assembly resolution of 24 September 2025, NDIS Foundational Supports—Implementation and reporting, which established a six-monthly reporting framework for Foundational Supports and Thriving Kids. Updates were subsequently provided in October 2025 and May 2026. Today's statement continues that reporting commitment and the reporting requirements arising from the Assembly resolution: NDIS—Proposed changes—Reform. With the Assembly's leave, I intend to streamline reporting by combining the requirements of both resolutions for regular six-monthly updates.

Firstly, I thank members for their continued engagement with disability policy and reform, and for their advocacy on behalf of people with disability, their families and carers. I also want to acknowledge that, while there are necessarily some limits as to what I can share today, because ongoing negotiations with the Australian government and government decision-making processes are still underway, the government remains committed to transparency and will continue to update the Assembly as decisions are made and information is ready to be released.

I will now address the 10 June resolution. This government is committed to advocating for a strong, fair and sustainable NDIS. We are committed to working with the commonwealth to ensure no changes are made without viable alternative supports or continuity of supports being available. We are committed to ensuring Foundational Supports are in place alongside NDIS services, and we have consistently maintained that changes to the scheme should not proceed unless appropriate alternative supports are in place, so that people with disability do not experience gaps in the services they rely on.

The ACT government continues to work closely with other states, territories and the commonwealth through national governance arrangements to help shape disability policy, services and supports. We remain actively engaged in discussions on NDIS reform, legislation and broader disability policy through the disability ministers' meeting and senior officials' forums. These forums enable the ACT to contribute to national reforms, including legislative changes, and to advocate for outcomes that support people with disability in our community.

We are also committed to ensuring reform is informed by genuine consultation. Building on earlier engagement with people with disability, families, carers and service providers, stakeholder feedback is informing the design and staged implementation of Thriving Kids and will continue to inform the development of other Foundational Supports. Future consultation will focus on further service design detail, community-delivered supports, and workforce planning. As the Thriving Kids ecosystem develops, we will continue to seek feedback from families, carers and community stakeholders to ensure supports remain responsive to the needs of children and their families.

We are also engaging with Aboriginal and Torres Strait Islander communities and service providers to inform culturally appropriate approaches and equitable funding arrangements. In addition, we are consulting with multicultural communities and the autism community to identify and develop supports that best meet their needs.

In response to the Assembly's resolution, the ACT government has provided a publicly accessible roadmap which is available on the ACT government's Thriving Kids website. The roadmap highlights timelines for design and implementation over the next few years, an overview of the activities to be undertaken, and the priority areas for investment and funding. At this stage, it is a high-level overview because, as I mentioned earlier, there is a range of relevant matters currently under government consideration. Further detail will be provided as decisions are made.

Members are aware that Thriving Kids will begin on 1 October 2026. We will do this through a phased approach. Phase 1 will focus on responding to current demand, strengthening system foundations and preparing the workforce, while continuing

consultation with families, carers, service providers and the broader community. Phase 2, from January 2027 to January 2028, will see the gradual rollout of new and commissioned services, expanded targeted supports, and improved navigation and outreach services to help families access the support they need. From January 2028, phase 3 will focus on building a fully integrated and mature service system, strengthening partnerships, driving continuous improvement, and aligning with national disability reforms.

As outlined in the May update, the national funding agreement provides certainty for governments to invest in early intervention, strengthen community based supports, and improve access to services for children and families. Importantly, the ACT government is ready to meet its commitments. Funding for Foundational Supports has already been provisioned and is ready as implementation arrangements and service design are finalised. This positions us well to deliver the phased rollout of Thriving Kids. The expanded services will help ease waitlists, expand targeted and community based supports, improve service navigation, and build a more coordinated and responsive service system.

Alongside this investment, we are continuing workforce planning to ensure services have the skilled staff needed to meet growing demand and support successful implementation. Workforce readiness has been a key theme throughout our consultations, and I want to assure stakeholders that we are actively progressing workforce planning and development to support a skilled and capable workforce for the delivery of Thriving Kids' services.

Ultimately, this investment will help ensure that children and their families can access the right support at the right time and in the right place, improving outcomes and reducing the need for more intensive interventions in the future. Improved service navigation will make it easier for families to understand what supports are available, find the right services, and connect with those services without being referred from one organisation to another. Thriving Kids, together with broader disability reforms, has the potential to make a real difference in the lives of children with developmental delay and disability by strengthening access to supports and services.

Ensuring these reforms promote and protect human rights is a key priority for the ACT government. This commitment reflects Australia's obligations under the United Nations Convention on the Rights of Persons with Disabilities and our focus on building a disability system that is inclusive, accessible and centred on people's rights. As we continue these reforms, I encourage all members, as is explicitly articulated in the 10 June resolution, to renew their commitment to the rights, dignity and inclusion of people with disability.

Guided by the Human Rights Act 2004, the United Nations Convention on the Rights of Persons with Disabilities, and the principles of the Disability Inclusion Act 2024, we all have a role to play in creating a more inclusive Canberra community. The Thriving Kids reforms can build a future where every child and family feels supported, where barriers are removed, opportunities are expanded, and people with disability can participate fully and confidently in all aspects of community life.

I want to reassure the Canberra community that children, families and carers remain at

the centre of our Thriving Kids reforms and that this government will continue to advocate for changes to the NDIS that put participants at the forefront of change. As we work towards implementation on 1 October 2026 and beyond, we will continue to work closely with families, carers, service providers and the wider community to ensure these reforms come together to build a Thriving Kids ecosystem which will improve outcomes for Canberra's children.

We remain committed to transparency and ongoing engagement with stakeholders and the commonwealth, and we will continue to provide updates on our progress. Our vision is simple: an integrated, accessible and inclusive system of supports for children aged 8 and under, and their families, carers and kin, that provides the right support at the right time. By strengthening and expanding existing supports and planning for new services, we are building a connected ecosystem that supports the best possible outcomes for children and families, now and into the future.

I present the following papers:

> NDIS Foundation Supports—Implementation and reporting—Assembly resolution of 24 September 2025 and NDIS—Proposed changes—Reform—Assembly resolution of 10 June 2026—Government response—Ministerial statement, 17 September 2026.

I move:

> That the Assembly take note of the papers.

MISS NUTTALL (Brindabella) (10.19): I rise to speak to the minister's statement concerning Foundational Supports and changes to the NDIS, and acknowledge Ms Barry's work in bringing forward one of the motions responding to this and Mr Cain, for his work since in the portfolio.

Since June, when I moved the motion calling for alternative supports to be fully in place before people lost supports through changes to the NDIS, the disability community has endured one of the most gruelling periods yet. Thousands of people wrote submissions to the Senate inquiry in an incredibly tight timeframe. People with a disability, their carers, families, advocates and service providers threw everything they had into trying to improve the legislation that was threatening their access to independent life. For many, the outcome of the amended bill's passage was heartbreaking—although, to the extent we could, somewhat softened by improvements secured by my federal Greens colleagues during negotiations in the Senate. I want to begin by acknowledging the extraordinary work of disability advocates and individuals throughout that process who continued to speak up, even when federal Labor refused to listen. They shared personal stories, organised their communities, challenged decision-makers and fought for a disability support system founded on dignity, inclusion and human rights.

The motion that prompted this update from the minister was fundamentally about one thing: ensuring Canberrans have a safety net. This did not just apply to the cohort for Thriving Kids, children with low to moderate developmental delays and autism from ages zero to eight, but for all children and adults who will lose their supports. It was about making sure that, when people lose supports through the commonwealth reforms, there will be alternative supports in place before they fell through the cracks. It breaks

my heart to say, but we know this is coming soon.

I heard the minister in her statement say that the government's position is that changes should not proceed unless appropriate alternative supports are available. I welcome that statement and I welcome the joint submission that the ACT disability minister made with other state and territory ministers to the federal inquiry, which voiced that states and territories are not prepared for the cost-shifting changes for disability service delivery. However, these statements, sadly, do not change the reality we have in front of us. In two weeks from today, funding for social, civic and community participation supports and capacity-building daily activities will be cut by up to 50 per cent.

The alternative system of supports is not fully designed, and the federal funds meant to enable their design and operation—the elusive Inclusive Communities Fund—will not even be up and running by 1 October, which means the ACT will not have seen a cent of it by the time community participation supports are cut. We have heard clear warnings from disability organisations that the funding allocation for the fund will be wholly sufficient anyhow. In the words of Women with Disabilities ACT:

> The proposed $200 million over three years cannot substitute for the individualised supports people with disability need to participate in community life.

That is why our system of Foundational Supports is so crucial to get right and get happening. We have not been able to stop the rod from being pulled out from under people by the commonwealth, but we can still decide whether someone is there to catch them in the ACT.

I want to acknowledge the work that has been undertaken by National Disability Services ACT officials and all of those who participated in the round tables focused on the development of Thriving Kids. I also thank ACT Down Syndrome and Intellectual Disability and ACT Women with Disabilities for having me at their community consultation workshop last month, which prompted such an open discussion about what we need to build for Foundational Supports to respond to people's need in the ACT. It was an honour to be trusted to listen, and I learnt so much about what need looks like and feels like for people right now in the community.

I appreciate the minister's admission that this is a high-level roadmap for Thriving Kids—meaning detail is scant and more will be updated to it as detail emerges. But I fear this is yet again more proof that Labor is building the plane while it is taking off, which is crazy when you think about how many people really, really need this plane not to crash. The minister spoke about phase 1 of Thriving Kids responding to current demand, strengthening system foundations and preparing the workforce. It worries me greatly that the Thriving Kids roadmap that the minister has pointed to today, under the priority area of ACT Workforce Strategy has action points including:

> Develop an ACT specific workforce strategy that compliments commonwealth initiatives, and plan workforce needs across government, non-government and broader disability services.

A system of supports and services should not be designed without the most central consideration of workforce being done at the very start. If not, genuinely how can we expect it to work? Phase 2, which includes the rollout of expanded services and target

supports, does not come into place until January next year. Many people are not starting to lose supports in January; they are losing supports in two weeks, if not already. The gap between when supports are withdrawn and when replacement systems become fully operational is exactly what disability advocates have been warning about for months.

The minister tells us funding has already been provisioned and that the ACT government is ready to meet its commitments. If that is the case, I think that Canberrans deserve significantly greater transparency about what that funding will deliver and when. This Assembly has still not received a clear accounting of the approximately $90 million allocated in previous budgets for Foundational Supports planning, implementation and delivery. In light of the minister's expressed commitment to transparency with these provision funds, I invite her to publicly commit to publicly disclosing when and how money from the $90 million will be used for Foundational Supports.

Disability organisations have also not really been provided with a transparent explanation of how the government determined that around $1.45 million would be sufficient to sustain key disability organisations through the transition period of NDIS changes. If the government have undertaken a needs assessment, modelling or demand analysis to support this amount which will sustain key disability organisations, then I urge them to make that information public—because what disability organisations are seeing on the ground tells a different story. Since June, we have seen important services close or reduce operations, we have lost community options, we have lost a program at Carers ACT and we continue to see organisations under more and more strain to deliver their services to the community.

Before I end, I thank the minister for her invitation to renew my commitment to the UN Convention on Human Rights of People with a Disability. I do that wholeheartedly, and I intend to demonstrate that, not just through words but also through actions and continued advocacy in this place. I thank the minister for the update provided today, but I implore the minister for more transparency. We must do everything we can, as quickly as we can, to ensure that the system of Foundational Supports, which people are to rely on in lieu of the NDIS, is a system which upholds people's dignity, independence and, ultimately, the right to a full life and just be.

MR CAIN (Ginninderra) (10.27): I thank the minister for her statement this morning and also Miss Nuttall for her advocacy and support for our community who have to manage disability within their family or their workplace. There is much in the ambition behind Thriving Kids that we, the Canberra Liberals, can support. Every child deserves the right support at the right time, and families deserve a system that is easier to navigate, not harder. I particularly welcome the minister's commitment that changes to the NDIS should not proceed unless viable alternative supports and continuity of support are available—and I note that Miss Nuttall emphasised that point as well. That is an important commitment to Canberra families. But I do agree with Miss Nuttall that we are not yet quite sure what they are going to receive. There is indeed scant detail on what is actually going to happen.

I notice in the roadmap that the minister has Thriving Kids in the next six months. I will say, Minister, that they are rather broad and general statements, including consulting, assessing and reviewing. I will certainly be seeking a briefing during this first phase of

the rollout of the Thriving Kids program in the ACT. I will be very keen to know what has actually happened, the detail of programs and where the $12-plus million—the $7 million from the ACT—is being spent. So I will be seeking the detail of the phased rollout within this first initial period.

Again, I would say, Minister, that the community really does not know what is happening on 1 October, and I would encourage you to be more transparent forthcoming in that. As shadow minister for disability, I have had many conversations with families and service providers about these changes, and I will continue to have such conversations. I am available to our community. Ultimately, the best measure of how these reforms are working will not come from what is said here or in broad roadmap statements or motherhood statements; it will come from what is actually delivered at the frontline to people who carry a disability. I think parents trying to find support for their child from service providers trying to meet growing demand and from people with disability navigating a changing system would love to know with certainty what is actually going to be provided.

As we approach 1 October the focus is clearly on delivering a long-promised implementation date for Thriving Kids. We should not be at the stage of saying, "We are getting ready for this"; we should be able to see what is actually being delivered. Families need certainty about what support will be available, where they can access it and how they will navigate the new system. There should be no gaps, ideally, and no child left waiting between systems.

The Canberra Liberals do want Thriving Kids to succeed, and we will continue listening to families, service providers and the disability community to make sure that the promise of these reforms is mapped on what actually happens on the ground.

MS CARRICK (Murrumbidgee) (10.31): The government's Thriving Kids road map is a welcome step. It provides greater clarity about the proposed rollout of Thriving Kids, confirms significant funding commitments and sets out a vision for a more integrated system of supports for children and families.

Importantly, the road map recognises that Thriving Kids cannot operate in isolation. It is intended to work alongside health services, schools, early childhood education providers and community organisations, supported by navigation services and coordinated referral pathways. Those are all positive objectives. However, the road map is better at describing where the government wants to get to than explaining how it will get there.

Before these reforms proceed, we need a much clearer understanding of the services that the ACT will require. We know that some children who currently receive support through the NDIS may, in future, rely on Thriving Kids and other Foundational Supports. But we still do not know how many children that will affect, what supports they are currently receiving, or whether sufficient services will be available when those changes occur.

We need to see the evidence base for the reform. We need clear mapping of the services we currently have, a clear assessment of the services we will need, identification of the gaps that exist, and a transparent implementation plan for filling those gaps. Without

that information, it is difficult for families, providers or this Assembly to have confidence that the system will be ready.

The issue of integration is equally important. Families do not experience government programs separately. They experience them as a single system. That is why we need to understand how Thriving Kids will work alongside Strong Foundations, the maternal and child health services, schools, and community-based supports. We need clear referral pathways, shared planning and genuine coordination, so that families are not left navigating multiple disconnected services.

Providers are also looking for certainty. Some services have already closed. Others are concerned about workforce shortages, future demand and business viability during the transition. Consultation is important, but consultation alone will not keep services operating. Providers need clarity about funding and future service requirements. The greatest risk is fragmentation. Unless services are properly planned, funded and integrated, we risk creating a system that looks connected on paper, but feels disconnected to the people who rely on it.

The road map is an important first step, but it is not yet the complete implementation plan that the community deserves. Before major NDIS changes occur, people with disability, their families and service providers deserve to see the service mapping, gap analysis, workforce planning and delivery road map that will ensure no-one is left behind.

MS ORR (Yerrabi—Minister for Aboriginal and Torres Strait Islander Affairs, Minister for Climate Change, Environment, Energy and Water, Minister for Disability, Autism and Neurodiversity, Minister for Housing and Homelessness, and Minister for Equality) (10.34), in reply: I would like to make a few comments, picking up some of the matters that have been raised during members' speeches today.

There have been a few comments made around the full $90 million provision and how that will be spent. I would note that the $90 million provision, which is the government's 50 per cent contribution to the overall $180 million for the ACT, was put in place following the 2023 national cabinet decision to undertake Foundational Supports, but it is subject to future decisions of national cabinet as to what those Foundational Supports will focus on.

Decisions have been made around Thriving Kids. National cabinet made those decisions in January. We have progressed with those, and we have been clear as to the portion of the $90 million that will be allocated to Thriving Kids. We will continue to work through how that funding, as we progressively roll out Thriving Kids, will be allocated to individual services.

As I noted when the motion was moved, regarding putting together a road map, we cannot articulate what will be done with the remainder of the funding until such time as decisions have been made, and that is within the remit of national cabinet, not solely the ACT government, when it comes to determining the timing.

We will continue to be transparent in the context of the particulars of what we are operating. We are not withholding information. It might not be the information that

members want, but we will be very clear as to what we can provide, when we can provide it, and why.

The other point I would like to make is that Thriving Kids is a program for a particular cohort of people, from zero to eight, with autism or developmental delay. It is not a program for everybody within the NDIS. There are a range of reforms going on that will sit within Foundational Supports or might not sit within Foundational Supports, depending on where the reforms end up.

We need to be clear, as we talk through these, so as not to create confusion, about what we expect Thriving Kids to do. Thriving Kids is not there to respond to the changes to the community participation funding. There are other discussions and other programs around that. I know that has been raised. I know there are concerns around those. We will continue to work through them. Certainly, having clarity in the discussion will help to make sure that we are focusing our efforts and our expectations on directions that are realistic and tangible.

The other thing is that we are progressively rolling out the Thriving Kids program. There has been a lot of call for there to be no loss of support for those already in the NDIS until the new services are in place. That is certainly our position as a government, and it is what we will continue to work towards.

The commonwealth government, as I have said in this place many times, has already stated that there will be no changes to access arrangements for those who are in the NDIS until 1 January 2028. Where we will see demand before then is with the unmet need, which was the whole point of undertaking this process of Foundational Supports, particularly for the Thriving Kids-focused cohort.

As we work through that, we will see supports increase for those who do not have them. We will continue to work with the commonwealth government, through the Disability Reform Ministerial Council, on the detail of the pathways and linkages into the NDIS, so that we can better respond to who might be on the NDIS and coming off the NDIS, and making sure that we have a seamless transition between Foundational Supports and the NDIS. Those are all part of the progressive rollout. It is not a matter of not being prepared or withholding information.

With the workforce strategy, we will continue to work through that. That is something that is being led by the commonwealth, in their contribution—the 50 per cent contribution to this program. Again, while we will look at how we can localise that in the ACT, that work is not solely at our discretion; we have to continue in unison with the federal government, having regard to the timing.

I would also note, in putting up this road map, that this was a decision of the Assembly. We have complied with that. I noted at the time that I was not quite sure how we would do this in the timeframes that were requested by the Assembly, given the number of outstanding decisions and the processes that we were going through around cabinet approvals for the 1 October rollout. Nonetheless, we had the date that we had, and I have put up what we can.

In doing that, I could have put this up and said, "That's done. We've met the

compliance." I did not want to do that, which is why I made the decision that we would update this on a six-monthly basis. There is that foundation there with the road map. We will continue to put in the detail. It will provide a clear source of information for the community, and I think it will be quite constructive, as we work through what is a sustained change and reform within our community. It is there for everyone. It is in one place. It is easy to find, and we will continue to put in the information.

I would ask the Assembly, in looking at how we work through this—it is a big reform; it is one that will happen over time—to have a little bit of understanding around the dynamic nature of this, and what can be provided by finite deadlines might actually help in meeting expectations.

Question resolved in the affirmative.

Administration and Procedure—Standing Committee
Report 5

MR HANSON (Murrumbidgee) (10.40): I present the following report:

> Administration and Procedure—Standing Committee—Report 5—*Report on the conduct of Ms Carrick MLA*, dated 16 September 2026, together with extracts of the relevant minutes of proceedings.

Motion (by **Miss Nuttall**, by leave) agreed to:

> That the report be adopted.

Statement by chair

MR HANSON (Murrumbidgee) (10.41): Pursuant to standing order 246A, I wish to make a statement on behalf of the Standing Committee on Administration and Procedure.

At its meeting on 23 June 2026 the committee considered an application from Ms Leigh, the head of service, for a citizen's right of reply made pursuant to continuing resolution 4.

Ms Leigh's application referred to comments made by Mr Emerson in the chamber on 27 and 28 May 2026 relating to a public interest disclosure.

Following discussion the committee formed the view that Ms Leigh had not demonstrated adverse effects or damage from the comments made in the Assembly, that the comments were not personal and related to the processes of government.

Under paragraph (2) of continuing resolution 4 the committee agreed that the subject of the submission was not sufficiently serious and that the Speaker would inform the Assembly.

Victims of Crime Legislation Amendment Bill 2026

Ms Tough, pursuant to notice, presented the bill, its explanatory statement and a Human Rights Act compatibility statement.

Title read by Clerk.

MS TOUGH (Brindabella—Minister for Human Rights, Minister for Community Services, Minister for Corrections, Minister for Women, Seniors and Veterans, and Minister for the Prevention of Domestic, Family and Sexual Violence) (10.42): I move:

> That this bill be agreed to in principle.

It is very exciting to move my first bill here today. I am pleased to introduce the Victims of Crime Legislation Amendment Bill 2026 into the Assembly today. The bill makes a number of targeted amendments to improve the operation of schemes that support victims of crime, enhance the clarity and consistency of the legislation underpinning those schemes and streamline administrative and decision-making processes for Victim Support ACT.

The financial assistance scheme was introduced in 2016 and significantly expanded on the previous court-based scheme for victims of crime. It is an administrative-based scheme founded on the principle that assistance should support a victim's safety, recovery and wellbeing while recognising the impact of violent crime. Across the years, as awareness of the assistance available to victims of crime has grown, so have the number of people seeking recognition and support through the scheme. As reported in the Human Rights Commission's 2024-25 annual report, there were 1,336 applications made to the financial assistance scheme in that year, which was a 10 per cent increase from the 2023-24 period and a 168 per cent increase from 2020-21.

Several of the amendments proposed in this bill will support the Victims of Crime Commissioner in the administration of the scheme. These amendments will streamline key processes, reduce administrative burden and support the timely delivery of assistance to victims of crime. This will be achieved by providing a mechanism for managing duplicate applications relating to the same act of violence and enabling applications for financial assistance to be closed after 12 months where sufficient information has not been provided to progress an assessment.

As an important safeguard, applicants will be able to seek independent external review through the ACT Civil and Administrative Tribunal of decisions relating to duplicate applications. The bill will additionally clarify the definition of "primary victim" and an "act of violence". These amendments will strengthen the operation of the scheme by providing greater certainty about eligibility and supporting consistent and transparent decision-making. They will also help applicants better understand when they may be eligible for financial assistance as a primary victim.

The bill will also consolidate existing court-imposed levies for criminal convictions into a single levy framework. These levies imposed on criminal convictions assist to fund supports administered by Victim Support ACT. Currently the levies are established under two separate pieces of legislation and operate under different legislative arrangements. Consolidating these levies will simplify the legislative and administrative framework supporting the ACT courts and tribunals, reduce complexity

and streamline administration processes.

This reform will also support ongoing funding of the financial assistance scheme, helping to ensure the scheme can continue to respond to growing demand and provide payments to victims of crime. The financial assistance scheme provides recognition payments to acknowledge the harm caused by violent crime. Recognition payments are available to eligible victims in addition to other potential forms of support. The bill includes amendments to support the ongoing sustainability of the scheme, helping to ensure recognition payments remain available to victims of crime now and into the future.

The bill also makes an amendment to the Victims of Crime Act 1994 to provide greater clarity in relation to victim notifications under the Charter of Rights for Victims of Crime. The amendment will clarify the notification provisions relating to arrest warrants and ensure they accurately reflect existing powers and processes.

These amendments make a number of practical improvements to the operation of the legislative framework supporting victims of crime, including improvements to administrative processes, legislative clarity and the long-term operation of the financial assistance scheme. I commend the bill to the Assembly.

Debate (on motion by **Ms Barry**) adjourned to the next sitting.

Housing and Consumer Affairs Legislation Amendment Bill 2026

Ms Cheyne, pursuant to notice, presented the bill, its explanatory statement and a Human Rights Act compatibility statement.

Title read by Clerk.

MS CHEYNE (Ginninderra—Manager of Government Business, Attorney-General, Minister for City and Government Services, and Minister for Transport) (10.47): I move:

> That this bill be agreed to in principle.

I am pleased to introduce the Housing and Consumer Affairs Legislation Amendment Bill 2026. This is an omnibus bill that responds to practical issues raised by stakeholders and improves the operation of housing and consumer laws across four areas: unit titles, residential tenancies, retirement villages and land title caveats. While this is an unassuming bill on its surface, it certainly has some significant reforms contained within it. I also wish to advise that likely early next year the government does intend to present a further bill with a similar title in which we will be looking to address occupancy agreements as well as some more issues regarding residential tenancies.

In May this year the Standing Committee on Legal Affairs published its report on the inquiry into the management of strata properties. The government has tabled its response just this Tuesday, and it is already progressing agreed recommendations. Indeed recommendation 13 of the inquiry report recommended that the government

review current quorum requirements for general meetings and special resolutions, noting quorum requirements in other jurisdictions. Having considered the approaches in other jurisdictions, the bill will amend requirements on achieving quorum in unit title properties.

First, the bill will reduce quorum requirements from half of eligible voters to one quarter of eligible voters, including for unit title retirement village properties. Lowering this threshold requirement will address stakeholder concerns and feedback raised in the inquiry about the difficulties owners corporations experience in meeting the standard quorum requirement. Being in one of those for a very long time now, I can confirm that through lived experience.

Secondly, the amendments remove the reduced quorum petition process and the 28-day delayed effect of decisions made with the reduced quorum, allowing a decision taken at a reduced quorum meeting to take effect the day after it was made. These delayed effect procedures do not exist in other jurisdictions, and removing them will bring the ACT into closer alignment with approaches in the rest of Australia. It does mean that decisions relating to urgent repairs and decisions to take urgent legal action or other time-sensitive actions will be able to be implemented in a timely manner. Where owners have concerns about owners corporation decisions, they can bring a matter to the ACT Civil and Administrative Tribunal without first needing to gather a petition of owners. The bill will also clarify how proxy votes and absentee votes count towards a quorum.

The bill will also amend the Residential Tenancies Act 1997 to support the ACT's net zero emissions commitments. Part of this commitment includes banning new gas connections in most land use zones as well as a commitment to ending fossil fuel gas use by 2045 and decommissioning the gas network. Supporting the transition of rental properties from gas to electric appliances is an important part of meeting that commitment.

The bill clarifies that a landlord is not required to maintain a gas connection where no gas appliances remain at the property. Where a landlord arranges for the gas connection to be disconnected, the landlord will bear the cost. At present tenancy laws require landlords to ensure that rental properties have a gas connection as well as connections for other utility services. Amendments introduced through this bill will clarify that landlords will not need to continue to provide a gas connection to a rental property where there are no longer any gas-reliant appliances at the property. The bill also clarifies that where the landlord chooses to disconnect a rental property from gas, the landlord will bear the disconnection costs.

At present the Residential Tenancies Act protects tenants by allowing them to claim a rent reduction where their quiet use and enjoyment of the property has been diminished through the loss or the diminished use of an appliance. Experience from other jurisdictions has indicated that some tenants do prefer gas appliances to electric ones and that tenants have regrettably used rent reduction provisions to resist the transition from gas to electric appliances at their rental property where an electric appliance has not provided a like-for-like replacement to the gas appliance. The possibility of such a claim could act as a barrier to landlords attempting to transition a rental property from gas to electric appliances. The bill clarifies that a tenant will not be entitled to a rent reduction merely because gas appliances have been replaced with reasonable electric

alternatives. Importantly, tenants remain protected. ACAT may still order a rent reduction where there is no active electricity connection or where the landlord's actions are unreasonable or impracticable in the circumstances.

This is a bill that also reforms dispute resolution arrangements under the Retirement Villages Act 2012. The act currently requires each retirement village operator to establish an internal disputes committee comprising an operator representative, a resident and an independent chair funded through residents' recurrent charges. Although well intentioned, this model has proven very difficult to operate. Some villages have been unable to establish a committee, while residents may understandably be reluctant to become involved in disputes concerning their neighbours and friends. The bill therefore removes the requirement to establish an internal disputes committee. Villages may, of course, continue to operate such a committee if residents and operators do consider it useful. Residents, importantly, will retain access to dispute resolution through the ACT Human Rights Commission and ACAT. Operators may also have a village-specific policy or procedure on suggested ways to resolve disputes. However, the amendments make it clear that an operator cannot have a contract term that would force a resident to resolve a dispute in a particular way.

This approach reflects feedback from the Retirement Villages Working Group and my discussions with representatives of residents and operators. That feedback has consistently supported dispute resolution pathways that are clear, trusted and workable. I particularly acknowledge the ACT Human Rights Commission, which has established itself as a body trusted by residents and operators alike. This certainly gives me confidence that we are not lessening any protections here for our retirement village residents, but rather we are responding to their very reasonable concerns about something that was well intentioned, and this is a practical way forward.

Lastly, the bill amends the Land Titles Act 1925 to modernise address for service requirements for caveats. A person lodging a caveat will be able to provide an address for service anywhere in Australia rather than being required to provide an ACT address. An email address may also be nominated as an additional address for service. These changes recognise that people outside Canberra may hold an equitable interest in ACT land. They bring the territory into closer alignment with other jurisdictions, and they provide greater flexibility for electronic service.

I would like to thank the stakeholders who have dedicated their time and engaged with the government on the amendments contained in the bill. It is a collaborative effort, and that collaborative effort demonstrates the importance of what we can achieve when we work together. These are positive outcomes, these are positive reforms and they do effectively respond to housing and consumer law concerns which have been raised by the community. I commend the bill to this Assembly.

Debate (on motion by **Mr Cocks**) adjourned to the next sitting.

Road Transport (Safety and Traffic Management) (Validation) Amendment Bill 2026

Debate resumed from 15 September 2026, on motion by **Ms Cheyne**:

That this bill be agreed to in principle.

MR PARTON (Brindabella—Leader of the Opposition) (10.56): We cannot support this legislation. The Canberra Liberals are fundamentally opposed to retrospective legislation, particularly when it is retrospective legislation that is rushed through without genuine scrutiny. For 36 years of the self-government period, we have existed without the ability to find a seatbelt offender through the mechanism of a roadside photograph. This only became law, albeit flawed, through a bungled authorisation process, but we certainly believed that it became law last year. The government has put the brakes on and is attempting to go back and fix this mess and is adamant that this must be fixed instantly. We could have lived with another three or four weeks. We are sitting again in October, Mr Speaker.

And I guess one of the questions is: if the government had become aware of this disastrous error 2½ months ago, are we to assume that, because of the urgency of this matter, we would have recalled parliament? Does anyone think we would have recalled parliament if we had discovered this 2½ months ago? And the answer is no, we would not have done that. We would not have done that. We are sitting again in October. We could have allowed the regular processes to unfold.

We have a problem with retrospective legislation. We think it sets a precedent. It enables the government to do pretty much whatever they want to do retrospectively. They can go back and make changes to pretty much anything. This is a mess; we understand that, but it is a mess of the government's own doing. And when assessing the merits of the bill, I cannot remove myself from the way that this cash-strapped government has so often overstepped the mark on what we would call "malicious compliance" when dealing with regular Canberrans, who they believe owe some money in some way.

This government has sought to squeeze funds out of so many Canberra residents in what I would describe as a genuinely heartless way, often over matters that are as innocent as this administrative error. They have wheeled in the lawyers. They have harangued and harassed individuals and families for small and large amounts of money that they knew was a bit of a stretch. But they did not really care about the consequences for those individuals.

So, when it comes to assessing this bill, and when it comes to assessing whether this government should be able to go back and resubmit their homework because it turns out it was wrong, the question for me is: would they let anyone else get away with this? And the answer is no. This is a mistake of the government, and they should wear it.

MR CAIN (Ginninderra) (11.00): There are a couple of things that come to mind in reflecting on this whole disaster of this government. Firstly, as Mr Parton has touched on, when did the government know? If they knew at a certain point in time, they also would have known that notices were being issued without legal support. I will be exploring this through my own line of inquiry. When did the government know that this was a flawed legal document and that every notice issued was actually a flawed legal document? When did they know, and despite that knowledge, did they just keep the notices flowing out? That is a very important question to answer, Mr Speaker.

Secondly, as the minister would be aware—and I think I have sent recent correspondence, and if not, it will happen soon—a notice was issued that clearly was just wrong. Even if the law was encompassing enough to support the notice—which it is not, because the government has admitted that—I have this particular case. I have had several cases brought to me as shadow minister for city services, and the most recent and striking one is an infringement notice issued to a driver where the passenger had put their cardigan over the seatbelt because they were a bit cold in the car. I have seen the photos; the seatbelt was clearly on.

Ms Cheyne: A point of order on relevance, Mr Speaker. We are not talking about the legality of seatbelt offences; we are talking about the disallowable instrument and the validating law that gives effect to it, not particular cases that seatbelt offences apply to.

Mr Cocks: On the point of order, Mr Speaker. I would point out that Mr Cain's comments do go broadly to the issue of the implementation of this scheme, and I believe, from our perspective, they are within the broad spectrum of this debate.

MR CAIN: Mr Speaker, if it assists on the point of order—I have made the point asking when the government knew and yet continued to issue flawed orders. And secondly, by hastening this fix, they are actually repairing flawed notices anyway, because they are not doing a review of the process. So, I think it is relevant to my recounting of this incident.

MR SPEAKER: Thank you. I think it is broadly relevant, Minister, and I will allow the member to continue.

MR CAIN: As I was interrupted, Mr Speaker, I feel I need to tell this story from its beginning. It will not take me much longer. I am aware, because I have seen the photos and I have had the submission, of a driver whose fine was maintained after review. I have got a statement from the passenger saying that they were wearing a seatbelt; they were a bit cool in the vehicle, so they pulled on their cardigan. Obviously, I am talking about a jumper with a zipper that has got two halves, just to make it very clear to everybody. They had pulled the cardigan over the seatbelt to keep themselves a bit warmer. The driver was issued a fine. It was refused on review. If I have not already, I will soon be writing to the minister to say, "Here is a statement from the passenger. Here is a statement from the driver. Surely this is just wrong?" This is a wrong fine.

By hastening this repair of the government's blunder, what they will be doing, for a certain percentage of these fines, is enforcing wrong and incorrect notices anyway. So, they are missing an opportunity, in my view, to actually review the process and to make sure that the ones that they are going to legally repair are actually correct in the first place.

MR BRADDOCK (Yerrabi) (11.05): The Greens will be supporting this bill, and I want to emphasise the narrow scope of the bill as referred to by the minister in a point of order.

It is a validating law intended to remove ambiguity about the validity of images taken by these gantry cameras. Those cameras are already in place and being used for mobile phone related defences. We know that the cameras are catching people who are not

wearing their seatbelts and, in the majority of those cases, they are doing so validly.

In considering this bill, I reached out to the ACT chapter of the Australasian College of Road Safety. They made the observation that the legislative oversight by the ACT government did not reflect well on the attention to detail in the introduction of the Acusensus system. Nevertheless, they articulated how seatbelt wearing is an important measure to improve road safety, and that regulation and messaging should encourage seatbelt wearing and ensure there is an ongoing deterrent to a failure to wear a seatbelt. Ultimately, this scheme passed with unanimous support within this Assembly when the bill was debated here.

The government's failure to update the instrument to allow existing equipment to be used for seatbelt detection is not an excuse for someone not wearing a seatbelt.

The legal question of the fines issued during the effected period needs to be resolved, and quickly, in the interest of the territory. Therefore, the Greens are supportive of the bill.

To go to some of the points that Mr Cain represented, the bill is not about the issues we are hearing about AI-screened images, which are validated by human operators, being turned into fines, and how they can be subsequently challenged by the driver. As with any system, errors can fall through the cracks, and we do seem to be getting some of those in our correspondence. I would suggest we need to be productive in how we engage with those questions. And so, this week I have written to both the Auditor-General and to the ombudsman with the suggestion this might be a useful topic for them to examine. Because I do not want to make sweeping statements about the gaps in the performance of the system; I prefer there be an expert review. Again, that is a different problem from the debate we are having today, to be managed in its own right.

In closing, I would say to everyone: always wear your seatbelt. It really is a simple thing. The human body is just not built to withstand collisions above 30 kilometres per hour without commensurate protective gear. Respect the physics and wear your seatbelt.

DR PATERSON (Murrumbidgee—Minister for Health, Minister for Mental Health, Minister for Police, Fire and Emergency Services, and Minister for Gaming Reform) (11.07): I think it is really important to put on the record that we have lost 71 people on our roads since 2020. We have lost 11 people this year. The leading cause of road crash death in Australia is not wearing a seatbelt. Unrestrained drivers and passengers are eight times more likely to be killed on our roads than anyone else. These are incredible statistics and the fact that the Canberra Liberals are standing here debating this—this is an administrative error that the minister is calling on the Assembly to support the fix for—is quite astonishing and, if anything, what I hope this process is highlighting to the community is how people need to be wearing their seatbelts.

It is crazy in this day and age that people still are not wearing seatbelts.

I would like to thank our emergency services—our police, our fire, our ambulance

service—that are there when people do have an accident. They are there to pick up the pieces. They are there to take that person to hospital if they survive.

Our road fatalities are just one part of the story, as well. The hundreds of people who are severely injured on our roads is devastating, and there are devastating impacts to our community. Wearing seatbelts is one of the fatal five. ACT Policing has a campaign that they run every year around the fatal five, and I think it is shameful that the Canberra Liberals are not supporting this quick fix, because I think it is really important that we do make a point that people in Canberra should be wearing their seatbelts.

MR COCKS (Murrumbidgee) (11.09): Firstly, I thank the minister for raising the statistics around road deaths and seatbelts. They absolutely drive home the fact that people should be wearing their seatbelts, although I think it is probably reasonable—

Dr Paterson: There is no "although"; people should be wearing their seatbelts.

MR COCKS: Yes, but I think it is still probably reasonable to point out the conflation of national statistics with the ACT statistics. I think in the ACT people are pretty good at doing the right thing, and we have already heard some concerns about the validity of some of those AI-driven fines. It is worth noting that, in the ACT over the period the minister mentioned since 2020, a total of seven road deaths have been linked to not wearing a seatbelt in the ACT. That is seven too many.

Dr Paterson: Vision Zero.

MR COCKS: As the minister says, Vision Zero. We are on board with Vision Zero. What we are talking about here today is not whether anyone is committed to Vision Zero or not; it is about the competence of a government which introduced legislation, which was passed by the Assembly—it was accepted by the Assembly; we did not oppose that legislation—

Ms Cheyne: You actually supported it.

MR COCKS: But we did raise concerns about the fairness of the implementation.

Ms Cheyne: You are misleading the Assembly.

Ms Lee: Point of order, Madam Assistant Speaker: the minister specifically just now made an accusation of Mr Cocks misleading the Assembly and must bring a substantial motion if that is the case.

Ms Cheyne: Madam Assistant Speaker, I withdraw. I will be proceeding with a substantive motion, but I will provide more context to that in my closing remarks. But I was simply remarking that Mr Cocks may wish to be careful with how he is going to characterise—

Mr Cain: Withdraw and apologise.

Ms Cheyne: I did.

MADAM ASSISTANT SPEAKER: She has withdrawn. Thank you, Ms Cheyne.

MR COCKS: As I have pointed out a number of times now, the Canberra Liberals did raise concerns about the fairness of implementation. That was very clear. Some of the specifics around that were mentioned. They were not specifically this, but what we were talking about was broad. We were concerned about the implementation. Absolutely we were concerned about the implementation.

Ms Cheyne interjecting—

MR COCKS: The minister is clearly not comfortable with that, but the legislation the minister introduced relied on implementation through regulation, as many pieces of legislation do. The right steps were not taken for the government to be able to legally issue valid fines until this retrospective piece of legislation. What that means is that the money associated with all of these fines was never theirs. The fines were never valid. The scheme was never implemented correctly.

What this legislation does is go back in time and change that fact. It seeks to go back and change what happened in the past, retrospectively making those fines valid. I do not think that is a reasonable way to approach this. Yes, from here on, things should be implemented appropriately—that is what people expect the government to do—but going back in time to fix a mistake and validate something that was never there is not how a competent government should ever operate.

MS CASTLEY (Yerrabi) (11.14): This bill is extraordinary. I was stunned when I was first briefed on the issue and still cannot believe that we are left in the position where the Assembly is being asked to urgently retrospectively validate thousands of fines that may have been unlawfully issued.

There was a lengthy debate on the seatbelt issue in the chamber yesterday. I do not intend to reiterate the points that have already been made, but I do want to respond to the argument made by the deputy opposition leader yesterday, which I think is the intellectual position behind the opposition's decision to oppose the bill. In my experience, that member is a person of strong principles and values, and those principles are not so different from my own, so I did give some thought to the argument that she was making. We clearly share common philosophical foundations and we both agree that the rule of law is fundamentally important and that retrospectivity is almost always a deep concern. In the words of Hayek:

> … the government in all its actions is bound by rules fixed and announced beforehand, rules which make it possible to foresee with fair certainty how the authority will use its coercive powers in given circumstances, and to plan one's affairs on the basis of this knowledge.

This is an interesting quote. I think it is one we would both agree with, but I also think that we put different emphasis on the different parts of the quote, which leads us to different conclusions. I think the member would focus more on the first clause, "the rules fixed and announced beforehand" and conclude that any retrospective change violates the principle, and that is possibly why she objects to the bill—and I can respect that decision. But I am focusing on the rest of the quote, which essentially says that

people should make decisions based on the rules and they should be judged on the rules as they existed at the time. That leads me to believe that retrospective change is objectionable when it means someone would have made different decisions had the rule been changed before the decision was made.

That is why it is so concerning when governments retrospectively criminalise certain conduct after actions have been made or change tacts in regulatory settings after investments have been made. But a retrospective change is not as concerning when it would not have changed people's decisions had the change been made and known beforehand. In this instance, every driver who was found to have offended was knowingly committing an offence. The presence of a defect in the device authorisation regulation does not change that. This is why I do not accept the Liberal argument against this bill, despite our common principles. It is also why we would probably find ourselves voting the same way if other retrospective issues were to come up in the future.

MR EMERSON (Kurrajong) (11.17): I will be supporting this bill this morning. The Assembly has already voted on the matter of issuing seatbelt fines. The intent of that legislation was clear, and we reached a decision in the chamber to support the operation and intent of that mechanism, which is ultimately in the pursuit of public and road safety. Ms Castley spoke clearly to the understanding not just within our Assembly but within our community about the operation of this technology. There was plenty of communication that this was going to occur.

What we are dealing with here is an administrative error that has no material impact on the way we all understood the system would or was intended to operate. People are absolutely within their right to make complaints about fines that they feel have been wrongly issued due to camera or interpretation errors—and so they should, based on some of the examples I have seen—but that is not what we are discussing in this debate. The validity of those fines is a completely separate issue to the legal issue that we are dealing with this morning.

As such, I will be supporting this bill. It is in all our interests that any potential ambiguity is cleared up. It is in the public interest, from a safety perspective and from a financial perspective. We can choose to leave the territory exposed to legal uncertainty, and the rest that comes with that, due to an administrative error that this bill seeks to rectify, or we can choose not to; instead, we can correct that error in alignment with how we all voted when the legislation making these fines possible passed through this Assembly.

We have a choice. Let us not spend taxpayers' money and have taxpayers spend their own money on the legal costs involved with potentially having to resolve this matter in court. It would be a mistake for this safety matter and a simple administrative fix to be waylaid by a debate that, ultimately, is not related to the matter at hand.

I appreciate the minister's office and the minister for their swift and good-faith engagement with me and my office as soon as they became aware of this issue, and for government officials explaining it to us. It is a shame that this occurred. Sure, it is embarrassing, as I think other members have described it, but that should not be any reason not to support this bill this morning.

MRS MORRIS (Brindabella) (11.19): On principle, this bill is wrong. This bill seeks to use the legislative power of this Assembly to provide the government with legal protection for doing the wrong thing. Interestingly, the government's argument for bringing this bill to this place is that Canberrans have done the wrong thing. Overwhelmingly, Canberrans know that if they do the wrong thing, they must face the consequences. They know that. Overwhelmingly, Canberrans comply with that.

If a Canberran does the wrong thing, they cannot just change the law to protect themselves from a misdeed of the past. They cannot quickly draft a piece of legislation and give themselves legal protection for something that they did in the past. Madam Assistant Speaker, can you imagine what kind of place we would be living in, if they could do that? But that is exactly what this bill seeks to do.

This chaotic Labor government, which cannot get their own affairs in order, are coming to this place and asking the members in this place to rush through a bill to give them legal protection for their failure to get their house in order. I think that, on principle, that is wrong. This government should be leading by example. Canberrans need to have trust in the government, and they need to be able to trust the enforcement systems that the government put in place.

Even before this whole, very regrettable situation came to light, this enforcement system was already under strain. The integrity of it was already being undermined, which Mr Cain referred to in his remarks. People were already starting to doubt the technology. That public confidence in a critically important road safety measure, which is wearing a seatbelt, is being undermined.

This only goes to adding to that chaos, and it goes to further undermining an incredibly important road safety measure. We all agree in this place that seatbelts are important. We all agree with that. That is why the system that requires and enforces seatbelt use has to be beyond reproach. But it is not. The fact is that the government have come into this place with hurried laws, without scrutiny, to provide themselves with legal protection for their own mistakes. It is no wonder people are losing faith in government. It is no wonder they are losing faith in politicians. Canberrans deserve better than that.

On principle, we cannot pass this law. I would urge every single member of this Assembly to vote against this bill.

MS LEE (Kurrajong) (11.23): I had not planned on speaking to this bill, but as I sat in the chamber and listened to Dr Paterson's contribution, I could not let it slide without calling some of it out. The fact is that the Deputy Leader of the Opposition has stated very clearly on the public record that we all agree that wearing a seatbelt is important. There is nothing that the Canberra Liberals have stated that takes away from that position. We all agree that Canberrans should do the right thing and wear their seatbelt.

That is not in question. That is not in dispute. Yet we have the Minister for Police, Fire and Emergency Services coming into this chamber and, in this debate, wilfully misrepresenting and conflating the issue of road safety with her chaotic government's failure to get this right. And that cannot stand without comment.

The fact is that this is a government that is absolutely crumbling. We saw it just this week. Three out of eight ministers have been censured in this term alone. The Deputy Chief Minister was forced to resign because of a corruption scandal. We have seen the parliamentary report in relation to the fiscal mismanagement of the territory's finances. And we have now seen the ACT Greens walk away as well.

This is a government that is crumbling. It is absolutely in chaos, and this is just a symptom of it. The fact is that it cannot even get this right. This is a symptom of a government that cannot get things right, and now it seeks to do what it has always done, which is to deflect and blame everybody else—to deflect, to conflate, and to seek to blame everybody else.

As the Deputy Leader of the Opposition said, this erodes confidence. It is bad enough that they are coming in here to try and introduce and pass retrospective legislation, and to do that without scrutiny—to ram it through without scrutiny. They then have the gall to tell us that we are stopping this. That is beyond reproach. It is unministerial. That is why we have seen the chaos that we have seen unfold this week alone.

The Canberra Liberals will not be supporting this bill. On principle, retrospective legislation should not be passed, as a rule. If they seek to do so, it must—it must—be put under scrutiny. As the Leader of the Opposition said, it is not like we are in a sitting week in June, when we do not have another sitting week for three months. There is time for scrutiny. The fact that they will not even allow that speaks volumes about the chaos of this government.

MR STEEL (Murrumbidgee—Treasurer, Minister for Planning and Sustainable Development, Minister for Heritage, and Minister for Sport and Recreation) (11.27): Thanks for the diatribe from the third Liberal opposition leader in two years. That is what chaos looks like. Let's be clear about what is happening here. This is a very straightforward fix for an administrative error. Voting against this bill today would end bipartisanship in relation to road safety and Vision Zero here in the ACT. The minister has brought forward this legislation to ensure that the law works as intended. This is legislation to keep the safety of Canberrans on our roads in the heart of the law—

Opposition members interjecting—

MADAM ASSISTANT SPEAKER (Ms Barry): Can we have some silence, please, whilst the minister has his time.

MR STEEL: This is legislation to keep the safety of Canberrans on our roads in the heart of law—

Mr Cain: Nothing to do with safety.

MADAM ASSISTANT SPEAKER: Mr Cain!

MR STEEL: and to make sure that those who have done the wrong thing—

Ms Lee: I thought we already passed that law.

MADAM ASSISTANT SPEAKER: Ms Lee!

MR STEEL: who have committed a road offence, are appropriately held to their actions.

Opposition members interjecting—

Ms Lee: Anyone but the government.

MR STEEL: Road safety in this parliament and in all parliaments—

Ms Stephen-Smith: On a point of order: the disruption is highly disorderly, Madam Assistant Speaker.

MADAM ASSISTANT SPEAKER: Yes. I warn the opposition. If you do not desist, I will start naming. Thank you.

MR STEEL: Road safety in this parliament and in all parliaments across the country should be a bipartisan issue, and the stance of the opposition today completely undermines that.

Opposition members interjecting—

Dr Paterson: On a point of order: I literally have not heard anything of Minister Steel's speech. I cannot hear. This is entirely disorderly. Can they let the minister speak?

MADAM ASSISTANT SPEAKER: I am sorry, this is the last warning. I am really serious.

Mr Cain interjecting—

MADAM ASSISTANT SPEAKER: Mr Cain, please! I am really serious this time. Last warning.

MR STEEL: Voting against this bill today would end bipartisanship on Vision Zero and road safety in the ACT. It would be an incredibly disappointing step backwards by the Canberra Liberals. Too many Australians, and Canberrans, die on our roads every year due to the reckless behaviour of people who are not wearing seatbelts, speed, drive under the influence of alcohol and other drugs, and are otherwise dangerous on our roads. The government has a strong track record of working to protect people on our roads and ensure that the powers are there that the police need, as well as Access Canberra, to enforce the law and ensure that our road laws keep up with the contemporary needs of our community.

The bill that was introduced by Ms Cheyne that we are debating today is about ensuring offences that have already occurred are validly responded to. It is not about creating new fines or punishing people who have not done anything wrong; it is about a very simple administrative error that did not correctly update an instrument to ensure that the current camera technology was given suitable status to collate evidence of those offences. The offence has occurred. The law has been broken. It is incumbent on all of

us in this place to support and uphold road safety and ensure that those who do the wrong thing are appropriately held to their actions.

I support this bill very strongly today. Voting against it is voting against Vision Zero and is voting against road safety in the territory and would allow those who have—

Ms Lee: Why don't you bring that as a substantive motion?

Ms Stephen-Smith: Madam Assistant Speaker, on a point of order: Ms Lee continues to flout your very clear instruction.

MADAM ASSISTANT SPEAKER: Yes. Ms Lee, I will have to name you. Ms Lee, you are suspended from the sitting for three hours.

Ms Lee: What?

Mr Cain: Madam Assistant Speaker, on a point of order: with respect, I do not believe that due process has been followed. I encourage you to check with the Clerk.

Ms Lee: There are steps.

MADAM ASSISTANT SPEAKER: I name you, Ms Lee. Pursuant to standing order 203, I move:

> That Ms Lee be suspended from the service of the Assembly.

MS CHEYNE (Ginninderra—Manager of Government Business, Attorney-General, Minister for City and Government Services, and Minister for Transport) (11.32): I move:

> That this question be put forthwith and without debate.

Question put:

> That Ms Lee be suspended from the chamber for three hours.

The Assembly voted—

Ayes, 16		Noes, 5
Andrew Barr	Suzanne Orr	Peter Cain
Chiaka Barry	Marisa Paterson	Ed Cocks
Andrew Braddock	Michael Pettersson	Elizabeth Lee
Fiona Carrick	Chris Steel	Deborah Morris
Leanne Castley	Rachel Stephen-Smith	Mark Parton
Tara Cheyne	Caitlin Tough	
Jo Clay	Rebecca Vassarotti	
Thomas Emerson		
Laura Nuttall		

Question resolved in the affirmative.

MR STEEL (Murrumbidgee—Treasurer, Minister for Planning and Sustainable Development, Minister for Heritage, and Minister for Sport and Recreation) (11.38): Yes, I am pleased to finish. Voting against this bill would potentially allow every person who has clearly committed an offence, to get off. It sends completely the wrong message; would completely undermine road safety in the ACT; and shows that the opposition is completely weak when it comes to law-and-order issues and road safety in the ACT.

MS CHEYNE (Ginninderra—Manager of Government Business, Attorney-General, Minister for City and Government Services, and Minister for Transport) (11.38), in reply: I certainly thank all members for their contributions. What a lively debate. There is a serious issue before us, Madam Assistant Speaker, and there has been some pretty serious rhetoric about it. Those two things should not be confused.

An instrument should have been updated. It was not. That is an administrative failure. It should not have happened, and government has acknowledged it. We have corrected the approval prospectively. We have commenced work to understand how the error occurred, and we have now brought this legislation to resolve the resulting legal uncertainty.

For Mr Cain's benefit, here is the timeline. Access Canberra received advice on the 24 August. Access Canberra paused the issuing of notices on the 24 August. My chief of staff was informed late on 25 August. Parties started to be briefed on 27 August, including the Leader of the Opposition on that date. On Friday 25 August, that is when leaders of parties and independents were offered a formal officials' briefing, and briefings occurred on 1 and 2 September. If Mr Cain wants to dispute that timeline or was not part of those meetings, he can raise that with his leader.

Madam Assistant Speaker, precision matters, and it particularly matters when members invoke the rule of law. The government did not retrospectively invent a seatbelt offence; it did not retrospectively increase a penalty; and it did not make conduct unlawful today that was lawful yesterday. We did not secretly deploy a camera system that the Assembly had never contemplated. Indeed, we legislated expressly for camera detection of seatbelt offences using the existing mobile device detection camera network. We told the community that those cameras would commence from 3 November. But there was a defect, and that was the failure to make the consequential update to the instrument approving those devices in that additional capacity. That distinction does not excuse the error, but it does identify the error.

Now, this sort of law that we are debating today, this is not some exotic invention of the ACT government. In fact, just this year, Victoria retrospectively validated corrections decisions because a delegation instrument had not been updated after a job title change. In 2024, Queensland retrospectively validated years of decisions—years—because senior maritime officials had not been formally appointed. The commonwealth has retrospectively validated airport regulatory action by officials who were not validly authorised; divorce fees collected under defective regulations; and more than four years of aircraft noise levels collected because a ministerial declaration had been overlooked.

Parliaments everywhere in Australia have repeatedly distinguished between creating an offence after the event, and curing an administrative defect so that the law operates as parliament always intended. That is the distinction before us today.

Mr Cocks did seek to rewrite history of that legislation, both today and yesterday. And I am raising this now, and I invite Mr Cocks at some point today to reflect and to clarify with the Assembly what points he was making. And I leave it open to myself to move a motion if that does not occur.

Mr Cocks intimated yesterday that the Canberra Liberals had not supported the implementation stage, but Mr Milligan had raised serious concerns about implementation. Mr Milligan had called for a six-month review and said that, on that basis, the concerns about implementation had been there all along.

Thank God for Hansard. I went back to it. Mr Milligan did call for a six-month review, but context matters. He described the bill as a genuine life-saving measure. He said, "This is why this bill is so important." He expressly supported introducing seatbelt detection cameras. He said the bill should proceed. He did identify an implementation issue, but it was a specific one, and a specific one raised by scrutiny: how the infringement scheme would affect people who are medically exempt from wearing seatbelts. His proposed six-month review was expressly about hearing from the community to see how the scheme affected them when it came to being medically exempt. He did not identify the section 13 approval instrument. He did not warn that the Acusensus cameras might not be prescribed correctly. He did not identify the legal defect that this bill addresses. He did not say he was concerned about implementation broadly, as Mr Cocks has implied, and he did not say that the Liberals opposed the implementation of seatbelt camera enforcement.

Indeed, following that debate, the bill was agreed to without a division or recorded dissent. So yes, Mr Milligan did call for a review, but what Mr Cocks omitted was what he wanted reviewed: treatment of medically exempt Canberrans, not the legal authorisation of the cameras, not the legislation. They are not the same thing. And so, if members do want to rely on Hansard to establish that they warned about this problem, then Hansard should establish that proposition, but it does not.

Now, I raise this because so much of the argument against this bill has depended on collapsing different propositions into one another. Concerns about medical exemptions becomes a warning about legal authorisation. A missed approval instrument becomes retrospective creation of an offence. A camera that captures evidence becomes an automated fining system. And a validating bill becomes evidence that the government can simply rewrite any law it likes, after the event. Those are all arguments that the opposition has put this week, yet none of them—not of them—accurately describes what is before us.

The cameras do not themselves issue infringement notices. Images are assessed by an authorised officer who determines whether an infringement should be issued. It is a human decision. It is not an automated debt creation process. And it is why the comparison we heard about Robodebt requires particular care. Robodebt involved the use of income averaging to establish purported welfare debts through a methodology that lacked lawful authority. Here, the underlying seatbelt offences existed throughout.

The Assembly had legislated—unanimously—for camera enforcement.

The question before us concerns the approval of the device used to obtain evidence of the offences: different legal issue, different administrative process, different factual circumstances.

Likewise, there has been a great deal said about retrospectivity. And look, the presumption against retrospective law is important but retrospective legislation is not automatically retrospective criminalisation. This bill does not create a new offence. It does not increase a penalty. It does not make previously lawful conduct unlawful. It validates the approval of a device used in enforcing offences that already existed. That is the basis on which the explanatory statement concludes that the human right against retrospective criminal laws is not engaged.

Madam Assistant Speaker you are chair of the scrutiny committee, and so you would know a scrutiny committee is established a look at human rights issues. I am really not sure that validating legislation, going through the scrutiny committee process, is going to throw up any human rights issues that require weeks of delay here. And based on the contributions in this chamber, almost everyone else agrees.

The Legislation Act does expressly contemplate validating laws. We have used them before. Members are entitled to scrutinise whether validation is justified in this case, and you are entitled to disagree with the government's conclusion. But please, for goodness' sake, debate us on what the bill actually does. It is confined to the period in which the defect existed. It validates the approval of the Acusensus Heads-Up JR-DD1 system as the seatbelt detection system that the Assembly had already legislated for. It does not validate an infringement that is otherwise defective for some unrelated reason. It does not remove the ordinary rights of a person who says the evidence does not establish an offence. Review, withdrawal and court processes remain available.

In the few minutes I have got left, I do need to respond to the suggestion that referring to the Assembly's intentions somehow shifted ministerial responsibility from me, yesterday. It does not. I am the minister. The error occurred within my portfolio, and we acted so quickly. Is it embarrassing? Yes. Is it regrettable? Yes. But being a minister is about being accountable, and I am being accountable in this place. The Assembly did intend camera enforcement of seatbelt offences. That is not shifting responsibility. It is stating the legislative record, the separation of powers. This is the place that legislates.

And so, there is an important principle here. Accountability also requires us to identify failures accurately. If an instrument was missed, we should say, "The updating of the instrument was missed." If systems need improving, we should improve them. If we need to explain ourselves, we should. But accountability is not improved by describing one failure as another, like the opposition has sought to do time after time this week. The error is real. We are correcting it. There are lessons to be learned from it. But the rule of law is certainly not strengthened by imprecision about the law or by allowing uncertainly to prevail. And Hansard is not strengthened by selectively removing the context from what a member actually said. And this Assembly's scrutiny is not strengthened if rhetoric becomes a substitute for identifying the precise defect before us. Call the error for what it was. And we should fix the error that occurred. I do take responsibility for it. We will learn from it. But I implore all members of this place: do

not rewrite the record to make it something that it was not. I commend the bill to the Assembly.

Question resolved in the affirmative.

Bill agreed to in principle.

Leave granted to dispense with the detail stage.

Appropriation Bill 2026-2027

[Cognate bill: Appropriation (Office of the Legislative Assembly) Bill 2026-2027]

Detail stage

Schedule 1—Appropriations—Proposed expenditure.

Education Directorate—Part 1.1

Debate resumed from 16 September 2026.

MS STEPHEN-SMITH (Kurrajong—Deputy Chief Minister, Minister for Education, Minister for Child Development and Wellbeing, Minister for Finance, Minister for the Public Service, and Minister for Health Infrastructure) (11.53): Every stage of a child's education can open doors and shape the trajectory of the rest of their life. That is why our Labor government is investing more than ever in public education, so that every local public school is an excellent first choice for every family, just as it was for my family, for my education and that of my brother.

This is what the 2026-27 ACT budget for Education is all about. It is about allocating $1.2 billion to our public school system, the largest education spend in ACT government history. It is also an increase of 7.3 per cent on last year's budget, recognising the important role our 93—soon to be 94—public schools play in our community. Education spending, including CIT, accounts for 22 per cent of total ACT government spending, second only to Health.

Earlier this year, the ACT government released the report of an independent expert panel—the ACT Public Schools System Resourcing Review Expert Panel. This review gave us a blueprint as to how we can work together as one system, a stronger and fairer system that delivers high-quality teaching and learning, reduces teacher workloads and delivers excellent student outcomes efficiently and sustainably.

This review builds on work that has been delivered over the last five years and more, as the ACT government has been implementing changes across our public schools to build strong foundations in literacy and numeracy, a more inclusive education system for children and young people with disability, and a system that is consistently demonstrating cultural integrity and a commitment to closing the gap for Aboriginal and Torres Strait Islander students. Its focus on equity is consistent with that of Minister Berry, who drove a range of initiatives to improve equity across the system.

We are now bringing these plans and activities together in an integrated approach to

reform. This approach is summarised as "one public education system", which encompasses our commitments under our Inclusive Education Strategy for students with disability, our Strong Foundations program for literacy and numeracy, and improvements to resourcing and business systems in response to the ACT Public Schools System Resourcing Review—the schools resourcing review, in short.

Over the last few weeks, I have been meeting with a range of stakeholders to hear about their experiences of the public education system. Next week I will be hosting a roundtable with members of our public education community about how we implement one public education system. Following their feedback, the implementation plan will be shared publicly so that every child and young person, every family, carer, teacher and education staff member in the ACT, not to mention members in this place, can see how we will work over the next two years to improve our public education system.

This is generational reform. To get it started, we are investing $9.3 million through the 2026-27 budget to support implementation, so that we can deliver greater equity, consistency and long-term sustainability to our schools. By working together as one connected public education system, we will provide more consistent support—sharing expertise, reducing duplication and, importantly, ensuring individual schools are backed by the strength of the whole system.

As the Minister for Education, I am committed to ensuring our public education system delivers consistent, high-quality teaching and learning, equitable outcomes for Aboriginal and Torres Strait Islander children and young people, consistent and meaningful inclusion of students with disability, schools where every student, family and staff member is valued for who they are, and efficient and sustainable workloads for our dedicated and highly valued education professionals.

The investments and reforms outlined in this budget are helping to deliver that vision. The ACT continues to be the only jurisdiction in Australia to fund all public schools not just up to, but above, the school resourcing standard—SRS. In addition to the significant funding provided by the ACT government, under the Better and Fairer Schools Agreement, the commonwealth government's contribution increased to 22½ per cent of the SRS this year. This increase, negotiated by my predecessor Yvette Berry, means millions of extra dollars dedicated to our public education system.

Our increased spending in our public school system goes directly to supporting around 50,000 students and more than 7,300 full-time equivalent staff across schools and the education support office in 2027—an increase of 107 positions compared with the 2025-26 budget. This workforce is critical to ensuring our public education system continues to deliver quality teaching and learning every single school day.

Canberra has changed a lot over the last few decades, since I was at school, and the student cohort, like our ACT community, is much larger and more diverse. At the same time, expectations on teachers have never been higher and the challenges they face have never been greater. That is why a key part of our reform agenda is to better support teachers, principals, school leaders, learning assistants, allied health professionals and all the other staff who keep our schools running.

To do that, we need to ensure funding is distributed fairly—moving to a needs-based

school funding model where a school's budget reflects the learning needs of its students. In line with the recommendations of the schools resourcing review, the directorate is returning to needs-based funding through the student resource allocation model—known as the SRA—from 2027.

This means redistributing funding through targeted investment for students with disability and additional needs. For some schools, this will mean receiving more support next year. For others, there will be challenging budget conversations. But the directorate will continue to work with school leaders to ensure staffing and needs-based funding allocations align. School budgets can be complex, and I acknowledge that change can be really difficult.

I recognise that while these conversations have been held on an in-principle basis since June, since the schools resourcing review came out, I also acknowledge that, for individual schools, seeing what their SRA budget would look like is a really challenging conversation. That is why the Education Directorate has established an exceptions process and is seeking to have iterative conversations with principals and school leaders.

I would like to take this opportunity to thank all our school leaders for the work that they have undertaken on their school budgets, and for their ongoing collaboration with the directorate to make changes in line with the schools resourcing review recommendations. I also acknowledge that a broader review of the SRA will occur. These targeted adjustments for 2027 are aimed at improving equity and supporting the transition to needs-based funding, which is an outcome I understand that we all want.

In 2027, we are implementing a new funding model specifically for students with disability, based on the level of adjustment students need to access learning and participation on the same basis as their peers. We have been preparing for this new model over the past few years as a key commitment under the Inclusive Education Strategy.

The adjustment-based resourcing model will move schools away from the previous approach, where funding was allocated on the basis of a formal diagnosis, towards funding allocations based on the adjustments provided to all students with disability within the school. Importantly, we will also be making targeted investments for the students that we know need more support, based on the support they need, not on their diagnosis or a deficit model.

I note that there was very little discussion of specific budget measures from others who have participated in this debate so far. I would like to highlight just a few things that this budget will deliver, for the benefit of the Assembly. As I have said, this ACT Labor government has always prioritised equity and fairness for ACT public school students, but there is more work to do. It is not just about levelling the playing field; sometimes it is also about removing the barriers to make the field accessible for all students.

The 2026-27 budget continues funding measures as part of this commitment. I would like to highlight a few of these important things. The Future of Education Equity Fund, one of Ms Berry's proudest achievements, supports families with low incomes to access essential education materials, such as book packs, uniforms, excursions, sports

equipment and music lessons, so that all students have the resources they need and the opportunity to participate fully in their education, and support their wellbeing and inclusion. It is about making sure that no student misses out.

In 2025, the education equity fund provided more than $3.7 million to more than 6,200 students. In 2024, it provided more than $3.4 million to more than 5,800 students. In 2026-27, it continues to grow, investing an additional $977,000 through the budget into the equity fund, bringing total funding to more than $4 million, to ensure we can support students and families when they need it most.

Free school camps at Birrigai Outdoor School also reflect our commitment to equity, because no student should have to miss out on a school camp due to cost, and no parent should have to choose between paying for a school camp or paying the bills. That is why ACT Labor made a commitment to this important program at the 2024 election and rolled it out as soon as we could. Whether it is our education equity fund or free school camps, we are supporting families to make sure every child can take part in every part of the school experience.

From time to time, families also need support to help them resolve an issue with their school or the system. To support this engagement, a parental advocacy service has been established to provide an independent support mechanism, delivering on another ACT Labor election commitment.

The Education Directorate is working with ACT parents to design and implement this service, which will aim to promote shared understanding between parents, schools and the education support office in the directorate. We have invested $90,000 for the scoping phase and $230,000 a year, in 2027 and 2028, to fund delivery of the service from the 2027 school year.

The budget also includes $600,000 over two years to plan for the long-term demand and infrastructure needs for flexible education services and specialist schools for students with significant disability. A review of flexible education in the ACT was recently undertaken and will shortly be released. The outcome of the feasibility study work, the feasibility work funded in the budget, will inform decisions about expanding flexible education offerings, particularly Muliyan and outreach services. Work is already underway to ensure additional sites are available to support these services, including a new site to support outreach in the inner south. Specialist school feasibility will identify options to provide more specialist school education services for students with disability, including the establishment of new specialist school satellite hubs.

The 2026-27 budget delivers significant investment in expanding access to public schools and early childhood education, ensuring we are meeting the demands of our growing population and Canberra's expanding footprint. In August, I helped turn the first sod to officially start construction on Gungahlin's second college. More than $125 million has been provided to build Canberra's 10th public college, in Nicholls. Expected to open for the 2029 school year, the new college will help to meet the education needs of the growing region. It will initially accommodate up to 800 year 11 and 12 students, with capacity for future expansion as demand increases.

This budget also provides $36.7 million to deliver stage 2 of Whitlam school, including

a 130-place co-located early childhood education and care centre. Stage 2 includes a $10 million contribution from the commonwealth government through the Building Early Education Fund. This initiative builds on the ACT government's investment of almost $102 million to deliver stage 1 of the Whitlam school project, which will welcome its first students in term 1 2027, providing high-quality education closer to home for families in Whitlam and the growing Molonglo Valley.

It was great recently to meet Hargun and Samreen at the unveiling of the Whitlam school logo, and to hear how excited they are to be starting year 1 at their brand-new school next year. Once fully operational, Whitlam school will cater for up to 780 students from preschool to year 6.

A range of other projects are underway and expected to be completed by the end of 2026, including stage 2 of the Strathnairn School, Narrabundah College modernisation, and Garran Primary School modernisation. Works on Majura Primary School modernisation are scheduled to commence in the next few months, while the Telopea Park High School expansion and modernisation program are currently progressing towards planning approvals through pre-DA consultation with the community.

The maintenance of our existing school facilities is also very important, and a significant and ongoing task. The budget invests almost $9 million to improve heating and cooling in nine schools, replacing 32 gas-fired furnaces with more efficient electric reverse-cycle appliances. This will support teaching and learning in a comfortable environment, as well as progress towards our objective of net zero emissions from ACT government operations by 2040. An approach to market will occur in the second half of 2026 to deliver these works.

I am very proud to have a new title of Minister for Child Development and Wellbeing. We know the first five years of a child's life are critical, because they have a huge impact on the rest of their life. That is why we are continuing to invest strongly in early childhood education. We know that participating in high-quality early learning sets children up for lifelong learning and success. This is especially true for children who have experienced disadvantage, trauma and vulnerability.

It is why we introduced the free three-year-old preschool program and why we are committed to supporting the early childhood workforce. The work we are doing represents the biggest investment that the ACT government has ever made in Canberra's early childhood sector. Three-year-old preschool gives families access to 300 hours a year of free preschool delivered by a degree-qualified early childhood teacher.

Around 150 early childhood education and care services across Canberra are now delivering a program, including Flynn Early Childhood Centre, which I was lucky enough to visit in August to see their great work firsthand. More than 3,000 three-year-old children across Canberra are benefiting from this program, and we will be continuing to work closely with the early childhood sector to make sure this important investment continues to help our youngest Canberrans to thrive and grow.

The investment builds on the ACT government's longstanding commitment to free, high-quality four-year-old preschool delivered through our public education system.

The ACT government, through the Education Directorate, is the largest provider of early childhood education and care in the territory. With more than 50 public preschools exceeding the national quality standards, we have grounds to be extremely proud of our public preschools and the high-quality early learning they deliver for our youngest Canberrans every year.

Of course, none of this happens without our workforce. As I mentioned earlier, this budget funds more than 7,300 full-time equivalent staff across our schools and education support office. Public schools also continue to recruit teachers to fill vacancies as they arise across the system.

We know that workload is one of the biggest challenges facing our teachers. Our one public education system reforms will mean teachers have more time to teach and principals have more time to lead because we are centralising functions that do not need to be managed at the school level. These reforms will take time, but they are certainly underway. What they will not do is undermine the individuality and vitality of each and every school.

We are still in the process of enterprise bargaining with our workforce as well. I appreciate that this has been frustrating for the Australian Education Union, the CPSU, other unions and, of course, all their members across our school system. I would like to take this opportunity to thank the unions for the good-faith approach throughout the process. I am confident that, with ongoing engagement, we will be able to achieve a good outcome for our teachers, our other school staff and, of course, our students and families.

The responsibility to make sure every child gets the best start in life and is set up for the brightest possible future is a shared one, and it is a responsibility that will drive the work I do every day across my portfolios, because it is what children, young people and their families deserve, and it is what the future of our city needs.

I am looking forward to continuing our history-making strong investments in the education of children and young people across Canberra. Through the budget, we are investing not only in schools but in the future of public education in the ACT. Through our investments in students, staff inclusion, infrastructure and equitable resourcing, we are building one public education system that is stronger, fairer and more sustainable.

That is the future that this budget supports, and that is the future we are committed to delivering for all ACT school communities. I look forward to bringing the one public education system implementation plan back to the Assembly. In the meantime, I commend the appropriation bill to the Assembly.

Debate (on motion by **Mr Emerson**) adjourned to a later hour.

Sitting suspended from 12.14 to 2 pm.

Ministerial arrangements

MR BARR (Kurrajong—Chief Minister, Minister for Trade, Investment and the Knowledge Economy, Minister for Tourism and Events, and Minister for Major

Projects) (2.00): Ms Orr is absent from question time today, attending a ministerial council meeting. The Treasurer, Mr Steel, has kindly agreed to take all questions in Ms Orr's portfolios.

Questions without notice

Canberra Hospital—proposed acute palliative care unit

MR PARTON: My question is to the Minister for Health. Minister, the government has committed to delivering a new 12-bed acute palliative care unit at Canberra Hospital, with construction originally supported by more than $15 million in capital funding. The 2026-27 budget now provides $23.4 million for the operation of the unit, with the government stating that construction is expected to be complete in December this year. Minister, has the project experienced cost increases or delays, and are changes or compromises to the scope or specifications of the unit currently being considered?

DR PATERSON: I thank the member for the question. We are very excited about this new acute palliative care unit that will come on board and contribute to a broader, territory-wide service. I will take on notice the detail of the question and get back to the member.

MR PARTON: Minister, is the government still expecting to deliver the full 12-bed facility with the originally intended clinical, patient and family facilities by the stated completion date, or has the scope of the project been reduced to meet cost or time pressures?

DR PATERSON: I will take on notice the scope of the project and the timeframes, and report back to the Assembly.

MRS MORRIS: Minister, why has the government's description of this project changed from a 12-bed palliative care ward to a facility that will initially provide only eight beds, and does the current project still deliver the 12-bed capacity originally promised?

DR PATERSON: I will take that on notice.

Public schools—PISA results

MR PARTON: My question is to the Minister for Education. Minister, the latest PISA results, released last week, show a continuing decline in student outcomes, particularly in reading and mathematics, with Australia recording its lowest results since PISA began. The results also found a link between increased screen use and lower student performance. New South Wales has responded by moving quickly to limit screen time in schools, yet in question time yesterday you refused to say whether the ACT would do the same. Minister, do you accept the PISA evidence that found that the more kids are online the more the results decline? If so, why are you not moving to quickly limit screen time in our schools?

MS STEPHEN-SMITH: I thank the Leader of the Opposition for the question. The ACT government is very proud of the outcomes that our children and young people achieve, but we know that we have more to do in the areas of literacy and numeracy,

which is why we are implementing the Strong Foundations reform. Milestones that have already been achieved in this reform include a new learning and teaching policy, including daily 90 minutes of literacy and 60 minutes of numeracy learning time requirements; the release of professional practice guides for curriculum, pedagogy and assessment for test and trial by schools; supporting primary schools to implement explicit teaching as part of high-quality responsive learning; English and mathematics scope and sequence curriculum resources for kindergarten to year 10; and a mandated system assessment schedule, meaning all primary and high schools will approach assessment in the same way, and this includes a progressive achievement test in reading and mathematics from kindergarten to year 10 and a year 1 phonics check in ACT schools.

I could go on about the achievements, but, to get to the specific question in relation to screen time, I said yesterday that the impact of screen time on brain development is well understood, but I would note that I also said our policy will be guided by consultation. So no, we are not going to see New South Wales doing something and leap to replicate that without actually talking to our teachers, our schools and our experts about how it would potentially work in ACT schools or whether a different approach is more appropriate.

MR PARTON: Minister, if you accept the evidence, as you have stated, what specific action has the government taken to reduce unnecessary screen use in ACT classrooms?

MS STEPHEN-SMITH: The feedback I have already received—and, indeed, this was included in the articles that reported on this over the last week or two—is that screen time is already very limited for younger children in the early primary school classes. We are focused on the evidence of what works, in terms of improving literacy and numeracy and student engagement. This includes establishment of a quality assurance service; assessing literacy and numeracy resources and intervention programs; providing professional learning to support teachers in implementing evidence-informed literacy and numeracy practices; providing almost $1.5 million in funding for evidence-informed resources in primary schools, including decodable readers; and $636,000 for resources for years 7 to 10. We are also starting delivery of a multi-tiered support pilot in four public schools which is focused specifically on literacy and numeracy learning, and we are launching a pilot program across 30 schools to support the implementation of instructional coaching models by schools to strengthen teacher classroom practice.

As I have said, this is built on a starting point where we already know that screen time is limited for younger children. As one of the teachers who commented on this said, sometimes they use screen time as a reward when children have been doing hard literacy and numeracy work, to say, "If we get this work done, we'll be able to do something on screens which also can be educative." The reality is that students have screens and technology in their lives every day and through their families, so we need to take advice from our schools, our teachers and our experts.

MR MILLIGAN: Minister, is this another example of this government ignoring evidence based policy in our education system?

MS STEPHEN-SMITH: No.

Government procurement—conduct in procurement

MRS MORRIS: My question is to the Minister for Education and Minister for the Public Service. Minister, yesterday in question time you said:

> … I do not have ministerial responsibility for the Public Sector Standards Commissioner and I do not have any responsibility in relation to the employment of individual staff in the ACT public service.

Minister, after Operation Kingfisher exposed corruption at the highest levels of government, including the most senior official in the Education Directorate, are you seriously asking Canberrans to believe that you bear no responsibility for ensuring staff within your directorate are being held accountable?

MS STEPHEN-SMITH: At the end of her question, the Deputy Leader of the Opposition has misrepresented what I said. I did not say that I bear no responsibility for people being held accountable. Senior leadership is accountable to ministers. But, when it comes to matters of employment of public servants, that is not the responsibility of ministers. Those are two different things.

I would also note that the findings of serious corrupt conduct that the Integrity Commissioner made in Operation Kingfisher were about two individuals specifically. The way that the Deputy Leader of the Opposition has phrased her question could be taken as an imputation against the current Director-General of the Education Directorate, and I want to put very firmly on record that the current Director-General of the Education Directorate had absolutely no involvement. There is no imputation and there are no allegations against her.

MRS MORRIS: Minister, do ministers have any responsibility for ensuring a culture of integrity and accountability within their directorates, or are you and your government throwing your hands in the air and saying that it is just not your job?

MS STEPHEN-SMITH: We absolutely do have a responsibility when it comes to maintaining a culture of integrity, responsibility and accountability. I am very clear, as I know my colleagues are, with senior officials from directorates—the directors-general, the deputies and the senior executive who report to us—that I expect frank and fearless advice and that, if they think that I or my office is stepping over a line, they should escalate that. I am clear with my directors-general and my deputies who report to me that, if they think anybody in my office is behaving in any way inappropriately in relation to the public service, they should escalate that matter to the chief of staff—or, if it relates to the chief of staff, to me directly. That has been a clear expectation in every portfolio I have had and with every senior official that I have worked with. But we do not have responsibility for public sector employment. These are two completely separate matters.

In relation to my role as Minister for the Public Service and in relation to my role as Minister for Finance with procurement, we have actually circulated additional guidance to both ministerial staff and the public service about the roles of ministerial offices and ministers in procurement processes. I am quoted in the Operation Kingfisher report in relation to ministers and their offices having no role in live procurement processes. This

new guidance, which is publicly available, is very clear—and our intention was to make it very clear—about where that responsibility sits in the context of a procurement process, where that responsibility ends and what to do if any public servant thinks that any office is doing the wrong thing.

MR PARTON: Minister, you have made it clear what you are not responsible for. Who in this government is responsible for preventing corruption and ensuring accountability—or, to borrow a famous phrase, are you standing there saying, "I don't hold a hose, mate"?

MS STEPHEN-SMITH: I would refer the Leader of the Opposition to my previous response. He obviously has been unable to pivot, because in my previous response I just said that ministers do have a responsibility in terms of culture and integrity, and—

Mr Parton interjecting—

MS STEPHEN-SMITH: I clarified that the only thing I suggested, yesterday and today, that we do not have a responsibility for in relation to these matters is the employment of public servants and clarified the role of the Public Sector Standards Commissioner as an independent assessor of public sector misconduct, inappropriate conduct, and, of course the Integrity Commission. We do not perform those roles; independent people are appointed to perform those roles, as is entirely appropriate and is supported by legislation in this place.

Government—supply and confidence

MS CASTLEY: My question is to the Chief Minister. Yesterday the Greens announced that their expired confidence and supply agreement with the government would not be renewed. Does the government still intend to deliver all of the commitments made under the expired agreement, such as the urban growth boundary?

MR BARR: I think the question is seeking an announcement of government policy, but clearly the supply and confidence agreement is no longer in place. I am not announcing today that the government is not intending to continue the policy directions that we have pursued, but obviously the agreement is no longer there. We will need to, as the Greens leader has said, consider every matter before us on a case-by-case basis.

MS CASTLEY: Chief Minister, will the government provide the Assembly, when you have reviewed, with a list of commitments in the expired agreement and confirm whether these will be continued and when they will be implemented?

MR BARR: I think we will need to go through two budget rounds. There is a range of areas of legislation and other pieces of work that are already in train. I want to be very clear that I am not signalling that we are walking away from the entirety of the previous supply and confidence agreement, but I also need to be clear, as the Greens leader has been, that that agreement is no longer place. We will look at each issue on its merits and bring forward government legislation and various other elements to the Assembly over the balance of this term.

Of course, many of the items contained within the former supply and confidence

agreement align quite closely with the government's election commitments from the 2024 election. I think there will be obviously be others for which we will look at each of those items and see where we go. It remains our intent to work closely with the Greens political party where we can. I will continue to meet regularly with Ms Clay in her leadership role, and ministers will continue to engage with Greens policy spokespeople. We will also of course engage with other crossbench members and the Canberra Liberals on each item as it comes forward.

Macquarie swimming pool—site lease compliance

MS CLAY: My question is to the minister for planning. Minister, the latest news on Big Splash is that the leaseholders want to comply with their lease by using the premises for an unlicensed family restaurant. There is speculation about whether putting up a food truck would meet that. There is no definition of an unlicensed family restaurant in the Crown lease, but the definition of "restaurant" in the Planning Act means the use of land for the primary purpose of providing food for consumption on the premises. It clearly means built premises, not a mobile food truck. What definition of "restaurant" does the ACT government apply for the purpose of assessing compliance with the Crown lease? Specifically, would a food truck or other mobile food vendor satisfy that requirement?

MR STEEL: I thank the member for her question. I understand that the regulator has made it clear in its media responses that proposed activities on the site cannot be evaluated until there are further details provided—so, until the current lessee of Big Splash comes forward with their plans. Access Canberra is basically saying that they would then consider that, at that time, to see whether it meets the purpose clause of the lease.

I just want to remind members—I think I have mentioned this quite a few times, but I will go back to 24 June 2025 and the *Hansard*, when I responded on behalf of the government to a petition that was brought by Ms Clay to the Assembly—that under the current Crown lease that was granted under the Land (Planning and Environment) Act 1991 and expires on 2 May 2105, the block is privately leased and the purpose clause in the lease currently allows for the purpose of an aquatic and indoor sports and recreation centre, and an unlicensed family restaurant.

I have been advised by the Territory Planning Authority that it is of the view that the Crown lease does not contain a clause that specifically requires the ongoing operation of the facility. However, under schedule 4(10) of the Planning Act 2023, failing to use land for a continuous period of at least one year, for the purpose for which the lease of the land is granted, constitutes an offence—and that has, of course, been the basis for the regulatory action that Access Canberra has been undertaking—

Ms Clay: Point of order, Mr Speaker.

MR SPEAKER: Stop the clock, there, please.

Ms Clay: My question was not about any specific proposal, which obviously has not come forward. My question was: what definition of restaurant does the ACT government or the regulator apply? So, is the definition of restaurant going to include

a food truck?

MR SPEAKER: I uphold the point of order because I think it is more of a generic inquisition about what is a restaurant for the purposes of the act, not necessarily in the specific situation of Big Splash. If you have that information, Minister?

MR STEEL: I am happy to take it on notice and seek some advice, although I think it is probably a legal question as to what the definition is—and ultimately it will be up to Access Canberra as the independent regulator to assess whether the lessee is meeting their lease requirements.

MS CLAY: Minister, do other laws require there to be built an operational toilet and bathroom with any restaurant? If so, would the regulator require that for compliance?

MR STEEL: I will seek that advice from Access Canberra in relation to this—noting that no actual plan, as far as they have advised me, has been put forward.

MR BRADDOCK: Minister, does a Mr Whippy food van or similar food truck meet the definition of an unlicensed family restaurant?

MR STEEL: I thank the member for his question. As he knows, that would be up to Access Canberra to determine, so I cannot provide a response on their behalf.

Justice and Community Safety Directorate—Director-General

MR EMERSON: My question is for the Chief Minister and it relates to the substantive role of the Director-General of the Justice and Community Safety Directorate.

Chief Minister, what type of leave is the person who holds that role currently on and why are they on that leave?

MR BARR: Personal leave, Mr Speaker, and I think that is well defined in enterprise agreements.

MR EMERSON: Chief Minister, when did that executive commence that period of personal leave, noting they were promoted to the role of Director-General of JACS in July 2025?

MR BARR: I believe it was in the middle of 2025.

MS CARRICK: Is the JACS DG on paid leave while their role is being filled by an acting DG, and if so, what has been the total remuneration for each of those positions over the last 12 months?

MR BARR: Yes, it would be normal practice for a deputy acting as a director-general to have their salary increased to reflect their acting responsibilities. That would be consistent with enterprise agreements. The exact amount obviously is published by way of Remuneration Tribunal determinations on what the director-general salary is versus a deputy director-general salary, and it is indeed customary for people who are on personal leave, provided they have sufficient entitlements accrued, to be paid that

personal leave.

Southern Gateway Planning and Design Framework—roads and transport infrastructure

MS CARRICK: My question is to the Minister for Transport. The Southern Gateway framework identifies the transition of Adelaide Avenue and Yarra Glen from a high-speed, grade-separated motorway to a more urban, multimodal corridor, potentially involving additional intersections, crossings, lower speed limits and changes to road capacity. As a significant primary transport commuter corridor for Tuggeranong, Woden, Weston Creek and Molonglo residents to get to jobs in Barton and the city, many people are concerned that journey times could increase, without clear evidence of the impacts. Minister, what modelling has been undertaken to quantify the impacts that crossings, traffic lights and intersections along Adelaide Avenue and Yarra Glen will have on travel times for buses and private vehicles, noting that the roads currently have no intersections due to the over- and underpasses?

MR STEEL: Transport infrastructure planning is still ongoing. We have had that discussion before with Ms Carrick. We have been very clear that we are seeking feedback on the vision for the Southern Gateway corridor, as part of the draft consultation that closed earlier this week. We are seeking from the community their view about the future design of the road environment. That is at a high level.

It includes things, for example, like incorporating active travel with safe, separated active travel paths, as part of the Adelaide Avenue and Yarra Glen corridor. There is already one on Yarra Glen, but there is not currently one on Adelaide Avenue. There is the incorporation of landscaping. We have provided an indicative cross-section of what the future road layout might be, which incorporates, for example, bus priority lanes and light rail, as well as a bi-directional active travel path on the western side of Adelaide Avenue.

We are seeking that high-level feedback on those design elements and what needs to be included. Once we have finalised the framework and undertaken further work on infrastructure and transport, we will then refine the design, and that will be taken forward in potential upgrades to the corridor in the future.

The things that Ms Carrick was talking about in the preliminary part of her question have not been determined at this point in time. We are seeking feedback on the high-level design for the corridor at this stage; then there will be further refinement of that design as those projects come forward.

Ms Carrick: A point of order. Mr Speaker, we know all of that. My question was: what modelling has been undertaken to quantify the impact of all of this so that the community know what they are commenting on?

MR SPEAKER: The time has expired, but I would go to the point of order—and the minister might address it in his supplementary—on relevance. I think the question specifically, Minister, was about what modelling had been done. You were responsive. You went through some detail in answering, but maybe in the supplementary you can go to whether or not any modelling has been conducted.

MS CARRICK: Minister, what speed limits are being contemplated for Adelaide Avenue and Yarra Glen under the Southern Gateway framework, and does the government intend these roads to be humanised, like Northbourne Avenue?

MR STEEL: I thank the member for her question. I do not think she listened to what I said in the earlier answer. I clearly said that we have not done that work, and we will need to undertake further work to refine the more detailed design. Once we have gone through the consultation, which has only just ended this week, and we have the feedback, we need to promulgate the feedback and consider it in relation to what the community wants for the design of the avenue. That will include, for example, consideration of a more active boulevard that might incorporate active travel, as well as landscaping elements. There are no trees in the median strip at the moment; there is a forest of signs there instead. Opportunities, of course, have been considered for light rail, as part of that, as well as the current bus priority in the corridor. Once we have heard that high-level feedback about the vision for the corridor, that further refined work will be occurring.

No, we have not made a decision about the future speed limit. That is something that would occur later, once further work has been done on the design of the corridor and all the elements that the community would like to see incorporated within it. There has been a lot of feedback around active travel. It has been one of the main features of feedback from the community, as part of the consultation. We have seen more than 400 responses from the community, which is great to see—one of the larger planning consultations that the ACT government has ever conducted, which shows the level of interest from the community, which is very welcome, having regard to the future of this area, including the transport elements and the land use elements of the plan.

MR EMERSON: Minister, when will the design work on the Mint interchange be undertaken to connect Cotter Road to Yarra Glen, keeping through-traffic on arterial roads and off the local streets?

MR STEEL: I thank the member for his question. I am not announcing the Mint interchange project today in question time. It is certainly contemplated, as part of the Southern Gateway corridor, which is a vision for the corridor to 2050 and beyond. It is a longer term plan. The opportunity for a Mint interchange is included within the plan. We have been seeking feedback on that. At the moment it is not possible to move in all directions in the corridor. There is already a Cotter Road flyover, for those vehicles that are heading south and to the west but not necessarily in other directions.

There is the opportunity potentially to have that infrastructure in the future to support some of the land use changes that are contemplated in the plan. We have been seeking feedback on that. Given that the consultation has only just closed, and I have not had the opportunity yet, because it is all being promulgated at the moment, to be able to see what the community has said about that, the government will consider those matters and look at what the alignment is with some of the land use changes in the corridor, and whether that infrastructure would be needed in the medium to long term.

Health—AI note-taking—costs

MR PARTON: My question is to the Minister for Health. Minister, the government has introduced ambient artificial intelligence technology to assist clinicians with case-noting and administrative tasks. Given the investment involved in implementing this technology and reports of issues associated with its use, my question relates to the cost of implementation and its uptake across the health system. Can you outline the total cost to date of implementing ambient AI case-noting technology across the ACT public health system? And can you present the cost per individual licence or user?

DR PATERSON: I thank Mr Parton for the question. This is currently a pilot of ambient AI technology that is being trialled in Canberra Health Services. It is basically like a transcription service that specialised clinicians will use to take notes. The pilot commenced in July 2026 and has been expanded across 11 clinical services at Canberra Hospital and North Canberra Hospital. It now includes 108 enrolled users, with 53 active users generating more than 1,800 clinical summaries. Over 50 users have been enrolled in the pilot but have not yet used the application.

The AI application is called MedTalk. This is an AI-enabled ambient documentation solution that is reducing clinician administrative burden and cognitive load associated with digital healthcare systems. As I said, this pilot is designed to streamline this documentation and enable clinicians to spend more time face to face with clients.

MR PARTON: Minister, how many incidents, complaints or reported issues relating to this new technology have been reported since its implementation? And can you provide clarification around how issues or incidents are being categorised?

DR PATERSON: This is a pilot at the moment. Digital Canberra is taking feedback from clinicians who are using the application. This will be a project of active learning from the rollout.

Mr Cocks: Mr Speaker, on a point of order under standing order 118AA: I do not believe the minister has answered the question, which was very clearly about how many incidents, complaints or reported issues relating to the technology have been reported since its implementation.

MR SPEAKER: On the point of order, Minister?

DR PATERSON: It is basically constant. They are receiving constant feedback from clinicians on their use of the application. I will take on notice if there is any specific number of issues. But it is a pilot, as I said, so Digital Canberra is working very actively and closely with clinicians to understand what the issues are in developing this system.

MR SPEAKER: Given her response to the point of order and the fact that she is taking it on notice, Mr Cocks, there is no point of order.

MR COCKS: Minister, has any clinical information generated or transcribed by the technology been a factor in an incident, near miss or requirement for correction?

DR PATERSON: I will take it on notice.

Foundational Supports and Thriving Kids

MR CAIN: My question is to the Minister for Disability, Autism and Neurodiversity—recognising that Minister Steel will be answering.

On 31 August 2026, the government advertised for a Thriving Kids Implementation Officer, with applications closing today, just 17 days before the program is due to commence. The role includes "leading implementation, developing service pathways and processes and supporting workforce engagement". Minister, which of these responsibilities were still required to prepare Thriving Kids for its 1 October commencement when the position was advertised, and what specific implementation tasks remained incomplete at that time?

MR STEEL: I will take it on notice, but I do refer Mr Cain—on behalf of Minister Orr—to the statements that Minister Orr has made to the Assembly, including the ministerial statement this morning. She has made it very clear to the Assembly that there is a huge amount of work that is occurring in the ACT government to prepare for the gradual phase-in, which commences from 1 October 2026, and she has made it abundantly clear that the full implementation will be by 1 January 2028.

There have been considerable existing resources that have been devoted to this task. Of course, the focus is also on enhancing existing services to respond to current demand, strengthening system foundations, preparing the workforce and continuing consultation with families, carers, service providers and the broader community. Next year will see the gradual rollout of new and commissioned services, expanded targeted supports and improved navigation and outreach services to help families access the support that they need—and I am not surprised to hear that there is active recruitment that is occurring at the moment to be able to support the gradual phase-in of the Thriving Kids program.

MR CAIN: Minister, who was performing these functions before the position was advertised and when was the need for an additional officer identified?

MR STEEL: I think I already addressed that in my previous answer. Considerable existing resources have been devoted to the planning and rollout of Thriving Kids. But if I can come back with some further information on notice I will.

MR MILLIGAN: Minister, will the successful applicant commence before 1 October? If not, how can they "lead implementation" before the program commences?

MR STEEL: The program is being phased in. I think there is some misunderstanding by members of the opposition about that. I have heard Minister Orr clarifying the point in the chamber on a number of occasions—and I will clarify it again—that it is being gradually phased in from 1 October, with full implementation by 1 January 2028. So it is not surprising that there is work occurring now to expand the workforce to be able to support the rollout, but there has been considerable existing resources within government devoted to this task for some time.

Mr Cocks: Mr Speaker, a point of order on relevance. The question was with regard to a very specific role, which included "leading implementation, developing service pathways and processes and supporting workforce engagement". Mr Milligan has asked

about that specific role, not about broader implementation.

MR STEEL: As I said, I have already taken the previous questions on notice. Given that the role title talks about leading the broader rollout, yes, there has been existing resources devoted to that task.

Early childhood education and care services—Edge Early Learning closures

MISS NUTTALL: My question is to the Minister for Education and minister for early childhood development. Minister, the closure process for Edge centres in Charnwood and Higgins was not in line with national requirements. The centres shut their doors on the same day they went into administration when proper process requires at least a two-week closure period. This meant families and educators were left shocked and scrambling to find alternative caring employment. At a community stall that we held to support parents and educators that week parents and educators told us they had not known what to do and were overwhelmed and confused by what happened. Minister, why did the Education Directorate not put out any central communications to parents or establish a hotline to support those affected by the closures, as had been done previously?

MS STEPHEN-SMITH: I will take the detail of the question on notice in terms of what the Education Directorate did. In relation to Edge Early Learning in Charnwood, I can advise that on 20 August 2026, following an application by Edge for an internal review of the imposition of a condition, CECA decided to suspend the service for a period of three months. That decision also affirmed the original condition and imposed an additional condition on the service. CECA determined that the suspension was necessary and proportionate due to the history of supervision failures. Of course, Edge then subsequently indicated to the community that it was going into administration on 26 August. At the time of the announcement Children's Education and Care Assurance, CECA, had already suspended Edge Early Learning in Higgins, and—along with the South Australian and Queensland regulatory authorities and the Australian regulator—they are now working closely with the administrators.

In relation to the notice of suspension for Edge Charnwood taking effect on 3 September to 3 December, the administrators took responsibility for advising families and staff of the suspension. CECA does have a number of ongoing investigations in relation to all Edge services and Edge as a provider, but the provider itself did take responsibility for that. I apologise to any families who were expecting more support from the Education Directorate, and I will follow up in relation to what happened there.

MISS NUTTALL: Minister, given the inconsistency between public statements released by Edge and those issued by CECA, wouldn't it have been appropriate for the government to act as a central source of trusted information and support rather than leaving families to piece together the information from media reports and provider statements?

MS STEPHEN-SMITH: I agree that clear communication with families is important, and CECA does strive to do that. I think this was a complex situation because the regulatory action that was being taken by CECA was during an overlapping timeframe

with Edge going into administration, so there were some mixed messages around that. Our consistent message to parents, families and carers was that they should be using the StartingBlocks website to identify suitable ECEC services with availability in the region that made sense for them, which I guess for Charnwood would either be in that region or close to their workplace, if that made sense for them. Occupancy data obtained from the Australian government indicates that multiple services in the proximity of Edge services have available places for children, so I would just reiterate that message. I hope that Miss Nuttall and her colleagues when they were receiving representations from parents and families were also pointing them to the StartingBlocks website. That is what it is there for: to ensure that families can get trusted information.

MS CLAY: Minister, why are families being asked to bear the consequences when private childcare providers fail rather than there being a robust government safety net to ensure continuity of care?

MS STEPHEN-SMITH: I thank Ms Clay for the question, but I am not quite sure what kind of safety net she thinks that governments should be able to provide. As I have indicated, StartingBlocks is a centralised system website with support that provides information for families so that they can make their choice about where they would like to transfer their children to. Usually there is more notice, and I would expect—I have a very clear expectation—that providers would in fact give notice to families around closure or potential closure and that they would be supporting families to find alternatives. Obviously families have access to StartingBlocks.

I am struggling to understand what kind of safety net Ms Clay is referring to, but I will certainly take that back to the directorate and have a conversation with Mr Moysey and CECA about the supports that we are able to provide. I am conscious that there has been support that has been provided to families in previous instances of early learning centre closures or disruption. I am not sure how this situation compares to that, but, as I say, it was a complex situation because a couple of different things were overlapping.

Public housing—vacant properties

MS BARRY: My question is to the Minister for Housing and Homelessness, and Mr Steel in her place. I refer to data that the housing minister recently cited in a response to a question on notice, indicating that the number of vacant public housing properties jumped from 99 properties at the end of March to 188 properties at the end of June. Why has the number of vacant public housing properties almost doubled in the three months from March to June?

MR STEEL: I will take that on notice.

MS BARRY: Why are the ACT's public housing properties vacant, on average, for over 50 days longer than they were 12 months ago?

MR STEEL: I will take that on notice.

MR CAIN: How can you, or your minister, justify this increase in vacancy span to the 3,600 people on the public housing waitlist?

MR STEEL: I thank the member for his question. I will provide some better information in relation to the question I took on notice, for the previous question.

Planning—Lyneham neighbourhood oval

MS VASSAROTTI: My question is to the Minister for Sport and Recreation. I see that the Territory Planning Authority is progressing a Territory Plan Variation for part of what I know as Lyneham Neighbourhood Oval No 1. The idea is to turn part of that oval into a car park for the Brindabella Christian College.

The previous Minister for Sport and Recreation provided advice in 2023 that the oval was to be repurposed and this was still the case as late as November 2025. I now see that Lyneham 1 Neighbourhood Oval has been identified for potential reactivation, and community input is being sought. The minister will be aware of the opposition to the use of the oval as a car park. Does this initiative mean that all of the oval will be reactivated, and how does the plan variation proposal impact on the reactivation idea?

MR STEEL: I thank the member for her question and I refer her to the documentation associated with the Major Plan Amendment that has been published for Section 65, Block 42, which is known as DPA—sorry, my apologies—Section 41, Part Block 23 Lyneham, which is known as DPA 12. So it is referring just to part of the block and, of course, is focused on the Brindabella Christian College car park. Now, that matter is going through the statutory planning process at the moment. All of the documentation is on there to have a look at about what is being proposed, but a decision has not yet been made to approve that Major Plan Amendment at this time.

Ms Vassarotti: Point of order. My question was actually asking about the reactivation plan and its connection to DPA 12.

MR SPEAKER: Point of order on relevance or?

Ms Vassarotti: On relevance, yes.

MR SPEAKER: Do you have anything further to add minister?

MR STEEL: The Major Plan Amendment again only relates to part of the block, not the other part of the oval that Ms Vassarotti is referring to. Further information is detailed in the documentation on the planning website.

MS VASSAROTTI: Brindabella Christian College has talked in the past of the benefits in reactivating the oval so that it could be used by students at the college. If this planning proceeds, will the government be looking to Brindabella Christian College to make a contribution towards the costs of reactivating the oval?

MR STEEL: Well, the decision in relation to DPA 12 will be made in accordance with the Planning Act 2023 requirements. That decision has not yet been made at this time, but it will be made consistent with those statutory requirements.

MISS NUTTALL: What would "reactivating" mean in this case? Is it just improving the oval, irrigating the oval, or do you intend to add additional facilities such as a toilets

and change rooms?

MR STEEL: I am not announcing a reactivation of the oval. What I am saying is the government is considering a planning proposal on part of the block through the statutory planning process and that has provided an opportunity for people to have their say in relation to that proposal. The decision will be made based on the statutory planning provisions of the Planning Act.

Canberra Hospital—food services

MR PARTON: My question is to the Minister for Health. Minister, I often hear that the inpatient food offering at the Canberra Hospital is one of the most complained about parts of the service. I did not find it too bad on Saturday. We are aware that Canberra Health Services has previously considered and invested in a room service model for hospital food, including the development of a test kitchen. What is the status of the Canberra Hospital room service model rollout?

DR PATERSON: I thank the member for the question. I am glad to hear that he found his meal to be okay, on his visit to Canberra Hospital. Currently, Canberra Health Services is working with the Health Care Consumers Association on the model of food within Canberra Health Services. There has been a lot of feedback. It is one of the issues that gets the most amount of feedback from Canberra Health Services. It is something that the government is really committed to working on. There has been a lot of investment in this over previous years, and a lot of work has been done on this. We are very committed to improving the food offering for patients within Canberra Hospital.

MR PARTON: What has been the total cost incurred to date, including any equipment, procurement, consultant or project management costs? Just to be clear, are we absolutely committed to the fact that this model will go out across TCH?

DR PATERSON: That is currently what Canberra Health Services is working on. I will take the question on notice and provide as much detail as possible.

MR COCKS: In the event that this project is, in fact, going ahead, what would the projected completion date for the model's implementation be?

Mr Pettersson: A point of order. It is a hypothetical question.

Mr Cocks: On the point of order, Mr Speaker. In this instance it is not hypothetical; it is in fact simply a question that flows out of the answer to a question that the minister had to take on notice.

MR SPEAKER: I do not think there is a point of order. It is about the date of implementation for a program that is planned. I think it is reasonable, if the minister has a date, that she should provide it. If she does not have a date, that is reasonable, too.

DR PATERSON: It is an ongoing piece of work, and it is a continuous improvement piece of work. I will take it on notice and provide any information back to the Assembly.

ACT Ambulance Service—staffing

MR BRADDOCK: My question is to the Minister for Police, Fire and Emergency Services. Last week, on 10 September, the ACT Ambulance Service night shift was so understaffed that emergency contingencies had to be exercised, including getting New South Wales to add an extra ambulance to the Southern NSW sector and an additional ACT Fire & Rescue crew for the shift. Minister, why was this the case? And what active steps are being undertaken to ensure this issue of extreme short-staffing does not occur again?

DR PATERSON: I thank the member for the question. On 10 September, ACTAS faced a predictable critical shortage of staff, so the Commissioner of the ACT Emergency Services Agency acted quickly to support frontline paramedics and implemented a contingency plan. As a result, an additional Fire & Rescue crew was deployed to support ambulance crews and additional emergency call-takers were put on for the evening. These are contingency arrangements that allow us to maintain frontline service delivery. This is why it is really good that we have an Emergency Services Agency where our Ambulance Service and Fire & Rescue can work together when there are critical staff shortages.

As we have been very clear and up-front about with the Assembly, our ACT Ambulance Service is under quite extreme pressure at the moment. There have been very significant increases in calls for service. Chief Officer Dutton has released a new workforce strategy, which I tabled in the Assembly earlier this year, and we are currently providing quarterly reporting of some of the data around the ACT Ambulance Service. We also saw a quite significant investment in the last budget round of 32 extra full-time-equivalent positions on top of our current full-time staffing profiles. Chief Officer Dutton is working very fast to try to recruit to those positions. We currently have a graduate round that is completing by, I think, the end of the year, which will see graduate paramedics enter the service. *(Time expired.)*

MR BRADDOCK: Minister, how does the government ensure minimum intensive-care paramedic staffing is maintained in shifts and not just rely on the duty officer and the duty commander having these critical skills?

DR PATERSON: They have a very detailed roster service. The point of that is to ensure that we have a 44-hour emergency operation of ACT paramedics and the ACT Ambulance Service. As the Assembly is well aware, we went to this new rostering service two years ago. I released the evaluation of the roster review which highlighted that the new roster is working very well for paramedics. We still have more work to do, so we are committed to working with the ACT Ambulance Service and ESA. Even today, I met with a group of very committed and dedicated female paramedics who came and spoke to me about some of the challenges with flexible work arrangements in the Emergency Services Agency. We will continue to work through these issues. We are also working very closely with the TWU. I thank them for their ongoing and very regular engagement around some of the issues. We really want to support our paramedics. They do an incredible job and they are a service under pressure at the moment. We are committed to supporting them and are having very active conversations with colleagues and with the service, and we will continue to do so.

MS VASSAROTTI: Minister, when was the last internal intensive care paramedic

course completed, and when will the next one run?

DR PATERSON: I am not sure if it is an intensive care paramedic course. I am not exactly sure which course is running at the moment. I will provide an answer on notice to the Assembly. But we currently have some paramedics going through their training at the moment. About 15 will look at graduating towards the end of the year. I went to meet them recently. They are all very keen and very invested in joining the Ambulance Service in the ACT.

Mr Barr: All further questions can be placed on the notice paper.

Supplementary answers to questions without notice

Macquarie swimming pool—Crown lease compliance

MR STEEL: In answer to a question during question time relating to the definition of a restaurant, I have been advised by the City and Environment Directorate that, from the ACT Planning and Land Authority definitions 2008-2027 document—and I quote:

> **Restaurant** means the use of land for the primary purpose of providing food for consumption on the premises whether or not the premises are licensed premises under the Liquor Act 2010 and whether or not entertainment is provided.

Planning—Lyneham neighbourhood oval

MR STEEL: In answer to Ms Vassaroti's questions in relation to Lyneham Oval, whilst the government, through the Territory Planning Authority, is not proposing zoning changes for the reactivation of the broader oval, the City and Environment Directorate is currently consulting on the reactivation of dryland ovals, including Lyneham 1, which is one of five shortlisted sites identified by CED because it possesses a range of features that could support future reactivation, such as car parking, deactivated toilet facilities or existing irrigation infrastructure that could be recommissioned.

The activation, or reactivation in this context, means commissioning it as an irrigated oval, and the purpose of the consultation that is underway at the moment is to hear from sporting groups that might want to use an activated irrigated oval, or the broader community for informal use. That is currently open for consultation on the Your Say website.

Macquarie swimming pool—Crown lease compliance

MS CLAY: I thank the minister for the answer, in reading out the definition that we put in our question. I want to clarify whether Mr Braddock's supplementary about whether a car park was required as part of the restaurant is still being taken on notice.

MR STEEL: Yes.

Committee documents and deliberations—confidentiality

Statement by Speaker

MR SPEAKER: I want to make a comment about the confidentiality of committee documents and deliberations. In two recent committee reports, the attention of the Assembly has been drawn to circumstances where committee deliberations and documents have been provided to persons outside the membership of the committee or OLA staff attached to that committee. The Select Committee on Estimates 2026-2027 found that a committee document may have been shared in full outside the committee and without its authorisation. Such an action would contravene standing order 241(b). It recommended that the Speaker urge members and their staff to meet their obligations relating to committee documents under the standing orders.

Similarly, in its consideration of a report from the Commissioner for Standards, the Standing Committee on Administration and Procedure experienced an instance where a document which was not authorised for publication was given to a person outside the committee. In its report, the committee recommended that the Assembly adopt the recommendation that members be reminded that standing order 241(b) clearly states that committee evidence, documents, proceedings and reports may not be disclosed or published to a person other than members of the committee, or Assembly employees, if necessary, in the course of their duties, unless they have been reported to the Assembly or authorised for publication by the committee.

Members, there is no circumstance where a committee document not authorised for publication should be provided to anyone outside the committee, nor should the deliberations of private meetings of a committee be discussed. The only time when a committee report may be discussed with colleagues on a confidential basis is in the time between the substantial conclusion of the committee's deliberations on a report and its presentation to the Assembly.

Papers

Ms Cheyne, pursuant to standing order 211, presented the following papers:

> ACT Aboriginal and Torres Strait Islander Agreement 2019-2028—National Agreement on Closing the Gap—Annual Report 2024-2025, undated, together with a statement.
>
> Audit of previous motorcycle reports, dated September 2026.
>
> Climate Change adaption and emissions reduction planning—Assembly resolution of 23 September 2025—Government response, dated September 2026.
>
> Climate Change Strategy—Consideration for the next Strategy—Assembly resolution of 17 March 2026—Government response, dated September 2026.
>
> Early Childhood Education and Care Sector—Child safety and safeguarding measuring—Improvement—Assembly resolution of 24 February 2026—Government response, together with a statement, dated September 2026.
>
> Motorcyclist Safety—Improvement—Assembly resolution of 18 March 2026—Government response, dated September 2026.
>
> Tuggeranong Ice Sports Facility development—Assembly resolution of 26 June 2025—Government response—Quarter 3, dated 17 September 2026.

Urban growth boundary—Establishment—Assembly resolution of 10 April 2025— Government response—Half yearly statement—Statement on progress in considering an urban growth boundary, dated July 2026.

Federal government—private health insurance rebate changes

MR PARTON (Brindabella—Leader of the Opposition) (3.01): I move:

That this Assembly:

(1) notes that:

(a) the Australian Government has introduced the Private Health Insurance Amendment (Modernising the Private Health Insurance Rebate) Bill 2026, which would remove the higher private health insurance rebate currently available to Australians aged 65 and over, with the proposed changes to commence on 1 April 2027;

(b) the Australian Government estimates the measure will affect approximately 3.2 million Australians aged 65 and over and result in approximately 44,000 fewer older Australians holding private health insurance by 2028-2029;

(c) recent polling indicates that almost 40 percent of seniors surveyed in outer-suburban and regional electorates are more likely to drop their private health insurance as a result of the proposed changes; and

(d) the ACT has one of the highest rates of private hospital insurance coverage in Australia, with 54.2 percent of the population holding hospital treatment cover as at December 2025, compared with 45.6 percent nationally;

(2) recognises that:

(a) private health insurance makes an important contribution to healthcare capacity in the ACT by supporting access to private hospital and specialist services and helping to reduce demand on the public hospital system; and

(b) the ACT public health system is already under significant strain, including workplace culture and morale challenges, the threat of occupational violence on the workforce, prolonged elective surgery waiting times and pressure on emergency departments, hospital beds and specialist services;

(3) further notes with concern the warnings from the New South Wales, Queensland and Tasmanian health ministers that removing the higher rebate for older Australians risks increasing demand for public hospitals and shifting additional costs and demand from the Commonwealth to state and territory health systems;

(4) considers that increasing the cost of private health insurance for older Australians risks encouraging some people to downgrade or abandon their private cover, placing additional pressure on the ACT's public hospitals and potentially increasing demand for public hospital services; and

(5) calls on the Government to:

(a) make representations to the Australian Government urging it to abandon

the proposed removal of the higher private health insurance rebate for Australians aged 65 and over;

(b) write to the Federal Minister for Health and Ageing, the Hon Mark Butler MP, outlining the ACT Government's opposition to the proposed changes and the potential impact on the ACT public health system; and

(c) provide a copy of that correspondence to the Assembly within 30 days of this motion passing.

Those of us on this side of the Assembly believe that older Canberrans should not have to choose between paying more for their private health insurance or facing extended wait times to receive care in our public hospitals. We believe they should not be penalised for having planned ahead or for choosing how they access care, and we believe they should not be penalised for having taken responsibility for their own health care. They should not be forced out of the private health system by a decision that ultimately puts even more pressure on the public health system.

The Albanese government is proposing to remove the higher private health insurance rebate currently available to Australians aged 65 and over. The commonwealth estimates that around 3.2 million Australians aged 65 and over will be affected, and it estimates that there will be around 44,000 fewer older Australians holding private health insurance by financial year 2028-29 as a result of the changes. That last number is very important because the government itself expects this policy will result in fewer older Australians maintaining private health insurance. So the question we have to ask is "Where do those people go?" because they will continue to seek health services. They do not disappear from the health system, they do not stop needing treatment, they do not stop needing surgery, they do not stop needing specialists, and they do not stop needing hospital care.

Some will simply move from the private system into the public system, and that matters here in the ACT. It matters because the ACT has one of the highest rates of private hospital insurance coverage in Australia. More than half of Canberrans—54.2 per cent—held hospital treatment cover as at December 2025, and that is compared with 45.6 per cent nationally. It means that private health insurance is not some marginal part of the ACT health system; it is an important part of our healthcare capacity.

Every Canberran who receives treatment through the private system is someone who is not requiring that same capacity from our public hospitals, and that capacity matters because our public health system is already under strain. We have prolonged elective surgery waiting times, we have pressure on emergency departments, we have pressure on hospital beds, we have pressure on specialist services, and we have a health workforce that is already dealing with significant challenges.

On 20 August, I wrote to the commonwealth Minister for Health and Ageing, the Honourable Mark Butler MP, setting out these concerns and urging the Albanese government to reconsider the proposed changes. In that letter, I also called for the commonwealth to publish the modelling underpinning its estimate that only 44,000 additional older Australians will lose private health insurance or will move away from it, to properly assess the impact of reduced private health insurance membership on state and territory public hospitals, because no-one believes the 44,000 figure.

I made that request because this is not simply a commonwealth budget measure; it has huge consequences for the ACT. In 2024-25, only 67 per cent of ACT elective surgery patients were admitted within the clinically recommended timeframe. For patients who were overdue for surgery, the average wait was 164 days. We cannot pretend that adding more demand to that system—significant demand—will have no consequences. It will. It means more pressure on hospitals, it means more competition for beds and operating theatres, and, ultimately, it risks longer waits for Canberrans who are already waiting for care.

We are not out on our own at all. These concerns have been raised by other states and they should not be dismissed. New South Wales—under a Labor government—Queensland and Tasmanian health ministers have all raised similar concerns about the commonwealth's proposal, because they can clearly see that this is a cost shift from the feds to the states and territories. They have warned that reducing private health insurance coverage is likely to increase demand on public hospitals. They have warned about the consequences for already pressured health systems. They have raised concerns that the commonwealth is shifting additional costs and demand on to the states and territories, and that is exactly what is going on here. These concerns are not ideological. They are simply not. They are concerns expressed by both sides of the political scale. They are practical. They come from governments that are responsible for running public hospitals, and they are concerns that this government should be listening to.

There is a very simple question at the heart of this debate: who pays when people leave the private health system? The commonwealth gets the savings from the reduced rebate, but, if more people then require treatment through public hospitals, the states and territories carry the additional pressure. This is not a sustainable approach to health policy, it is not responsible policy-making, and it is certainly not good enough for the ACT.

I want to acknowledge that, for many older Australians, private health insurance is not a luxury; it is something that they have paid for over many years. They have made decisions about their household finances on the expectation that maintaining private cover would provide them with greater choice and greater certainty when they need health care. As you and I know, Mr Speaker, as we tick off the birthdays, when you get to our age and beyond, health care is required. For many retirees, their income is largely fixed. They cannot simply absorb every additional increase in household costs. We know that private health insurance premiums are already a significant expense for many families. When the government reduces the rebate available to older Australians, it is not an abstract policy change; it is another cost being placed on people who may have very limited capacity to absorb it.

The polling referred to in this motion should concern us. Almost 40 per cent of seniors, retirees and pensioners surveyed in outer suburban and regional electorates indicated that they would be more likely to drop their private health insurance as a result of these proposed changes. If even a portion of these people make that decision, the consequences for public health systems will be significant.

We are in line with New South Wales Labor on this. We think they are on the money. Once again, we have come back to the same question: where do these people go? They

go somewhere. They will still need health care, they will still need surgery, they still need specialists, and some will end up in our public hospitals. A responsible government should be doing everything that it can to ensure that our public hospitals have the capacity to care for the people who need them. That means looking at every part of the health system that contributes to that capacity. Private health insurance is one of those parts. A responsible government should not be making policy decisions that risk reducing private capacity while our public system is already struggling to keep up with demand, because it does not make sense.

I accept that this is a commonwealth policy and the ACT government cannot change the rebate, but that does not mean that the ACT government does not have a role to play. The ACT government is responsible for our public hospitals, it is responsible for the pressure that those hospitals face, and it is responsible for advocating for the interests of Canberrans when commonwealth decisions have consequences for our health system, whatever the stripe of the government in power up on the hill.

That is exactly what this motion asks the government to do. It asks the government to make representations to the commonwealth, to their federal colleagues, to abandon the proposed removal of the higher private health insurance rebate for Australians aged 65 and over, and, importantly, it asks the Minister for Health to put that position in writing to the commonwealth Minister for Health and Ageing, Mark Butler, and provide a copy of that correspondence to this Assembly. It is not an unreasonable request. We are not asking the ACT government to do something outside of its powers. We are asking the government to advocate. Our request costs nothing—but, if changes are not made, it is going to cost a lot: to make the case for Canberrans and to stand up for the capacity of our public health system.

There is an important principle at the heart of this motion: government should not make one part of the health system more expensive and then expect another part of the health system to absorb the consequences. If the commonwealth wants to save money by reducing support for private health insurance, it needs to properly consider what happens next, because people do not stop needing health care simply because their insurance becomes unaffordable. They move somewhere else, and in the ACT that somewhere else will be an already stretched public hospital system. Older Canberrans should not have to choose between paying more for private health insurance and waiting longer in our public hospitals. I commend my motion to the Assembly.

DR PATERSON (Murrumbidgee—Minister for Health, Minister for Mental Health, Minister for Police, Fire and Emergency Services, and Minister for Gaming Reform) (3.11): I thank Mr Parton for the motion and for having this discussion today. I would like to allay his fears and say that we do not believe that there will be huge consequences from this change. The commonwealth government, as Mr Parton said, has introduced the Private Health Insurance Amendment (Modernising the Private Health Insurance Rebate) Bill 2026. The bill proposes to modernise the private health insurance rebate by removing the higher age based rebate for Australians over 65 and replacing it with a single income test system.

Under the proposal, from 1 April next year Australians who hold private health insurance would receive a rebate based on income rather than age. This seems a fair and reasonable measure. Based on current settings, a single person earning less than

$105,000 a year would receive a rebate of 24 per cent, regardless of whether they are 25, 65 or 85 years old. A person earning between $105,000 and $123,000 would receive a rebate of 16 per cent, while someone earning between $123,000 and $164,000 would receive a rebate of eight per cent. The additional rebate currently available to older Australians ranges from around four to eight per cent, depending on their age. For a person over 65 earning less than $105,000 a year and holding a basic hospital policy, that equates to around $1 a week.

It is important that we ground this debate in evidence, which is why an amendment has been circulated in my name. It is an amendment to monitor data on private health insurance coverage amongst people over 65 in the ACT after 1 April to determine whether the rebate reduction reduces coverage over time. Around 65 per cent of Canberrans aged over 65 currently hold private health insurance. That compares with coverage of 54 per cent across all age groups in the ACT and 45 per cent nationally. We are therefore starting from a position of strong participation in our private health insurance schemes, particularly among older Canberrans.

The commonwealth modelling, as Mr Parton is aware as a result of his correspondence with Mr Butler, suggests that the impact on participation will be very small. Mr Butler says the Department of Health, Disability and Ageing estimates the national impact will be small, with the insured population projected to be around 0.4 per cent lower in 2028-29 than under the current arrangements. For the ACT, this means approximately 698 people over 65 may choose to change their insurance arrangements because of these changes. The advice available to me is that, if there is any behavioural impact, it will more likely result in some people downgrading their level of cover rather than leaving private health insurance altogether. Importantly, the changes will not affect a person's ability to see a GP, attend a walk-in centre, receive treatment as a public patient in an ACT hospital or access aged-care facilities. On the evidence currently available, the impacts appear limited.

The ACT government is broadly supportive of the federal government's approach because there is also a broader principle at play: a universal income-tested rebate is a fairer and more equitable system. It directs support according to a person's capacity to pay rather than age alone and it ensures families facing the significant costs of raising children while maintaining private health insurance receive the same level of support as others on comparable incomes. At its core, this is a question of intergenerational fairness.

It is also important to consider how the savings generated by this reform will be used. The commonwealth government has indicated that these savings will be re-invested in aged care, including additional residential aged-care places and expanded home-care support. If there is one message governments hear consistently from older Australians, their families, service providers and advocates it is that access to aged care remains one of the most pressing challenges facing our community. People want to age with dignity. They want to remain independent for as long as possible. They want timely support when they need it and appropriate care when living at home is no longer an option. That is why we continue to advocate for greater investment by the commonwealth government in aged care.

There is the critical issue of capacity in our health system. There are currently around

80 patients in the ACT who remain in hospital, despite no longer requiring acute care, because suitable aged-care placements or supports are unavailable. Every state and territory is grappling with the same challenge. Nationally, more than 3,600 patients are unable to be discharged from hospital due to shortages of aged-care places. Recently, I joined health ministers from every jurisdiction and this issue was a major focus of discussion. I welcome Minister Butler's commitment to continue working with the states and territories, along with the commonwealth's investment in additional Support at Home packages and new facilities.

These initiatives are welcome, but the commonwealth has the perfect storm of an issue that ultimately represents decades of underinvestment in aged care. I will continue to advocate for further investment in aged-care capacity in the ACT and for action to address delayed discharge patients. The amendment that I will put forward today reflects that commitment. It redirects this debate, away from opposition to a relatively modest policy change, over which this Assembly has limited influence, and towards the issues having the greatest impact on older Canberrans.

The amendment acknowledges that the Senate Standing Committee on Community Affairs is currently examining the bill. The government will carefully consider the committee's findings as an important source of evidence on the likely effects of the legislation. The amendment also commits the government to ongoing monitoring of private health insurance coverage amongst older Canberrans. While current projections suggest impacts will be limited, good governments do not rely on assumptions. They monitor outcomes, access evidence and respond accordingly, so we will continue to track this data.

This evidence may also inform our ongoing work to reduce elective surgery wait times. Elective surgery is the area of health care in which private health insurance is most frequently utilised, helping reduce pressure on the public system. Canberra Health Services is making strong progress, delivering a record 17½ thousand elective surgeries in the 2025-26 year and halving the number of patients overdue for surgery, based on clinical assessment. The amendment that I have circulated also commits the government to raising this matter directly with Minister Butler. I acknowledge that Mr Parton has already written to Minister Butler and received a detailed response. Nonetheless, we will go through this political process and I will also write to Minister Butler.

Most importantly, the amendment that I will move focuses the attention where it is needed most: aged-care access. Too many people are waiting for aged-care assessments, too many are waiting for home-care packages, and too many families are struggling to secure residential aged-care places. These older Canberrans deserve better. This is the challenge that we will focus our efforts on as a government. This is where my advocacy will be directed, and this is why the amendment that I have circulated today is necessary.

I thank the ACT Greens and Ms Vassarotti for working constructively with us on this amendment. Their collaboration has helped ensure that the Assembly's attention is directed towards the issues that matter most and towards practical, evidence based measures that can improve outcomes for older Australians.

I move:

Omit all text after "That this Assembly", substitute:

"(1) notes that:

(a) the Australian Government has introduced the Private Health Insurance Amendment (Modernising the Private Health Insurance Rebate) Bill 2026 ('the Bill'), which would reduce the higher private health insurance rebate currently available to Australians aged 65 and over, with the proposed changes to commence on 1 April 2027;

(b) the Australian Government estimates the measure will affect approximately 3.2 million Australians aged 65 and over and result in approximately 44,000 fewer older Australians holding private health insurance by 2028-2029;

(c) recent polling indicates that almost 40 percent of seniors surveyed in outer-suburban and regional electorates are more likely to drop their private health insurance as a result of the proposed changes; and

(d) the ACT has one of the highest rates of private hospital insurance coverage in Australia, with 54.2 percent of the population holding hospital treatment cover as at December 2025, compared with 45.6 percent nationally; and

(e) the Commonwealth Senate Standing Committee on Community Affairs' Inquiry into the Bill is ongoing;

(2) recognises that:

(a) private health insurance makes an important contribution to healthcare capacity in the ACT by supporting access to private hospital and specialist services and helping to reduce demand on the public hospital system; and

(b) the ACT public health system is already under significant strain, including workplace culture and morale challenges, the threat of occupational violence on the workforce, prolonged elective surgery waiting times and pressure on emergency departments, hospital beds and specialist services;

(3) further notes with concern the warnings from the New South Wales, Queensland and Tasmanian health ministers that removing the higher rebate for older Australians risks increasing demand for public hospitals and shifting additional costs and demand from the Commonwealth to state and territory health systems;

(4) considers that increasing the cost of private health insurance for older Australians risks encouraging some people to downgrade or abandon their private cover, placing additional pressure on the ACT's public hospitals and potentially increasing demand for public hospital services; and

(5) calls on the ACT Government to:

(a) monitor data on private health insurance coverage amongst people over 65 in the ACT after 1 April 2027 to determine whether the rebate reduction reduces coverage over time

(b) write to the Federal Minister for Health and Ageing, the Hon Mark Butler MP, raising potential impacts of the proposed removal of the higher private health insurance rebate for Australians aged 65 and over on ACT

residents;

(c) provide a copy of that correspondence to the Legislative Assembly within 30 days of this motion passing;

(d) advocate for increased Commonwealth investment in aged care capacity in the ACT; and

(e) continue to work with the Commonwealth to address issues relating to delayed discharge patients impacting ACT public hospital capacity.".

MS VASSAROTTI (Kurrajong) (3.21): I rise to speak to Mr Parton's motion on the Private Health Insurance Amendment (Modernising the Private Health Insurance Rebate) Bill 2026, which would reduce the private health insurance rebate currently available to Australians aged 65 and over, with the proposed changes to commence on 1 April 2027. I wanted to thank Mr Parton for bringing this motion to the Assembly. It is actually an important issue, and, while it sticks within the commonwealth realm, it does have an impact on local residents.

As a principle, the ACT Greens firmly believe in a universal public health system. We do not believe that access to health care should be determined by how much money you have in your pockets. We do believe that this has fundamentally been undermined by how the Australian health system has been set up by both federal Labor and Liberal governments. The reality is that now we currently have a complex and mixed model operating here in the ACT and across Australia.

The bill would bring rebates for Australians aged 65 and over in line with rebates for everyone else—that is, the rebate that an individual receives would only be dependent on their income, not on their age. This is responding to the additional rebate that has been in place for many years. There is a fair question about whether or not this change might address some intergenerational inequities. Importantly, half the government savings from this change could come from pensioners, many of whom are already doing it tough. We are particularly aware of the impacts of cost of living for older Canberrans. This is something that needs to be acknowledged and recognised. We know that when times are tough people can sometimes make really hard calls about whether to buy food or buy medicines. We know that many older people do prioritise private health insurance because of their concerns about being able to access health care in the city.

We want to make a broad point: if the federal government is looking to make savings, why is it looking to get them from people aged over 65 rather than, say, looking at gas corporations or the wealthiest one per cent of Australians? We do share concerns that this proposal might have significant impacts on individual pensioners, many of whom are really struggling. We also acknowledge there is a potential that this may see some cost shifting to the ACT public health system. That is why we want the ACT government to write to the Australian government Minister for Health and Ageing, the Hon Mark Butler MP, raising the potential impacts of the proposed reduction of private health insurance rebates for Australians aged over 65 and particularly ACT residents.

We note that there is a current inquiry into this proposed change occurring in federal parliament, and this will give us further information to assist in assessing exactly what impact this change might have. We definitely need more investment in aged care capacity in the ACT because we do know that delayed discharge, otherwise known as

bed block, is impacting significantly our public hospitals as well as the wellbeing of elderly people since the hospital is not the best place to be if you are elderly and no longer in need of hospital care. We do support prioritising this issue in discussions with the commonwealth.

Overall, from our perspective, this issue at the moment does not seem that clear-cut. I think it is wise to let the inquiry into this bill in the federal parliament run its course, and we do look forward to seeing its findings. Given this, we will not be supporting the amendment that is yet to be tabled by Mr Parton and we will support the Labor amendments. However, we will continue to monitor the discussions within the inquiry with interest and will encourage federal colleagues to ensure the issues of impacts on individuals as well as the potential impacts on the local public health system are considered in this inquiry.

MS CASTLEY (Yerrabi) (3.25): Usually I would speak to the motion first and then to any amendments, but I might reverse that order on this one and acknowledge the helpful, good-faith engagement with the Vassarotti and Paterson offices on this motion. I wish the discussions on every PMB were so straightforward.

The amendment has been finalised, and it is a positive one. It is positive because it means that the motion now has a bit of substance to it and may even have some useful effects for residents in the ACT. The original motion as circulated essentially called for the minister to write a letter raising concerns—something I suspect she may have already done—and then to tell the Assembly that a letter had been sent. That felt a bit underwhelming. Having had a break for three months, I had hoped that we would see more a substantive motion, especially given the volume of local issues in the health space at the moment.

While I am no longer the shadow health minister, I retain a strong interest in the space, and I know that there are real issues with our health system—issues that are affecting Canberrans on a daily basis and that fall squarely within the remit of ACT Health and the minister in the ACT rather than the federal minister. These are issues that deserve to be raised and where changes may need to be delivered.

One example is the recent closure of Deakin Private Hospital. Until its closure the hospital was providing almost 500 surgeries a year for Canberra Health Services. Right now we do not know what will happen to those or the impact this will have on waiting lists. Waiting lists are another issue, and I know the minister shared some statistics earlier. The latest wait times for elective surgeries show alarming numbers of category 2 patients overdue for surgery, and that includes 44 per cent of orthopaedic patients and 63 per cent of vascular patients. These are Canberrans who are ready for care and whose doctors recommended it within 90 days but have been waiting longer because our health system is not able to deliver timely elective surgeries in these areas.

Another issue about wait times is that specialist outpatient wait times still are not being publicly reported despite it being listed on the ACT Health dashboard as a future project for some time and despite the recommendations of the Walsh inquiry.

A fourth issue is aged care bed block—the minister also mentioned this—which seems to be getting worse and imposes real and largely avoidable costs on the health system,

both in terms of finances and reduced hospital capacity.

A fifth issue is the disappearing investigation into the spike in C-sections at the Centenary Hospital, which was then the highest rate in the country—this was a while ago—and may not have been clinically justified. We were told in March that the Chief Operating Officer of CHS was undertaking an investigation into the issue, but since then nothing has been said. I believe that we found this out through an ABC report, but I can confirm.

The sixth issue is cross-border patients being refused care at ACT Health, as again reported by the ABC last month, which could have implications for Canberrans seeking care interstate to avoid excessive local wait times.

Those are serious local health issues which are currently on my mind and for which I have submitted questions on notice. But there are many other serious issues that we could also focus on, any of which would have been a better use of the chamber's time than debating a federal issue where all the territory can do is register its concern with the commonwealth.

We all know that the health system here is dysfunctional, that it is under real and sustained pressure and that it is only held together by an absolutely incredible health workforce, and we are so thankful to them. We also know that we have asked too much of that workforce for too long, and there will come a time when they start to move on. We want to fix the system before we reach that point. We need to remember that nobody is coming to save us or do that work for us. We must work together as an executive and a parliament to figure out the solutions for ourselves. That starts by focusing squarely on the problems that are within our control and not getting distracted by those that are not.

MR EMERSON (Kurrajong) (3.30): I thank the Leader of the Opposition for bringing this motion to the Assembly today. I share his very valid concerns around health care access and costs for older Canberrans, which other members have reflected on, particularly those on low incomes, including pensioners, who are already feeling pressured from many directions in the middle of a cost-of-living crisis. I also share his concerns that the federal government reform could lead to reduced private health insurance coverage and thereby obviously place additional pressure and costs on our already strained public health system. We know we cannot afford any more cost shifting from the federal level to the territory level.

As the motion notes, private health insurance is a crucial part of Australia's healthcare capacity, even more so as we have some of the highest healthcare costs and lowest bulk-billing rates in the country. Though I share the view that these concerns must be addressed, as this bill looks to progress through the federal parliament, and the view that this Assembly should work closely with the federal government to ensure those concerns are ameliorated, I am also sympathetic to the federal government's reasons for bringing forward this reform.

The standard aim of the reform is two-part: to improve intergenerational fairness between younger and older Australians, basing this rebate on need rather than age, and to redirect funding to where it is most needed, our aged care system. The tax

arrangements as they currently stand effectively result in taxpayers—many being younger Australians, who, of course, generally access the healthcare system less—partially subsidising the private health insurance costs of older Australians regardless of whether those older Australians actually need that increased rebate and regardless of income.

This is not consistent with the way our welfare system ordinarily operates, where measures are targeted to cohorts facing a particular disadvantage or who have a particular need for increased support, which is what this proposed change does by setting the rebate based solely on income, not on age, making the private health insurance rebate percentage and calculation method for people aged 65 years and over the same as those applying to people under 65 years of age. This on the face of it makes sense to me. The fact that the more generous rebate for older Australians currently exists makes it make a little bit less sense and makes it harder to swallow the potential change. But if we look at the proposal for what the system would be on the back of this change, it makes more sense than what is currently in place.

We know this is an incredibly challenging time to be a young person, with secure and affordable housing increasingly out of reach, the cost of living spiralling out of control and environmental and biodiversity crises placing question marks around young people's futures. Intergenerational fairness issues are front of mind in many parts of our community. I do not know that it does make sense to ask young people to subsidise the private healthcare costs of what is, in reality, the wealthiest generation of Australians.

Kurrajong, my electorate, is among the youngest and most progressive electorates in the ACT and across the country. Many of my constituents—this includes older Canberrans—support a needs-based approach to taxation that gives closer consideration to intergenerational fairness than what our current system manages.

Of course there are many older Australians who need additional support, and they should receive it according to those needs. This is why, for instance, I believe the pensioner rates rebate here in the ACT should be increased. But I am not convinced a blanket policy based on age, like the health insurance rebate this motion seeks to support, is actually appropriate.

Importantly, the federal government's proposed reform is also about redirecting the savings from this area towards more targeted measures. The savings from this reform are expected to be $3 billion over four years, which the federal government intends to redirect towards aged care. This is very welcome news, assuming they follow through on that intent, and the motion rightly notes there are issues relating to the delayed discharge of patients impacting ACT hospital capacity. This intersects, of course, with broader issues regarding the commonwealth's obligations with respect to aged care capacity and funding. If these issues are better addressed, it will lead to savings by clearing up bed lock in our hospitals, and it will lead to better outcomes—something that this Assembly and the ACT government can and should advocate for strongly to get our fair share and ensure we are not left paying for the commonwealth's failings.

What is apparent to me here is that a balanced approach is needed. We should follow the inquiry into the bill and acknowledge the challenges this bill potentially raises around healthcare access and costs for older Canberrans. We also need to monitor the

consequences of this proposed reform, should it pass at parliament, and whether the small projected change in private health insurance coverage comes to be or if the consequences are less significant or more significant. This is what Dr Paterson's amendments call for. At the same time we also need to acknowledge the intergenerational unfairness in the current system and support opportunities to rectify this, not just in the tax system but more broadly, which is why I will be supporting the motion with the amendments brought forward by the government today and look forward to following the ongoing Senate inquiry into this bill.

As I do not intend to speak again, I will not be supporting Mr Parton's amendment that he has circulated, but kudos to him for trying to get that call back in there. I appreciate his persistence.

MR PARTON (Brindabella—Leader of the Opposition) (3.36): I would love to support the amendments from Dr Paterson, and indeed we are supporting them; we are just keen to add something to them. We just think there are some sensible things in there. It is important to note that the Senate inquiry into the bill is ongoing. We genuinely appreciate that Labor and the Greens have left a lot of the original motion intact, so that is good.

We appreciate in particular (2)(b) remaining, because I think it is important that the minister can move an amendment that still includes "the ACT public health system is already under significant strain, including workplace culture and morale challenges, the threat of occupational violence on the workforce, prolonged elective surgery waiting times and pressure on emergency departments, hospital beds and specialist services". We cannot shy away from that. We do appreciate it.

The motion, as was originally placed on the notice paper—the absolute key part, the core of it, is (5)(a), that the Assembly calls on:

> The ACT government to make representations to the Australian government urging it to abandon the proposed removal of the higher private health insurance rebate for Australians aged 65 and over.

As such, I am understanding now that I probably should have made this "omit (5)(b)", but—we are all amongst friends here—it is not getting up anyway. It goes to omit (5)(a) and to insert "make representations to the Australian Government urging it to abandon the proposed removal of the higher private health insurance rebate for Australians aged 65 and over", as has been done by health ministers in Queensland, in Tasmania and in New South Wales.

I move my amendment to Dr Paterson's proposed amendment:

> Omit all text in paragraph (5)(a), substitute:
>
> "(a) make representations to the Australian Government urging it to abandon the proposed removal of the higher private health insurance rebate for Australian aged 65 and over.".

Mr Parton's amendment to **Dr Paterson's** proposed amendment negatived.

Dr Paterson's amendment agreed to.

Original question, as amended, resolved in the affirmative.

Papers
Motion to take note of papers

MR SPEAKER: Pursuant to standing order 211A, I propose the question:

> That the papers presented under standing order 211 during presentation of papers in the routine of business today be noted.

Early childhood education and care services—Child safety and safeguarding measuring—improvement–Assembly resolution 24 February 2026—government response

MR EMERSON (Kurrajong) (3.39): I am literally now reading through the government response to the early childhood motion, and I want to thank them for their work in this area—including within CECA. I know a lot of work has been going on. I will not respond too much but I will speak to this issue when we get to the budget debate. I just wanted to acknowledge the work that has gone into that area, and the seriousness with which this motion that I brought to the Assembly has been taken. I look forward to continuing to read the response.

Member—conduct

MS CARRICK (Murrumbidgee) (3.40): I seek leave to respond to the Commissioner's report.

Leave granted.

MS CARRICK: I rise to address the findings of the Commissioner for Standards, concerning my conduct during a staff meeting in my office on 4 May 2026. I acknowledge that my conduct on that occasion fell below the standard I expect of myself, and the standard rightly expected of members of this Assembly.

I apologised to those involved at the time, and today I apologise to the Assembly. This experience has reinforced to me the importance of maintaining a workplace that is respectful, collegiate and safe. I remain committed to upholding those standards and to supporting the wellbeing of all my staff members.

I am pleased that my current team is working collaboratively and effectively together, with its focus firmly on serving the people of Murrumbidgee and delivering outcomes for the community.

In order to respect the privacy of my staff, I will not be commenting publicly on office matters. I apologise to the Assembly.

Appropriation Bill 2026-2027
[Cognate bill: Appropriation (Office of the Legislative Assembly) Bill 2026-

2027]

Detail stage

Schedule 1—Appropriations—Proposed expenditure.

Education Directorate—Part 1.1

Debate resumed.

MR EMERSON (Kurrajong) (3.43): I would like to speak to a couple of different items within the Education Directorate. I will leave alone many of the issues that have been canvassed by other members. To begin with, I will touch on some of the early childhood work that is contained in this budget.

I was very pleased to see an uplift in funding for children's education, care and assurance in the budget: $11.4 million over four years, to strengthen the regulation of early childhood education and care, including increasing the capacity of CECA. There is $8.865 million allocated in this budget to that.

This is funding for FTE. If we are going to focus on having stronger regulatory systems and strengthening those systems, of course we need to resource our regulator sufficiently to enforce the regulations that we have imposed. And it is clear that, unfortunately, this has not been the case in the ACT. There has been a lot of pressure on this part of government. And so, I am delighted to see an increase in funding here.

The funding will be a phased increase in staff, as my understanding, starting with 10.5 FTE positions this financial year, and increasing to 16 full-time equivalent positions in 2029-30 and ongoing thereafter.

I have asked about staffing levels at CECA, on the back of concerns that have been raised with me about the frequency of audits and rating assessments of early childhood centres in the ACT. I learnt that in 2015 there were 18 FTE staff in the organisation—and so, this budget funding allocates 16 new positions over the forward estimates—and that that increased to 24 in 2022, and to 30 in 2025. So, this is a significant increase. And once we get to the 16 FTE level promised, that will amount to more than 50 per cent staffing increase above current levels. So, I am very pleased with this.

We do have evidence that, compared to other jurisdictions, this area has been under resourced. The Productivity Commission data shows the ACT had the second lowest proportion of service quality rating, assessments or reassessments in 2025. This is important because, as the minister reflected on earlier, families rely on the Starting Blocks website which provides information regarding the quality of the services they are considering for their children. And we have seen examples where, unfortunately, that information has not been sufficient to provide families with an assurance and confidence that the centres they are selecting are fit for them.

I do want to welcome recent action that was discussed earlier against Edge Early Learning, including in relation to the Charnwood and Higgins centres. And I want to re-state, I suppose, my calls for support for assertive action against providers where we

are seeing repeated issues across multiple different centres; not just against those individual centres or against some of the individuals working within those centres—which often some of these larger providers want to put the blame on—but on those providers themselves.

And my understanding is, in this case with Edge, that there has been quite a lot of cross-jurisdictional collaboration to ensure that is occurring. I really welcome that. I think we need more of that, given some of the systemic issues that we are seeing in the sector.

During estimates, I raised some questions about Edge Early Learning Charnwood, which at that time was still open. I note it has now been suspended. And I want to touch on this because I think it is relevant to the funding increase, and also the frequency of service reassessments. The services are, of course, assessed against the national quality standard, which gives families some indication, obviously, of the quality of the service that they are considering.

In August 2022, Edge Early Learning took over this centre and it became the Edge Early Learning Charnwood centre. It was rated as exceeding the national quality standard; very reassuring for families. But between August 2022 and now, there have been countless issues raised with this centre: in September 2022, a caution notice for inadequate supervision; May 2023, a compliance notice for inadequate supervision; May 2023, again an educator complained about the centre failing to meet ratios almost every day; June 2023, a compliance notice for inadequate supervision; July 2023, a compliance notice following an unannounced risk audit; May 2024, caution notice for inadequate supervision; September 2024, caution notice for inappropriate discipline; September 2024, administrative action for inadequate supervision; November 2024, prohibition notice for the centre's nominated supervisor after a child's jaw was dislocated on three different occasions; December 2024, administrative action for inadequate supervision; March 2025, administrative action after child was given a known food allergen; March 2025, administrative action for inadequate supervision; April 2025, a compliance notice for inadequate supervision. And there are more; many more.

Throughout this entire time, that centre was still rated as exceeding the national quality standard. So, families were going to the Starting Blocks website—the federal government's website—to try to find out the quality of the centre they are considering for their children and they would see this as top-notch; this centre, exceeding the national quality standard despite all these compliance breaches. This is why I have called for a closer connection between the compliance work and the rating and reassessment work. And I understand it is under consideration, which I am really pleased about.

So, this centre was still rated as exceeding the national quality standard right up until it received a suspension notice from CECA three weeks ago and was required to close. So, I think this is of concern and needs to be addressed. We need more frequent reassessments—the ACT being the second least frequent in the country—and firmer regulatory action when we see repeated breaches.

And all of this is critical, not just for those centres but for the other centres that are constantly doing the right thing—that are constantly putting children's growth, safety

and wellbeing first, and are doing the right thing by their educators—so that they are not being kind of bled out of the sector or washed out of the sector by providers who are not doing the right thing and need action taken against them. So, I am really pleased, again, about the increased resourcing in this budget.

We also heard during estimates—and I imagine it is in this government response to the early childhood motion I moved, which I am not all the way through—about the need for a public register of compliance action notices. The list I have just read out came out of the motion I had moved, the order for production of documents I pushed to get through this Assembly. That was what provided information to families regarding the compliance history at Edge Early Learning Charnwood.

And I note that move was heavily criticised by some members of this Assembly. We were asked, "Who would read those documents?" It turns out, at least my team read them, I have read them, but also a lot of families across the ACT read them. And so, I was really pleased to hear during estimates from CECA that there will be a public register of compliance action notices; that that work is underway and orders for production of documents like this will not be required in the future.

I wanted to touch on a couple of other things. One is the need for closer monitoring of our aging school infrastructure. We have got a lot of infrastructure in the ACT that is reaching end of life—gold plated stuff that we had from before self-government—where we have not made sufficient plans, I think, and put systems in place to monitor the quality of those assets. The budget is relatively quiet on problems regarding aging school infrastructure.

We learnt during estimates that there is no centralised asset management register for ACT public schools—no centralised asset management register, currently. I understand work is underway in this area. But currently asset information sits across eight different platforms, according to a question on notice that I lodged. Some schools use one of the systems. Some use several. But what is clear from this is that we are not across the needs of all of the schools across the ACT. And we hear this from families; we hear it from parents; we hear it from educators that this broader issue of aging assets before self-government needs to be addressed, and we need to plan for renewal of a public school infrastructure.

Just finally, on flexible education. You might recall the minister touching on this earlier in response to a question from Miss Nuttall that was taken on notice during estimates, where she asked about the flexible education review. The minister indicated a public release of the review will be a matter for consideration of the government, following completion of the briefing process, and I welcome her remarks this morning that that review will be released shortly.

It has been put to me by multiple stakeholders that flexible education is one of the most powerful interventions that we can make in the life of a young person who may be on a trajectory that they would prefer not to be on, and that we as a community would prefer they not be on. But currently the capacity is sitting at 15 students in the Muliyan Program.

A response to one of my questions that was taken on notice during estimates indicated

that the Deloitte Review of flexible education settings in the ACT recommends that, in the long-term, a model of flexible education support would include increasing off-campus places for approximately one per cent of students in years 9 to 10 and 11 to 12, which would currently equate to approximately 140 students.

It also proposes the introduction of limited off-campus provision for years 7 to 8 at a rate of 0.2 per cent—currently approximately 15 students—alongside strengthening targeted in-school and on-campus flexible supports and inclusive mainstream practice.

So, the review found that we really need 10 times the capacity of the current Muliyan Program—10 times the capacity—to meet the level of need. And while that is not addressed in this budget, I think it needs to be in the next one or in the budget review because this is an area where we really do need further investment, to have an impact on those children in our public education system who most need our support.

MS CARRICK (Murrumbidgee) (3.52): I rise to speak on the education measures in this budget. The school resourcing review makes it clear that Canberra's education system needs change, but Canberra does not need more strategies alone; it needs enough teachers, adequate funding, delivery, transparency and accountability. Early childhood education is a good example. The government rightly commits to equitable access to early learning and universal access to three-year-old preschool, yet in Molonglo, one of Canberra's fastest-growing regions, there is still no not-for-profit early childhood education centre.

If the government is serious about universal access, planning for new communities must include child care, preschool and school infrastructure from the outset. While I welcome plans for a co-located childcare centre at the new Whitlam School, families should not be left waiting years for the childcare component while schools open first. The same challenge exists for secondary education. The government has committed to a high school and college in Molonglo, yet construction funding remains absent from the infrastructure pipeline. Meanwhile, students continue to spend hours travelling across Canberra to attend school. The community deserves certainty about when these facilities will be delivered.

Accountability is also lacking in our education reforms. The government has released Strong Foundations and the school resourcing review. Both identify important reforms. However, there is still no clear framework that allows the Assembly and the community to assess what is working, what is not working, and where resources should be redirected. Too often we see reporting on funding allocated and activities completed but less information about whether programs are improving educational outcomes. Good government requires ongoing evaluation and continuous improvement, not simply implementation plans. This is particularly important for students with disability, as Mr Emerson just mentioned.

The school resourcing review found that schools need greater support to identify and assess students requiring additional assistance. Students should not fall through the cracks because schools lack the tools or expertise to assess their needs. Under Strong Foundations, tiered support is expected to be implemented next year. An evaluation of the rollout would be welcome. The review also recommends reconsidering the funding model for specialist schools. These schools play a vital role in supporting children with

profound and complex disability and must have the resources and facilities needed to fulfil that role. I would like to know the timeframes for this work for specialist schools.

School infrastructure remains another significant concern. Parents continue to contact me about ageing heating systems, unreliable boilers and uncertainty regarding upgrades. In 2019, the government committed to upgrade heating systems in a number of schools, including Forrest Primary School, yet parents are now petitioning the Assembly because the school's ageing boiler continues to fail. Children deserve safe and comfortable learning environments. School communities should not have to wait years to learn whether their school is a priority or when upgrades will occur.

Finally, I turn to the Woden Valley High School site. Development and planning in Woden continue to be hindered by lack of transparency. The government has previously suggested a future school will be built on the site, yet there is still no timeline or clear expectation of why this location has been reserved. The community deserves to know whether this is the best location to serve the future population anticipated under the Southern Gateway plan and when the school will be needed. The budget contains funding, but funding alone is not enough. Families want certainty and they want transparency. They want to know that there are enough teachers, when promised schools will be built, when heating and cooling upgrades will occur, how students with additional needs will be supported, and whether education reforms are actually improving outcomes. Canberra's students, families and educators deserve nothing less.

Proposed expenditure agreed to.

ACT Local Hospital Network—Part 1.2.
[Cognate expenditure: Canberra Health Services—Part 1.12]

MR ASSISTANT SPEAKER (Mr Cain): I understand it is the wish of the Assembly to debate part 1.2, ACT Local Hospital Network, cognately with part 1.12, Canberra Health Services. That being the case, I remind members that, in debating part 1.2, they may also address their remarks to part 1.12.

MR PARTON (Brindabella—Leader of the Opposition) (3.57): Canberrans are paying more for their government than ever before. They are paying more in taxes, rates, rego, fuel, groceries and rent while the government is, at the same time, borrowing more just to keep up with the costs of delivery. Despite that, Canberrans are being asked to accept a health system under increasing pressure. Canberrans are waiting longer for care. They are waiting for diagnostic tests and for surgery. Health workers are dealing with occupational violence. Workplace culture remains a concern and community services are being lost. That is the fundamental problem that I have with this budget: it is not that the government spends too much on health; it is that, after years of increasing expenditure, Canberrans deserve to know what they are getting for it, and they deserve to know that these investments made on their behalf will actually make things better, not worse.

Throwing more money at a problem is not the same thing as fixing it. In the same way, pretending an issue does not exist will not make it go away.

Government members interjecting—

MR ASSISTANT SPEAKER: Thank you, members!

MR PARTON: If only Ms Barry was in the chair! For example, during estimates, I raised concerns about the patient journey from the point at which cancer is suspected to the point at which a patient receives a diagnosis and begins treatment. I raised these concerns because clinicians and patients alike made representations to me that there is a problem and that their concerns are not being captured or taken seriously. This is a recurring theme. I am hearing it all too often.

We know that treatment timeframes matter, but, for a patient who has been told that they may have cancer, the wait for the tests matters, the wait for the biopsy matters, the wait for the results matters, the wait to see the specialist matters, and the wait to commence treatment matters. The same applies to diagnostic services more broadly. Canberrans should be able to see how long they will wait for CT, MRI, endoscopy and colonoscopy, and how those waiting times compare with clinically appropriate timeframes. The timeframe is simple. You cannot improve what you do not measure. That should be the starting point for health policy.

The same principle applies to elective surgery. There has been progress in elective surgery numbers, and that should be acknowledged, but record activity does not mean that the problem has disappeared. There are still Canberrans waiting for procedures they have already been assessed as needing and too many of them are waiting longer than clinically recommended.

During estimates, we asked why the government was not making greater use of available private hospital capacity to reduce pressure on the public system. The government should be looking at every available option to reduce those waiting times, including partnerships with private providers to deliver elective day procedures where that will get patients treated sooner. Again, this is not about ideology; it is about capacity. If there is a theatre available, a surgeon available and a patient is waiting for a procedure, the government should be asking how that capacity can be used. Instead, we have a health system where public patients can be waiting while capacity exists elsewhere. That does not make sense. This becomes even more important as the government undertakes major redevelopments of our hospitals. We need a long-term health capacity strategy that looks at the health system we actually have, and that means considering public and private infrastructure and services together and making sure that available capacity is being used efficiently.

There is another part of our health system where the government's financial decisions deserve scrutiny: palliative care. Community Options Incorporated has provided support to Canberrans living with life-limiting illness for decades. Its work is different from clinical hospital care. It provides practical, non-clinical support that can help people remain at home and help families navigate what can be an incredibly difficult period, yet that service has now been placed in jeopardy because ongoing funding has not been provided.

Ms Stephen-Smith: That's bullshit.

MR PARTON: This is the sort of decision that cannot simply be considered as—sorry,

what sort of excrement was it?

Ms Stephen-Smith: It's not true, Mr Parton. Nothing has happened to the funding.

MR PARTON: Certainly on the basis of the meetings that we have had with stakeholders in that space, that is what we believe to be true. The need does not disappear when a community service disappears. The question is where that need goes. Does it fall on families, does it fall on other community organisations or does it eventually fall on hospitals and emergency services? There are questions the government should have answered before allowing an established community service to reach this position. Good financial management is not simply about finding somewhere to cut expenditure; it is about understanding the consequences of those decisions. Disappointingly, it was only yesterday that further representations reached me about issues facing the delivery of the Acute Palliative Care Unit at Canberra Hospital.

Then there is the serious issue of occupational violence. Our health workers should not have to accept violence as part of their job. They should not have to wonder whether walking into a hospital ward, an emergency department or a patient's home means putting themselves at risk. The government should be able to demonstrate whether occupational violence is increasing, decreasing or simply moving from one part of the system to another, and it should be able to demonstrate whether the measures it is taking are actually making health workers safer. All of these issues come back to financial management. Because governments have limited resources, every dollar spent in one part of the system is a dollar that cannot be spent somewhere else, and that means major decisions need to be justified.

I do not think the government can continue to treat each of these issues as an isolated problem. Cancer waits are one problem, elective surgery is another, palliative care is another, occupational violence is another and workplace culture is another, but, after more than two decades in government, the common denominator is the government itself. The government has been responsible for managing the system, it has been responsible for the budget, it has been responsible for the workforce, the infrastructure and the policies, and it has been responsible for responding to the warnings that have been provided. So, when the system is under pressure, the government cannot simply point to how much money it is spending; it has to explain the outcomes.

This is what concerns me about the financial management that we are seeing. The government can announce more investment or another program, strategy or redevelopment, but eventually someone has to ask whether all of that spending is actually making the system better for the people who use it. Canberrans deserve a health system that works. They deserve to know that, when they are referred for a test, they will not disappear into a black hole. They deserve to know that, when they need surgery, the system is making use of every available piece of capacity. They deserve to know that, when they reach end of life, support will be there for them and their families. They deserve to know that the people caring for them are safe at work and they deserve to know that the enormous amounts of public money being spent on health are being spent wisely.

The government cannot continue to measure success by how much money it announces.

It needs to measure success by outcomes, by what that money delivers, because, after years of increasing expenditure, Canberrans should not have to choose between paying more and expecting less. It is not good enough. This appropriation should be accompanied by a much higher standard of accountability for the health system that it funds.

MS CLAY (Ginninderra) (4.05): It is great to see that the government has just announced a trial allowing six endorsed midwives to work to their full scope of practice. I really welcome this trial, but it is only six midwives and it is only for a year. It does not increase continuity of care, which is something the government has committed to do. The government did a workforce planning report to figure out what they would need to do to get to the target. I got that report under FOI last year. It said we would need an additional 24 midwives to reach the target. A trial of six endorsed midwives, while welcome, is not the same as increasing the midwifery workforce by 24 midwives. I do not believe that the six midwives are additional, and I would love to know if I have got that wrong. But it is my understanding that the trial is allowing existing midwives to be able to practise to the full scope of practice that they are already qualified to do. The extra bit that the endorsed qualification allows are things like ordering blood tests and ultrasounds and prescribing some medications. It is useful, but it does not increase the number of people who have access to midwifery continuity of care. But if I am wrong and there are truly six additional midwives, that is fantastic. We would love to have that on record. Even if we do have six extras, it is still less than 24 that the government's own report said we needed to reach the government's own target.

We are supposed to be at 50 per cent of continuity of care by 2028. It is 18 months away, and we have gone backwards this term. We have gone from 23 per cent to only 20 per cent of our women and pregnant people having access to midwifery continuity of care.

At the same time—this is why it matters; this is not a point about numbers in a report, this is about the impact of not having those services—our C-section rate is soaring. I was really alarmed to see the C-section rate at the Centenary Hospital was 50 per cent in several months of 2025. The average C-section rate has gone from 30 per cent in 2019 to almost 48 per cent in 2025. That is a really steep increase in a really short amount of time. We have gone from one in three to almost half in just six years. A C-section is an amazing and life-saving intervention that is medically necessary in 10 to 15 per cent of cases—10 to 15 per cent is life-saving, not 50 per cent. Fifty per cent is a whole lot of unnecessary surgery.

I went to a documentary screening last night called *Allowed to Birth*. Afterwards we heard from a midwife who has been practising for around 30 years. She said 20 years ago Canberra Health Services were panicking because the C-section rate had got up to 21 per cent. They brought in a program and managed to get it down to 17 per cent. They were panicking when we got to 21 per cent—look where we are now. What has gone wrong since then? The ACT now has the highest C-section rate in the country, pushing 50 per cent of births, more than the percentage of unassisted vaginal births.

A couple of months ago AIHW data showed another very disturbing figure. The ACT now has recently overtaken the Northern Territory as having the highest perinatal mortality rate in the country. It is in this context that we talk about how we are investing

in our health infrastructure and the new birth centre that government is meant to be building.

There is a cascade of intervention that happens in hospitals. One intervention leads to the next, to the next. If that cascade of intervention never begins, birth is much more likely to progress without unnecessary interventions. That means fewer episiotomies, fewer forceps and fewer unnecessary C-sections. Place of birth matters and continuity of care matters.

We need that birth centre to be separate from the hospital, and we need to be investing in our midwifery workforce if we want to see our C-section rates moving in the right direction. Our community has been asking for this for decades—literally for decades. We cannot keep doing the same thing and expecting a different result. The health system is failing to support women and birthing people to give birth in a place and with a model of care that will give them the best outcomes. We need to learn more about what exactly is going on with this skyrocketing C-section rate. If government cannot answer the simple question "Why is this happening?" government has no chance of addressing it.

I am really glad that the plans for the new northside hospital birth centre are progressing, but it is essential to get the design right. As far as I am aware, there is still no public announcement and no certainty on where the new northside birth centre will be located. We are told it is likely to be inside the hospital in stage 1. That is the status quo in a shinier building. We already have a birth centre inside the northside hospital. The petition that I lodged and the motion that I ran asked for an additional one separate to the hospital. The government's own feasibility study recommended a birth centre separate from the hospital. I am really disappointed that the evidence and the community are not being listened to. I am still hopeful that we might end up with a standalone birth centre in stage 2 or a freestanding birth centre out in the community. Where we are now, either of those two options would be better than simply abandoning it.

I am sceptical about the government's perception of co-design. It has been out of step with what the community expects from this process. Genuine co-design brings in stakeholders early and involves them in the important decisions, like location and number of beds, not just at the end when most of the decisions are about lighting and the colour of the paint. I know the minister has talked about the constraints of a brownfield site, and I do understand that it is difficult; there are a lot of restrictions there. If that is the case, can we have real commitment to a standalone option at stage 2 or a proper freestanding birth centre off campus and out in the community? These are two great options.

This is something that the community really cares about. They feel this deeply. There are many, many people watching this. The community are tired of decades of promises to possibly do something further down the track, and they are getting alarmed that they are seeing their last chance disappearing. I know women personally who have been fighting for a freestanding birth centre since the 1980s. These women are grandmothers now. They are fighting for the rights of their grandchildren to be able to give birth in a freestanding birth centre in Canberra, and they are still fighting for this. Generations of Canberra's women and birthing people have missed out on better birthing experiences.

I am hoping that there is a chance in future plans to make up for this.

DR PATERSON (Murrumbidgee—Minister for Health, Minister for Mental Health, Minister for Police, Fire and Emergency Services, and Minister for Gaming Reform) (4.13): I would just like to clarify a couple of things on the record just in response to what Mr Parton said around Community Options. It was Community Options that publicly announced that they would cease operations in the ACT on 31 December. The ACT government has not withdrawn funding from Community Options. Community Options currently has two ACT government-funded programs: the Women and New Born Community Support Program and the palliative care program. We thank Community Options for their work in the territory over many years now and thank them for the advance notice of them ceasing operations in the territory. We are working with them to transfer their clients to current other programs within our system.

I would also like to add that I would have hoped that Mr Parton would have looked at the response to the occupational violence motion that was tabled earlier this week. As part of tabling that, I have committed to quarterly public reporting of occupational violence incidents. We are committed to transparency around occupational violence and very committed to working with our health workforce to reduce incidents of occupational violence.

Just to speak to Ms Clay's comments around birthing care in the ACT, recognising that the high rates of caesarean section are concerning, as Minister Stephen-Smith has pointed out over many years now, we do have quite a unique context in Canberra Health Services, being the major tertiary hospital for the region, where we receive at least a quarter of patients from around the region and patients who are likely requiring maternity care within Canberra Health Services who are high risk. There are challenges there. Canberra Health Services are very aware of them and working through them, and I am committed to doing that work as well.

Through the budget the ACT government has committed to delivering improved health services closer to home, supporting our health workforce and ensuring our health system remains responsive to the needs of our growing community. This budget delivers a significant investment in the health and wellbeing of Canberrans, with $198 million in new health spending in 26-27. This includes the release of $169 million in provision funding to respond to the healthcare demand and cost pressures for one year. Combined with other targeted initiatives, this budget provides an additional $231 million for our public hospitals, community-based health services and workforce over the next four years. This is more than an investment in our services; it is an investment in better access to care, a stronger workforce and a health system that can meet the needs of our community now and into the future. These investments will ensure Canberrans continue to receive the high-quality, accessible, culturally responsive and person-centred health care from skilled and well-supported health professionals.

Like all Australian jurisdictions, we are responding to increasing demand for health services and the rising costs of delivering care. That is why this budget makes significant investments to strengthen capacity across our health system, supporting outpatient services, emergency care, admitted patient services and community-based

programs. These investments will ensure our health system can continue to meet the growing demand while delivering high-quality care when and where Canberrans need it most.

Importantly, this funding will support the operation of the new acute palliative care unit at Canberra Hospital, providing a dedicated, culturally safe and trauma-informed environment for patients and families during some of life's most difficult moments. It will improve access to specialised screening, treatment and support services at North Canberra Hospital for people at higher risk of breast cancer, helping to deliver early intervention and better outcomes.

The budget will also expand the Canberra Hospital paediatric fracture clinic and establish a dedicated paediatric orthopaedic service, enabling more children with bone and soft tissue conditions to receive specialist care closer to home.

In addition, we are increasing lung cancer specialist services, supporting delivery of the National Lung Cancer Screening Program and improving opportunities for earlier detection and treatment. Together these initiatives demonstrate how this budget is investing in earlier intervention, specialist care, and better patient outcomes across the territory.

I am particularly proud that at a time when access to abortion and reproductive health care has been challenged in many parts of this world this budget continues the ACT's commitment to reproductive choice and healthcare access. This budget will provide long-acting reversible contraception as well as abortion care. This will ensure a person's financial circumstances are never a barrier to accessing safe, appropriate and timely reproductive care, reflecting ACT Labor's unwavering commitment to equitable access to health care for all Canberrans.

As an advocate—as are many of my ACT Labor colleagues—for voluntary assisted dying care, we are taking an important step in the evolution of the ACT's voluntary assisted dying framework. We are investing in $3.1 million over two years to undertake a citizens jury process to consider what should occur if a person loses decision-making capacity after being approved to access voluntary assisted dying. This responds directly to community advocacy and will ensure consideration of this complex issue is informed by community values, lived experience and expert advice. It reflects our commitment to thoughtful, evidence-based reform that places community voices at the centre of important policy decisions.

We know that the Labor government values our nursing and midwifery workforce. We have demonstrated this through progress already achieved as part of Maternity in Focus 2022-2032 and are investing in the development of our second action plan. We are investing in supporting birthing with country initiatives, the maternity experience survey, stronger midwifery workforce capability, improved continuity of care and greater consumer participation in service design. Together these reforms continue our commitment to delivering maternity services that are respectful, culturally responsive and centre on the needs of women, families and communities.

Delivering high-quality health care requires a strong and supportive workforce, and this budget includes substantial investments to support, grow and retain our workforce, who

support patients and their loved ones when they need it. The government will continue to support junior medical officer wellbeing and workforce sustainability, ensuring our future medical workforce receives the support, development opportunities and workplace conditions necessary to thrive. The government will also enable Indigenous Allied Health Australia to continue its successful Health Academy program in the ACT and to support Aboriginal and Torres Strait Islander secondary students, building more culturally responsive workplaces and delivering a safer and more inclusive health service. We remain committed to secure employment and to delivering public services through public sector workers wherever practical.

I was proud to work with Minister Stephen-Smith, as one of the first announcements since taking the health portfolio, around the insourcing of cleaning and gardening services at Canberra Hospital and community health facilities. Bringing these workers into Canberra health services will strengthen collaboration between environmental services staff and clinical teams, improve integration with infection and prevention and control activities and support a more coordinated approach to delivering safe, high-quality care.

Closing the gap in delivering culturally safe care requires genuine partnership with Aboriginal and Torres Strait Islander communities and a commitment to community-led solutions. This budget invests not only in workforce pathways for Aboriginal and Torres Strait Islander health professionals but also in services designed to meet the needs of the community. These investments will help deliver inclusive, culturally safe health care and contribute to better health outcomes across the ACT.

A key example of this commitment is the delivery of the Aboriginal and Torres Strait Islander perinatal mental health safe space. The safe space will provide culturally safe non-clinical support and case management for women and birthing people who are experiencing or are at risk of experiencing perinatal mental health challenges. This initiative recognises the importance of culturally informed support during pregnancy and early parenthood.

We know that digital and capital infrastructure are key enablers to the delivery of safe and high-quality care. This includes continued investments in the systems and technology that underpin modern health care. We are enhancing the digital health record, expanding MyDHR so consumers can access their health information online and strengthening integration with the national My Health Record system through DHR Link. At the same time the cyber uplift program is improving the security and resilience of critical health infrastructure and systems. Together these investments are creating a more connected, secure and patient-centred health system, improving care coordination, supporting clinical decision-making and driving better outcomes for Canberrans.

This Labor government is also investing in systems which strengthen medicine safety and public health capabilities, including enhancements to Canberra Script, the territory's real-time prescription monitoring system, and enhanced vaccine storage and distribution.

Alongside existing work across our health system to digitise and modernise to support strengthened service delivery, we are working through the government response to the

Walsh report. The recommendations in this report represent the opportunity for transformative change to our health system. In many areas we are already progressing reforms that align with these recommendations. We are strengthening system governance, improving data governance, refreshing planned care reforms and advancing measures to improve the sustainability and performance of the ACT health system.

Investing in critical upgrades and rectification works at the Canberra Hospital will also address fire safety and maintenance issues, which will extend the useful life of building assets until they are replaced as part of the Canberra Hospital master plan. Investment through this budget will also enable the replacement and upgrading of a range of medical equipment across Canberra Hospital and North Canberra Hospital. This includes replacement of general diagnostic and imaging equipment, resuscitation devices, newborn care items, surgical equipment and other essential patient items.

Taken together, these investments represent a comprehensive, forward-looking package that strengthens services, supports our workforce and expands access to care across the territory. From specialist cancer services and paediatric care to maternity reform, culturally safe health care, digital transformation and workplace development, this budget invests at every level of the health system. It delivers immediate support where demand is greatest, while also laying the foundations for a stronger, more sustainable and more connected health system for the future. Most importantly, it reflects our commitment to ensuring every Canberran can access high-quality care close to home, delivered by a workforce that is valued and safe, supported and equipped to provide the very best care. As our community continues to grow, this investment ensures our health system grows with it, developing better health outcomes and healthier futures for all Canberrans.

MS STEPHEN-SMITH (Kurrajong—Deputy Chief Minister, Minister for Education, Minister for Child Development and Wellbeing, Minister for Finance, Minister for the Public Service, and Minister for Health Infrastructure) (4.26): I will not speak substantially to the substance of the budget. I think my colleague Dr Paterson has done a fantastic job of outlining that.

I did in this context just want to take the opportunity to thank all of the consumers, carers, clinicians, other health system workers, directorate officials, community organisations, private sector partners, peak bodies and colleges, education and training providers, unions, regulators, ministerial colleagues and their staff and all of the many other people that I have had the enormous privilege of working with over my seven years and 29 days in the health portfolio and just over 18 months in the mental health portfolio.

While I am now privileged to hold other portfolios, with incredibly hardworking and dedicated people, and I am looking forward to this and enjoying the challenge, I want to acknowledge that my period in the health portfolio was truly formative for me as a member of this place and a minister. I want to recognise and thank all of those who work so very hard to ensure that our health system continues to be the excellent system it is—one of the contributors to Canberra being identified as one of the best places in the world to live, and I think the best city in the world to live in, just recently. Thank you to everyone for the way that you supported me. I will continue to work with

Minister Paterson on much of our joint activity in the future.

Proposed expenditure agreed to.

Infrastructure Canberra—Part 1.3

MS CLAY (Ginninderra) (4.28): The inquiry into fiscal sustainability found that infrastructure investment has been a significant contributor to debt growth. That committee found the budget needed to transition to a more sustainable and deliverable long-term baseline. Government has begun taking some steps in that direction. There is clearly a recognition from government that it put too many big capital projects into the pipeline and it needs to reduce these to meet Canberra's priorities and the territory's capacity. That was a clear message from that inquiry. What is clear from the budget outcomes is that there will be losers from these decisions, including projects that have been on the books for a long time. That includes the Woden community centre, the Tuggeranong ice rink and the Kingston arts precinct.

The Woden community centre has been on the government books for around 15 years. The latest iteration has reached the stage where the government had identified a site—part of block 33, section 80—and was tendering for detailed design work on a proposal that had had been developed with the Woden Community Service. That tender has now been abandoned because the tendered price exceeded what the government was prepared to pay. The government is now looking to partner with a developer to deliver the community centre. We talked about this in estimates. I did not get clear answers about how the tender failed, what the detailed discussions were, what options the government pivoted to or exactly where this leaves the Woden Community Service now.

The Kingston arts precinct has been envisaged since the first consultations on the Kingston foreshore redevelopment in the early 2000s. The arts facility strategies for the Kingston foreshore have evolved over time to what is now known as the Kingston arts precinct. It is meant to be home to the Canberra Contemporary Art Space, Canberra Glassworks, Craft ACT, M16 Artspace, Megalo Print Studio and Photo Access, with space for Canberra's Aboriginal and Torres Strait Islander communities. There were other organisations involved earlier in the project. They have dropped out due to the long delays that have already occurred in previous terms, because there is only so long that an organisation can wait before they simply need to get on with finding a lease and setting themselves up for a stable future. The intention was for the current partners to move into the Kingston arts precinct in 2027—next year. That is now not going to happen. Apart from requiring seven dwellings for artists' residences for a maximum period of 10 years, the delivery of the Kingston arts precinct will take place we do not know when. We have not been told. There has been no confirmation and no announcement. What happens to the groups who need to make plans for their future accommodation? What exactly is the plan here? We did discuss this in estimates. Again I did not get any straight or clear answers.

My colleague Laura Nuttall has highlighted the sorry saga of the ice rink down in Tuggeranong and how the ice-skating community has been brought back to ground zero when it comes to having an ice-skating facility. They do not have a facility that allows our elite skaters the opportunity to train and compete in a high-level facility now.

This chopping and changing to the infrastructure program has come about because of the way that the government has been managing its projects and its budget. It shows how important it is to get the financial settings in the budget right before making announcements about new projects. I want to urge the Labor government to be cautious here, because it is the Labor government who is primarily making the biggest announcements, and this makes sense. It is the Labor government who has been in government for a long time. They have access to the directorates to do the careful work on those infrastructure projects. They have the ability to make really careful plans and announcements in a targeted way ahead of elections. The public assumes they have done their homework before the government makes an announcement. The public assumes that they will deliver after they have made an announcement.

It is not responsible to keep pitching big new projects when you have not verified that Canberra needs them and that you can deliver them. New ideas like a new stadium, a new entertainment and convention centre, the many, many road duplications we hear about before elections—do the homework first and only then announce, and announce with an implementation schedule that you can deliver on. That is what people expect. It causes real harm to overpromise and underdeliver. If you delay a project, you put the cost up astronomically. Construction and supply costs are rising. A delay of a few years can add tens of millions—many, many more—to the price that the territory will have to pay. If you announce and then you find you have to cut the project, you also do real harm. You have disrupted so many people's hopes and plans, and a good illustration is to look at what has happened with Tuggeranong ice rink.

Government also needs to think through really carefully what infrastructure our community needs before making decisions, particularly when government is making decisions that benefit developers. The rezoning of Phillip pool, which led to a 25-metre pool rather than a 50-metre pool, is a really good example here. The Auditor-General's report showed that requiring a project to have a new indoor pool and ice rink was worth at least $45 million. That rezoning decision presumably must have been worth at least $45 million. Government rezoned that out and allowed Geocon to include a smaller pool that was simply not up to meeting the community's needs. The Chief Minister has since announced that the government will, in addition, pay for another 50-metre pool, having rezoned out the previous one. The developer is profiting off a rezoning decision that got rid of the former pool. The government is now going to have to find the funds to construct a new pool. This is not a good way to be making a set of major infrastructure decisions. We are also in the Greens really concerned about who is paying for this and who is profiting from this. I think this is why regulators like the Auditor-General and the Integrity Commission are taking a close look at that project.

Government needs to think through these issues for the community before making decisions, particularly decisions that benefit developers. This is exactly why I ask government to commit to making 10 per cent of homes in the new Thoroughbred Park precinct public homes. This is the right time to make a firm commitment like that. This is the right time for government to stand back and look at what is in the public interest and put that public interest first before making all of the development decisions that will benefit developers. It will be too late to circle back after rezonings have occurred and proposals have come forward, particularly once proposals have been decided on, and then later say, "Now we would like some public housing." If we do that, the

situation we will be in is that the developers will have their profits, they will not have firm commitments and requirements to deliver public housing and government will either not deliver enough public housing or will need to find the funds from its budget to pay for the public housing.

Government should also be focusing at the moment really carefully on Canberra's priorities, on what we really need. The Greens are clear about priorities. Climate, housing and core city services are our priorities, with really, really big expenditure items. We need sustainable electric transport. Light rail can move large numbers of people that would normally travel in high-emission cars. Reducing car usage will have a huge impact on meeting our greenhouse gas targets. It will also mean that many, many more people can be free of the burden of petrol and diesel prices that they cannot afford now and which are only going up in future.

We also need more public housing. Building more public housing is an excellent way to make a steady pipeline for the construction sector. It is such a good way to build our economy, if that is what you want to do. We should build more public housing because we need more public housing and it is the right thing to do, but it will also achieve all of the other things that any of these major projects can achieve. This is what government should have done after COVID. This is what the Greens called on government to do. There is still time to do this. There is always time to build more public housing.

I note the budget does contain a commitment to fund 450 more public housing properties, which is part of the commitment the government has made to 13,200 dwellings by 2030. It is great to see that money going into public housing, but we know that amount falls far short of what we need. Please, public housing is the construction project to focus on, not lots of ideas that come up before an election. The Assembly has heard that despite the government continuing to renew and grow the public housing portfolio the number of people on our public housing waitlist continues to grow. We hear this every day in sittings. Sometimes we hear this every debate.

The research is telling us that providing a permanent home for somebody, amongst other things, reduces their exposure to violence. It leads to better health outcomes for them. It provides them with the stability and ability to participate more fully in community life. For government, that means less demand on your health services, less demand on your mental health crisis services, less demand on your courts, less demand on your emergency accommodation. This came up in the fiscal sustainability committee. It is well-understood information. Government knows this and has this information. Government is spending over $40,000 a year to keep somebody homeless at the moment. These are the financial costs; the human costs are immeasurable.

With this in mind, I cannot understand why government is not investing more in public housing to bring that waitlist down. That action alone will reduce demand for the limited supply of affordable rentals. I would really encourage the government to look at going beyond their commitment to 13,200 by 2030 and put more money into public housing and please focus on climate, housing and core city services on these big projects.

I would urge you to think carefully about the deferrals that you have coming up. Deferring a project puts up the cost and leaves everybody in a huge amount of

uncertainty. I trust that you are making careful decisions about these at the moment rather than simply ghosting the projects out or waiting for something to change. Nothing will change. It is within the control of government to make changes. I would also urge you to think very carefully before committing to new projects.

MR COCKS (Murrumbidgee) (4.40): The ongoing saga of infrastructure in Canberra really highlights the consequences of Labor's budget failure. Infrastructure in Canberra should be about delivery, but instead it has become exhibit A to Labor's fiscal failures and Labor's betrayal of Canberrans. We have seen the walking back of promises and downgraded expectations.

What should be about turning commitments into projects, projects into construction, construction into the roads, hospitals, sporting facilities and community infrastructure that Canberrans are promised has become an ongoing story of decay and delay of the infrastructure Canberrans depend on, promises being pushed into future budgets and in some cases projects disappearing all together. We see things dropping off the list under the government because the budget has landed in such a bad position that they cannot afford it.

This is what happens when a government goes to an election promising more than it could afford. This is what happens when the community is told that Canberra cannot afford to not make investments, even though the books cannot sustain the commitments the government was making. I am not advocating for the government to proceed with projects that it cannot afford. I am sure that the Treasurer will attempt to spin something along those lines. I am advocating for not making commitments you cannot afford in the first place, when you know that you cannot afford them.

The state of the books do not come as a surprise year in and year out to the government; the government has far more access than anyone in this place or anyone in the community. If the government was upfront with the books, it would not be shocked into cuts every year. The government itself is admitting that this budget cuts more than $700 million from the infrastructure program over four years. It calls these "targeted reductions" and says it is moving to a more sustainable infrastructure baseline and that these projects have been delayed—but, of course, it also promises that they will be delivered.

The government told Canberrans during the election that they would be delivered. It still said that they will, it just will not say when. The government said that many will still happen during the parliamentary term, but we cannot see how very many of them could possibly be delivered if they are not funded at this stage of the cycle—not from end to end. Other projects have been deferred, including health, emergency services, sporting infrastructure and the police station in Molonglo being a really stark example in my own electorate. That is not the certainty communities were given. It is not what they voted for.

But, for years now, Labor has behaved as though every promise could be made now and paid for later; every major project could be announced; every problem could be solved with another capital announcement; the votes would keep on coming; they would stay in government; and they could afford to do everything. Eventually, however, the borrowing catches up and interest starts crowding out other spending. Eventually the

budget gets so weak that promises made at election time have to be reassessed after the votes have been counted. That is where we stand now.

You cannot keep making commitments knowing the state of the budget or the construction market, take them to an election and then months later claim that somehow the pipeline was too full; that there is some blockage that you did not know was there before; that, magically, you have spent more than you thought before an election and now you cannot afford to do what you said you would do at that election. It is not an unforeseen event, and communities have every right to feel betrayed when the promise that they were given turns into a vague commitment that something might begin at some point later in the term or maybe in a future term.

I was out recently in the Molonglo Valley talking to some of our community members there and what they were saying, once again, is that they feel like Labor has walked away from them. Labor made them a promise about all sorts of infrastructure that they could expect to see in the fastest-growing area of the ACT and yet the reality is turning out not to be what the government claimed it was—and far from the reality that the community expected.

But nowhere is this failure clearer than in the Tuggeranong Ice Sports Facility—that project first promised by ACT Labor at the 2016 election, 10 years ago. At one point, the project was listed for completion in 2025. But just last week after years and years of stringing along the ice sports community, after years of promises to the electorate in Tuggeranong, the government announced that the facility will not proceed. The government says that the updated proposal sought more than double the financial assistance originally requested and that the risks were unacceptable. It says that the proposal no longer represented value for money. You have to ask: why couldn't the government have assessed something at the outset before it made the promise? If that was the assessment, maybe the government should not have promised it in the first place.

But the current situation does not erase the promise or the years of expectation. It certainly does not erase the fact that the government allowed this project to remain alive, election after election, while the community was led to believe it would absolutely be delivered. That is why people feel betrayed. People can accept that projects change. They can accept that sometimes a proposal genuinely stops representing value for money. But, surely, they should not have to put up with being strung along for a decade. Surely, they should not have to accept a government that repeatedly presents something as a commitment and then, after years of delay, simply announces it will never happen and that it is all someone else's fault.

The government now says that the same money will instead be spent on other sporting infrastructure in Tuggeranong—other undefined sporting infrastructure—and suddenly, again we are having another survey to try and find out what the community wants. I can tell you, Mr Deputy Speaker, that what the community wants is for the government to make promises that it can actually keep. The government should stop pretending that replacing one promise with a different bucket of spending somehow means that the original promise has magically been honoured.

I do not think this is a matter of dollars traded for votes, because once a government

establishes this pattern, every infrastructure commitment becomes questionable and every election promise becomes questionable. Infrastructure is one of the clearest tests of credibility, because people can see whether it exists—either the road has been built or it has not; either the facility is open or it is not; either the project has started or it has not. You cannot spin concrete into existence. You cannot continue asking Canberrans to believe the next promise while you walk away from the last one. You cannot continue to make promises and then pretend it is delivered through a feasibility study or a survey.

The state of the budget is now directly affecting the government's ability to keep its word. Canberrans are paying the price of that failure. Communities that were promised infrastructure should not have to put up with that. They should not have to put up with learning after an election that Labor's promises were considerably less than they were led to believe.

MS CARRICK (Murrumbidgee) (4.49): One of the challenges facing the territory is balancing investment in nationally significant infrastructure, with investment in the community infrastructure that supports daily life. Canberra is Australia's capital. We must continue to invest in transport corridors, major civic assets, cultural institutions and infrastructure that serves both local residents and the nation. These projects can deliver important economic, social and strategic benefits. However, we cannot allow the pursuit of large and highly visible projects to come at the expense of the local facilities that are essential to strong communities.

Molonglo does not have tennis courts or a skate park. Why not? Community centres, libraries, sporting facilities, public housing, parks, play spaces and neighbourhood services may not attract the same attention as major infrastructure announcements, but they are places where people gather, connect and access support. They are often the infrastructure that residents use most frequently and value most highly. That is why governments must undertake a proper options analysis before committing to major investments. Every proposal should be assessed against clear criteria, including cost, community benefit, whole-of-life value, opportunity cost, service need and alignment with broader planning objectives. The question should not be whether a project can be delivered; the question should be whether it is the best use of scarce public resources when compared to other competing priorities.

We are increasingly seeing a tendency to assume that community infrastructure can simply be leased from or delivered by the private sector, while government borrowing is directed towards larger projects. Nowhere is this more evident than in Woden, where all the community facilities have been sold and are now high-rises. How is the government ensuring that Scentre Group, Geocon and the Hellenic Club are providing great outcomes for the community? Or are they simply ticking a box to suit their commercial needs.

As thousands of new residents move into town centres and surrounding precincts, the need for community infrastructure is growing rapidly. Yet, instead of reserving land and planning for the future delivery of public facilities, the government is proceeding with the sale of public land in central locations and proposing lease solutions for community services. The Callum Offices divestment and the Woden Community Centre are clear examples. The original commitment was centred on delivering a community facility for a growing region. We now appear to be moving towards a lease

arrangement, with no public information about the size of the facility, the duration of the lease, the level of dedicated community space or its capacity to meet future demand. A lease facility may ultimately prove to be the best option; equally, it may not. The issue is that the community has not seen the options analysis. Residents have not been shown the assessment criteria, the long-term costs, the comparison between leasing and owning or how the proposal activates the centre and addresses the needs of a rapidly-growing population over the coming decades.

Good planning requires governments to think beyond the next budget cycle. When land is sold, opportunities are lost forever. Once strategically located public land is transferred to private ownership, future governments may have little ability to provide the community infrastructure that growing neighbourhoods require. A compact city requires more deliberate planning for community infrastructure. It requires governments to identify and reserve land early, establish clear service standards and ensure that future residents have access to the facilities that support community life. It should not be assumed that the private market will always provide what communities need. Some facilities are public goods and should remain public responsibilities.

The challenge for government is not simply to build major infrastructure; it is to balance investment across the entire spectrum of community needs. That means ensuring that investment in nationally significant projects does not come at the expense of local facilities; it means undertaking transparent and rigorous options analysis before making decisions; and it means recognising that community infrastructure is not an optional extra—it is essential infrastructure that deserves the same level of planning, scrutiny and commitment as any major capital project. If we want Canberra to remain a liveable city as it grows, we must invest not only in the infrastructure that serves the nation but also in the infrastructure that serves our communities every day.

Throughout this budget process, we have repeatedly been told that, if members wish to spend additional money, they should identify the offsets. That is sound advice. But fiscal discipline cannot be reserved for community centres, libraries and local services, while multi-billion-dollar infrastructure commitments proceed without the same conversation about priorities, trade-offs and where the money will come from.

MR BRADDOCK (Yerrabi) (4.55): This speech comes with a trigger warning: light rail. Are we ready? Canberra may have been initially designed by the Burley-Griffins in the 1910s, but most of its sprawling development into the broader city we know today occurred as a result of planning in what we often think of as the postwar period. It was the so-called golden era of the private motor vehicle. City planning was conducted on a number of assumptions which have influenced its development to this day. Firstly, that people would always be happy and able to get around by car; secondly, that a reliable public transport system would be provided to support those for whom driving was not an option; and, thirdly, being the national capital, the commonwealth government would be well-positioned to maintain these arrangements for its set-piece city. All of these assumptions have been breaking down over the intervening decades.

Like many other cities around the world, we have discovered that having sprawling suburbs creates a multitude of problems. A reliance on roads and private motor vehicles for commuting results in growing congestion over long distances. Canberra now has a geographic footprint the size of greater London, all spread out in a suburban sprawl,

and staring down the barrel of a traffic-congested future. Servicing such broad suburban areas with public transport does not come cheap.

In 1989, the commonwealth bestowed the ACT with self-government and, with it, they wilfully underfunded maintenance of those gold-plated historic choices for our civic systems. The first ACT government of that era, coming to terms with the costs to run a city like ours, made some choices and let public transport investment fall off the rhetorical cliff. Those choices were, in hindsight, a mistake of their own, as it only pushed the city further into car dependency. The Stanhope government would eventually pick up the pieces and restart investment in our bus network but struggled to do any more than keep up with the scale of the problem as the city continued to sprawl.

In the early 2010s, through the cooperation of Katy Gallagher, Shane Rattenbury and Simon Corbell, the ACT government finally decided to grapple with the core of the problem. The ACT needed to be retrofitted with a proper mass-transit system, which would incentivise urban infill and substantially improve the efficiency and effectiveness of the city's transport network for the next century and beyond. They recognised, quite correctly, that buses can be very effective at servicing a public transport network's breadth of service offerings. But, as a form of mass transit, they are inefficient by being labour intensive to operate and persistently seen as being unreliable at fulfilling that mass-transit role by the public.

The government agreed it was time to build rail. They picked the most suitable technology for our sprawled circumstances, light rail, and began the design and construction of stage 1 to Gungahlin. It opened in 2019, and I love it and many in my community do as well. A substantial number of buses previously servicing that route got freed up to increase the breadth of the network into new and existing suburbs, and the transport experience of Canberra began to evolve for the better, beyond the expectations of light rail's advocates and in spite of the indignation of its fossil fuel powered opponents.

Unfortunately, at this point in the story, the wheels started to fall off. We can see what is going wrong, but it has been harder to fully grasp why. What was originally a vision for a stage every five years appears to have completely fallen apart. Under the 2015 plans, we should have been starting construction of stage 3 to Belconnen and Kippax around about now. Instead, we are in the construction phase for the first half of stage 2, and the government is being very coy about its plans for the other half of stage 2. Yes, we have had a pandemic and a few other economic shocks on the way through and, yes, we have had obstruction from the Liberal Party as well. Zed Seselja certainly appeared to do everything in his power to slow it down. But the problems appear to be going deeper than that.

We have always known that stage 2B of light rail was going to be the most difficult stage of the project to design and build, because it moves through some of the oldest parts of Canberra. The engineering and logistical challenges at this point are very well-understood—in particular, the need for approvals from the National Capital Authority based around protecting the values of the National Triangle and, in particular, the heritage values of the Parliament House vista. That vista's heritage management plan is currently subject to a review by NCA, despite it being a critical influence on future stages of light rail planning, both for stage 2B to Woden and a future stage

running from Civic to Russell on the way to the airport.

The ACT government did not consider it important enough to put in a submission to NCA's review. It therefore fell to me and my office to submit to the NCA that the *Draft Revised Heritage Management Plan* contained problematic remarks about how "Anzac Parade could not have come to assume its current function and form with a rail line passing through it." This was new content which could prejudice plans for light rail in the future, even if the author's intention to describe the impacts of only heavy rail. It fell to me to make the case to the NCA that the Parliament House vista is not simply a museum piece dedicated solely to the memory of the Griffins; it is evolving, and a view from Parliament House should be able to fully show the history of Canberra's development, from the foundations of the Griffins to the ingenuity of the 21st century. I am hopeful that the final version of the plan will be better written. But it would have been nice if the ACT government had also put forward a useful view.

Timelines for the development of stage 2B also continue to slip. The budget papers show funding for the directorate's work on stage 2 pushed out by an additional year. We are now anticipating that construction will commence in 2030. I have no choice but to accept the reality of the situation we are in, but I will hold the government to account for any slippages against this timeline. I also look forward to seeing the early indicative route for stage 3 to Kippax as part of the planning strategy refresh. There are some key decisions that the government needs to make, particularly with regard to how it wants to see the Bruce precinct developed in a transport-orientated way.

I support this part of the budget because I would prefer to see some action over no action. But make no mistake: I am extremely disappointed about the government's lack of meaningful progress in getting light rail rolling. Canberra needs better for the sake of the sustainable development for this city over the next century—and I will not be shutting up about it.

MR PARTON (Brindabella—Leader of the Opposition) (5.01): Canberra needs an infrastructure program that keeps pace with population growth and delivers the schools, the hospitals, the roads, the sporting facilities and the community infrastructure that people use. Infrastructure Canberra has been given significant responsibility in planning, procuring and delivering the government's infrastructure program, managing government property, and providing project assurance. The test is not how many strategies or how many pipelines or glossy announcements the agency produces; the test is whether projects are delivered on time, within budget and to the standard that Canberrans have paid for.

After 25 years in government, ACT Labor cannot keep blaming unexpected circumstances for delays, cost increases and poor project planning. With the territory's debt heading into eye-watering territory, every infrastructure decision must demonstrate value for money. Every dollar lost through poor planning, procurement failures or cost overruns is a dollar that cannot be spent on frontline healthcare, on schools, on policing, on roads and on suburban services.

The Canberra Liberals support investment in infrastructure, but infrastructure must be driven by community need, not political priorities or announcement value. We need a transparent and properly prioritised infrastructure pipelines so that industry can plan,

invest and retain skilled workers. The projects should be supported by credible business cases, realistic costings and clear delivery timetables before the government makes those important public announcements. Project assurance must occur before problems become public scandals, not after costs have escalated or deadlines have been missed. The government must explain how Infrastructure Canberra differs in practice from Major Projects Canberra and what measurable improvements the restructure has delivered. To some extent, they are going through the process of doing that, but simply changing the name on the door does not improve infrastructure delivery one iota.

I think all members in this place, even those opposite, have begun to realise that there are a few clouds of doubt hanging over light rail to Woden. Mr Braddock spoke about the fact that it was always going to be the most difficult piece of this jigsaw puzzle. I do hope that it does not go down as another Tuggeranong ice rink. We have already blown past one deadline for the tram to Woden. I often mention that, prior to the election of 2020, Mr Barr promised that it would be in Woden by 2025. The government steadfastly hides behind cabinet-in-confidence instead of being upfront about timelines.

The government need to be open, honest and accountable with Canberrans when it comes to all large-scale infrastructure projects, not just the light rail to Woden. We have pushed for the government to provide quarterly updates on the progress of light rail stage 2A, including how it matches up to their original targets. We have pushed for the government to provide yearly updates on its contract with Canberra Metro for the operation of stage 1 and the future operation of stage 2A. Both of these recommendations have not been embraced.

The new northside hospital is another one of those carrots on a stick, as Mr Cocks has said. The government believe that every political problem they face, every minor inconvenience, every bump in the road, can be fixed by yet another capital announcement with no genuine delivery date. If you look at the budget papers, there is some serious capital expenditure for this project, but the deadline is ominously marked "TBD". Health care is important. In fact, it is too important for the government to keep kicking the can down the road and promising the electorate obfuscated delivery dates and shiny renders. This government needs to treat Canberrans with the honesty that they deserve and be upfront about the delivery date, because otherwise it is going to test an electorate which is already reaching a point where it is failing to believe promises that are being made.

If the budget paints a bleak picture, the final report of the Select Committee on the Fiscal Sustainability of the ACT sits next to it as a companion piece. The government has run out of money and now it is gutting the infrastructure pipeline in order to keep the lights on.

MS STEPHEN-SMITH (Kurrajong—Deputy Chief Minister, Minister for Education, Minister for Child Development and Wellbeing, Minister for Finance, Minister for the Public Service, and Minister for Health Infrastructure) (5.06): It is a pleasure to rise to speak about this part of the budget, both as the Minister for Health Infrastructure and the Minister for the Public Service, responsible among other things for Places and Spaces—formerly and probably more widely known as Property Group.

The 26-27 budget continues to invest in the infrastructure that supports Canberrans in

their everyday lives; infrastructure that keeps our communities connected, supports people's health and wellbeing, and ensures Canberra is ready for the future. Our population will soon exceed half a million people and is projected to reach more than 800,000 people by 2065. That means investing in major health infrastructure, but it also means looking after the community assets that people rely on every day. This budget continues our balanced approach to investing in major health infrastructure, community health services and the community facilities that support strong, connected communities, ensuring Canberrans can access the right care, services and spaces in the right place at the right time.

Our investments in community infrastructure help make Canberra a strong, connected and liveable city. At the heart of this investment is a simple principle: communities need places where people can meet, access services, participate in local life and build connections. ACT Labor understands this, and we always have.

In Woden, we are progressing the lease procurement for a new Woden Community Centre to provide an accessible and centrally-located home for Woden Community Service and flexible spaces for programs, meetings and community activities. As I have said before in hearings and in this place, when I came back into the portfolio with responsibility for what used to be Property Group I was keen to get an update on Woden Community Centre. When the design procurement could not progress due to value-for-money concerns, without a response within the available budget, I agreed that Infrastructure Canberra should consider alternative options. The outcome of this consideration is reflected in the 2026-27 budget as a pursuit of a leased option.

Mr Speaker, I do not think any of us were surprised when Ms Carrick raised concerns about this, but I have to say I am somewhat confused. Ms Carrick is at the same time arguing that ACT government activities should not be moving out of a leased space in the Cosmopolitan building, and also should not be moving into a leased facility to deliver the community centre she has been advocating on—and to deliver that in the quickest way. She is at once bemoaning the vacancies in commercial buildings in Woden, and saying the government should not be taking on a long-term lease that would activate an existing building in the Woden town centre for the use of the community and Woden Community Services.

Mr Speaker, I want to assure this place—Ms Carrick in particular, but others who have an interest—that, like the newly-opened Gungahlin Community Centre, while not purpose-built like that centre, this facility will be designed around the needs of the community it serves with accessibility, connection and local participation at its centre.

We know from much previous work what the fundamental space and amenity requirements are. Infrastructure Canberra has been engaging and will continue to engage with Woden community services. And when our procurement processes and probity processes allow, we will engage with the wider community about where we are at, and get their feedback.

Yet again, Ms Carrick is insisting that she should have some level of privileged access directly into a procurement process. We cannot do that, but we will continue to engage with the community, building on what we have previously heard. Because investing in community infrastructure is about being responsible custodians of the assets we have,

and responsible investors.

This budget also provides $1.18 million for critical strategic asset management across Infrastructure Canberra's portfolio, including updating the strategic asset management plan and undertaking building condition assessments to better understand where future investment is needed. These investments reflect the importance of planning for the long term, maintaining public assets properly and making informed decisions about where new investment is needed.

Of course, we are making new investment in community health centres. The ACT government continues to expand its network of local community health centres so people can receive care in the most appropriate setting, closer to home. Our government committed $36 million in 2025-26 to deliver the new inner south health centre. Construction is expected to commence in 2027, subject to environmental and planning approvals. Pre-DA consultation is currently underway.

I encourage community members to have their say on the preliminary designs for the site through this engagement, which is open via Your Say until 30 September. Our continuous engagement with the community ensures that health centres are shaped by, for and with the surrounding community.

Through this budget, we will see South Tuggeranong Health Centre open later this year, delivering paediatric care, pathology collection, diabetes clinics, falls and injury prevention, community nursing, multidisciplinary group exercise sessions and virtual care for the local community so fewer people have to travel onto an acute hospital campus to get the specialist consultation that they need.

Mr Speaker, of course, the centrepiece of the ACT government's health infrastructure agenda is the delivery of a new hospital for Canberra's north side. The total government commitment of nearly $1.5 billion over seven years is the largest infrastructure investment in health in the history of the territory, reflecting the government's determination to provide health infrastructure that will serve Canberrans for generations.

It is a carefully staged investment that balances the need for major health infrastructure with responsible financial management. The redevelopment of the North Canberra Hospital campus will replace ageing facilities originally built in 1979, and create a contemporary hospital environment designed around modern models of care.

The redevelopment will deliver a new seven-storey clinical services building containing more than 300 treatment spaces. This facility will become a cornerstone of the territory's health system and a major gateway for healthcare services across Canberra's north side. The new building will include more than 200 inpatient beds to expand medical and surgical services. It will feature a modern 14-bed intensive care unit, eight operating theatres with capacity to expand to 10 when required, and two endoscopy suites with provision for a third as demand grows.

The redevelopment will also deliver expanded maternity services including a new co-designed birth centre, featuring two birth suites as well as six new birthing suites on the maternity ward. And I again want to correct Ms Clay's ongoing misrepresentation

of the proposed delivery. A new birth centre with a separate entrance on the ground floor, separate outdoor space on a completely different level of the building—ground floor versus the fifth floor of a building; a different end of the building—is not the same as what we currently have. To access the birth centre suites at North Canberra Hospital, you have to go into the wider maternity department. It is not the same thing.

We are working through a co-design process, but I think Ms Cheyne put it very well this morning when she was talking about minority government. Similarly, co-design means collaboration not capitulation. This is not about a small group of people dictating to those who will work in the birth centre and everybody who will use it, exactly what we deliver. It is about everybody working together to design something within the practical constraints we face, that meets the needs of the midwives who will work there and the women and birthing people who will birth there. That is exactly what we are doing. It is exactly what we will continue to do. I recognise that Ms Clay has acknowledged some of the constraints that we face, and yet she continues to misrepresent what we are actually intending, and working to deliver.

I want to thank all of those who have been involved in the co-design process, to date. I recently met with Karel Williams, who is a very strong advocate and leading expert on birthing with country, to talk about the difference between model of care and physical facility. It was a very useful conversation which very much confirmed that the conversation about design is important, and the conversation about model of care is also important. And these two things should not be conflated in the way that they often are in this conversation, where "continuity" and "birth centre" are used interchangeably.

The maternity inpatient unit will be supported with a special-care nursery, and will provide families with modern facilities during some of life's most important moments. Of course, the hospital will also include a new state-of-the-art emergency department with 63 treatment spaces, which will significantly enhance emergency care capacity.

Dedicated short-stay units for adults and children will support more efficient patient flow and improve patient experiences. And there will be specifically designed supports for mental health presentations at the new north side hospital, which are currently a challenge at North Canberra Hospital.

Outpatient services will also be expanded, creating additional capacity for pre-admission clinics, specialised outpatient services and allied health care.

Mr Speaker, the benefits of this project extend beyond the hospital building itself. The budget also provides for important supporting infrastructure including upgrades to Haydon Drive intersections, the delivery of more than 700 additional car parking spaces, and a new 100-place early learning centre that will replace and expand the current facility and which is currently undergoing a development application process.

Importantly, the government is taking a carefully staged approach to delivery, ensuring continuity of care for patients, and a smooth transition to the future hospital environment. The extensive involvement of clinicians, consumer representatives and the community ensures the new hospital will reflect the needs and expectations of those who will use it every day, for generations and decades to come.

Mr Speaker, it is Labor that built Australia's public hospital system, and it is Labor that continues to strengthen it. It is both our legacy and our enduring purpose. But building a stronger Canberra is about more than constructing new infrastructure. It is about investing in the places and services that bring people together, supporting the organisations that serve our communities, and being responsible stewards of the public assets that we already have.

Whether it is a major hospital, a local health centre or a community facility, these investments are about ensuring Canberra has the infrastructure it needs to be strong, healthy and connected across our community—now and into the future. The budget puts people at the centre of our infrastructure investment, and ensures we continue to build, maintain and renew the places that make Canberra a great city to live. Thank you.

MS CARRICK (Murrumbidgee) (5.20): I just wanted to access my second 10 minutes to make a short statement. The minister did say that I was confused about moving out of the long-term lease in the Cosmopolitan building and not wanting to go into a lease, and I will just note what I just said in my statement around the community centre:

> The original commitment was centred on delivering a community facility for a growing region. We now appear to be moving towards a lease arrangement, with no public information about the size of the facility, the duration of the lease, the level of dedicated community space or its capacity to meet future demand. A lease facility may ultimately prove to be the best option; equally, it may not.

The issue is that the community has not seen the options analysis. We do not know what the assessment criteria is; or the long-term costs; the comparison between a leasing and owning. And I know you say that that is a procurement matter. The point is I am not anti long-term leases but I do like a government facility because, in most places, you do sort of get a government facility for life—I am not sure about around here—as opposed to a long-term lease where we are losing jobs out of the Cosmo building. We are losing the lease, so, assumedly, often a government-owned building is better. Thank you.

MR STEEL (Murrumbidgee—Treasurer, Minister for Planning and Sustainable Development, Minister for Heritage, and Minister for Sport and Recreation) (5.21): I am very pleased to speak about some of the sporting infrastructure that we are delivering with funding in the budget. Of course, the ACT government is continuing to invest in pools in the budget, as we undertake the development of a new aquatic strategy for Canberra.

Canberra's public pools support recreation, fitness, learn-to-swim programs, school activities and organised sport. In the last summer season, 780,000 patrons attended the seven territory-owned aquatic facilities, demonstrating strong demand for these facilities. In the 26-27 financial year, territory-owned pool subsidies will be $5 million; capital works of $4.685 million will be invested; and the Erindale Leisure Centre will receive, through the budget, $1.097 million—helping these facilities to remain safe and fit for purpose. This includes funding support for maintenance works in the main pool area, as well as investigating accessibility improvements for the pool hall area.

At Dickson, landscaping works have been underway, including replacement of gas barbeque units to electric, and funding for plant room roofing works. Works at Manuka

Pool will preserve the heritage-listed site, including repairs to the damaged roofing tiles, and repairs to the toddler pool area. Changerooms at Lakeside Leisure Centre will be upgraded, alongside landscaping of outdoor areas to improve outdoor recreational space, with half a million dollars identified to support these works. The Gungahlin Leisure Centre changerooms will be upgraded, domestic hot water systems will be replaced, and new barbeques will be installed at Stromlo Leisure Centre.

Pools are important community assets. We are committed to continuing to ensure these important public spaces can be enjoyed. Across the territory, we are seeing great participation in sport, which continues to grow—as does increased demand on our local sporting grounds, courts, pools and community facilities.

The budget funds upgrades including lighting at Stirling and Hughes ovals, stands at Phillip oval, cricket facilities at Holt and new amenities at Mawson. The budget invests in sporting infrastructure that local clubs and communities rely on every day.

One of those growing sports is basketball. Basketball has around 19,000 participants, and that is why this budget continues the ACT government's investment in basketball through a $37.5 million commitment of funding in the expansion of the Belconnen basketball stadium. This project will deliver three additional courts including a flexible show court with retractable seating for up to 1,800 spectators, and building amenities that will support both community participation and future growth. It is being delivered in partnership with Basketball ACT, and will provide much needed capacity and ensure that Canberrans can participate in sport.

The budget strengthens support for women's sport as well—which is very good—as well as local sporting facilities in my electorate of Murrumbidgee, with continued work at the Stromlo district playing fields which is continuing to progress through the planning process and which will provide important sporting and community infrastructure for the Molonglo region.

We are planning future upgrades in Gungahlin and Tuggeranong, including design and feasibility work for pavilion upgrades at key AFL facilities in Amaroo and Kambah.

Of course, we continue to invest directly in sport as well, and I will talk to that later on in the budget debate.

In relation to our transport infrastructure, with the investment of light rail we are continuing to invest, in the budget, in the continued work on both light rail stage 2A and stage 2B.

Sometimes I think the opposition just are not doing their due diligence and maybe not even going to the Built for CBR website to have a look at the project timeline. I have regularly provided updates on the stage 2A project and where stage 2B is up to, and I will continue to do that. I am very happy to do that, though there is a project timeline on the Built for CBR website to have a look at, both for stage 2A and stage 2B.

Stage 2A is on track. We had a very good run very early this year in speeding up construction with a construction blitz that occurred during the quieter holiday period, and that has resulted in work progressing at pace. Tracks have been laid. We are seeing

the construction of the new light rail stations, with the shelters that have gone up. We are seeing the paving that has gone on, on London Circuit, and the planting of new trees as part of the project—which is fantastic—including new Himalayan cedars, using the seed stock from the cedars near Albert Hall. So, it is really taking shape and is getting very close to completion, which is expected next year—ahead of testing commissioning occurring—with passengers expected to be able to start using the service in 2028. So, we are very pleased with that.

We are continuing to work on stage 2B, with the EIS that has been submitted to the commonwealth. I am looking forward to providing an update on that when I can at a future sitting, and I look forward to continuing to keep the community updated on the project.

The only cloud that is in the air over light rail stage 2 is the Canberra Liberals who have never been committed to the project—do not want to see it happen—but then come in here and express concern about the delivery timeframes which we have always been upfront about. We are continuing to progress the project which is critical for Canberra's future. We are a government that invests in infrastructure. They are an opposition that wants to tear up infrastructure and not build it for the community.

We really support transport infrastructure. We have seen the benefits that it has provided, on stage 1. We are consulting the community as part of stage 2 on the broader land-use benefits and connections to light rail as part of the Southern Gateway planning and design framework. I commend this section of the budget to the Assembly.

MR BARR (Kurrajong—Chief Minister, Minister for Trade, Investment and the Knowledge Economy, Minister for Tourism and Events, and Minister for Major Projects) (5.27): I thank colleagues for their contribution in this area of the budget. I think there is a consensus that the city is growing and that the budget needs to continue to invest in infrastructure that shapes our city's future.

It is clear that that investment needs to be guided by a consistent long-term plan, so I point back to the Infrastructure Plan that was released in 2011 that established a framework for city building over the decade to 2021; the 2019 Infrastructure Plan Update that built on that foundation; and the 2024 Infrastructure Plan Update that took the next step, identifying the infrastructure that Canberra will need to support a larger population of over half a million people, a stronger economy and a more connected city.

It is the Infrastructure Plan that sets the direction; it is updated every five years or so. The fiscal strategy provides the framework to invest responsibly and sustainably, and each annual budget delivers a next stage of that plan. Together, this ensures infrastructure investments strengthen Canberra's prosperity, lift productivity and maintain the quality of life that makes our city, according to Oxford Economics, the best city in the world for quality of life.

As we have heard, one of the most significant projects under way is the northside hospital project. It is the largest health infrastructure investment ever undertaken by a territory government, and the Deputy Chief Minister outlined the detail, so I will not repeat that. Alongside the hospital project, we are investing in community health infrastructure across Canberra, bringing services closer to where people live and

ensuring our healthcare system grows with our city's population.

Other speakers have touched on the priority that housing has, and it is a major priority. A growing city needs more homes, and this budget continues our commitment to increasing supply. The new Public Housing Pipeline program is backed by a $364 million investment to build and acquire an additional 450 public housing homes. We are also investing more than $180 million in repairs, maintenance and upgrades to existing public housing. Together, these investments increase affordable housing supply, improve quality and strengthen communities across Canberra.

Education infrastructure also remains central to our long-term vision for the city. Students are already learning at Canberra's newest public primary school in Strathnairn. Construction continues on the new school in Whitlam. Work is underway on a second college for Gungahlin. And upgrades are progressing across established schools in our suburbs. These investments are designed to ensure our education system grows alongside our population and provides modern learning environments.

Transport infrastructure is equally important to Canberra's future, and as our city grows, strong transport connections will support productivity, housing growth and economic opportunity. As members would be aware, the new Woden interchange is now operational and ready to support future light rail expansion. The Molonglo River Bridge continues to take shape and will unlock future housing and development opportunities across one of our city's fastest growing regions. Upgrades to the Monaro Highway, William Hovell Drive and Athllon Drive are improving safety, increasing capacity alongside new housing estates and supporting hundreds of local jobs. Together, these projects are helping to create a city that moves more efficiently and supporting growth across all districts in the ACT.

Infrastructure is, of course, at the heart of Canberra's economic success. It is expanding healthcare capacity, increasing housing supply, strengthening education, improving productivity, attracting investment and creating jobs. This comes back to the fundamental point about why long-term infrastructure planning matters. The Infrastructure Plans of 2011, 2019 and 2024 identified the investments Canberra needed back then—15 years ago—and the investments Canberra will continue to need as our city grows and evolves over the coming decades. They are, of course, deliberately long-term documents. They establish a pipeline of projects and priorities that are delivered progressively as the city develops and resources become available.

The fiscal strategy ensures those investments are delivered responsibly, balancing the need for infrastructure today with the financial capacity to invest over the long term, and each annual territory budget determines the next stage of delivery against those long-term plans. This budget delivers the next tranche of city-building investments, from health infrastructure to public housing, schools and transport: projects that extend and expand our city's capacity in areas where they are most needed; projects that support economic growth and ensure that we are well-positioned for the opportunities ahead. It is that steady, disciplined and forward-looking approach to infrastructure planning that has served Canberra well and will continue to guide decisions into the future.

Mr Speaker, before I conclude, I want to respond to what is an important and underlying

issue, and that is the reality that is sitting behind many of the infrastructure decisions that are currently before government and those that, in time, will come before this Assembly. It is a pretty fundamental point that I think has been just briefly touched upon but perhaps not properly reinforced in this debate. COVID changed the economics of construction in Australia. Before the pandemic, construction costs were relatively predictable. Governments could develop long-term infrastructure programs with a reasonable degree of confidence about what projects would cost and when they could be delivered.

Then COVID happened. Global supply chains were disrupted. Many building materials became much harder to source. Labour shortages emerged across the economy. Think about it: our country was closed for two years. There were half a million people who would otherwise have arrived in Australia who did not, whilst our country was closed. That led to significant labour supply shortages. At the same time, as a result of stimulus policies that were necessary during that period, demand for construction increased sharply. Economics tells you that the result was significant increases in construction costs. Projects that had been carefully planned and costed before the pandemic became much more expensive and much more challenging to deliver.

I think what is lost in all of this is that it was not a temporary spike. What has become clear over recent years is that the cost base for construction has now fundamentally and permanently shifted. For the ACT, that is a reality that matters. We are a growing city—yes—but we are also, in the context of the world and even in the context of Australia, a small jurisdiction. We obviously do not have unlimited construction capacity across all of the inputs that go into an infrastructure program. We operate within the same constrained construction market as every other state and territory in this country. So, when the cost of delivering a school, a hospital, a housing development, a road, a light rail project, or any other form of public transport, increases substantially, of course there are consequences. Every additional dollar spent on one project is, obviously, a dollar that cannot be spent elsewhere.

At the same time, it is fair to note that interest rates that were extraordinarily low during the pandemic have now normalised. That normalisation means operating in a world where capital has a more conventional cost—back, really, to its long-run average. So, we are operating in a different environment. Construction costs are permanently higher. The cost of capital is higher now than it was during the pandemic, and that, of course, means choices must be made, and they were made in this budget.

If a project costs an additional $50 million, that money has to come from somewhere. It may mean another project is delayed. It may mean a project is instead delivered in stages. It may mean a different sequencing of investments. It may mean—and often does—that fewer projects can be delivered in the near term. And it sometimes means that more resources need to be directed towards maintaining or renewing existing infrastructure for deliverability reasons. These are the trade-offs the government must navigate.

They are not abstract choices. They are real decisions about priorities, timing, and allocation of resources. Sometimes that means proceeding immediately with projects that address urgent needs. Sometimes it means staging some projects over a longer period. Sometimes—and this is increasingly the case in our crowded and competitive

infrastructure market—it means waiting for more favourable conditions in a particular infrastructure asset class before commencing a procurement process. We get good information on market conditions. This is essential to make those judgements. We engage regularly with the Australian infrastructure sector; for example, we were present at the annual Infrastructure Partnerships Australia conference only a few weeks ago in Sydney.

Mr Speaker, having made all of these observations, I want to confirm this: the government will continue to invest in the infrastructure our growing city requires. We will continue to invest in housing. We will continue to invest in health. We will continue to invest in education, transport and community infrastructure. But we do so with a clear understanding of the economic realities that shape our construction sector. COVID did not simply disrupt construction in Canberra; it fundamentally changed what infrastructure costs to build in this country. Being honest about that reality is essential if we are to make good decisions about future infrastructure in our city. I commend the Infrastructure Canberra budget to the Assembly.

Proposed expenditure agreed to.

City and Environment Directorate—Part 1.4

Debate (on motion by **Ms Cheyne**) adjourned to the next sitting.

Personal explanation

MR COCKS (Murrumbidgee) (5.40): Mr Speaker, I seek leave to make a statement under standing order 46.

MR SPEAKER: Proceed, Mr Cocks.

MR COCKS: The Minister for City and Government Services made some observations about my contributions to debates earlier in the day. The minister and I have since had a discussion and, while we disagree on some matters of interpretation, I wish to put beyond doubt, as I was seeking to this morning, that the Canberra Liberals support and remain committed to both the legislative framework allowing the use of seatbelt cameras and Vision Zero for road safety.

Statements by members

Community sector organisations—OzHarvest

MR CAIN (Ginninderra) (5.41): Several weeks ago—given we have not sat for a while—I had the pleasure of meeting with Christine Scott, who is the ACT Engagement and Culture Lead for OzHarvest. I was delighted to have her in my office and to learn more about the work of OzHarvest, because it is much more than a food rescue organisation. Every day its dedicated staff and volunteers work to ensure that quality food, which would otherwise go to waste, is redirected to people who need it most.

Since beginning operations in Canberra in 2008, OzHarvest has become a vital part of our community support network. In the ACT alone, OzHarvest works with more than 100 food donors and supports 65 charities and community organisations, delivering

food relief to vulnerable Canberrans across our region. Their Canberra team rescues thousands of kilograms of surplus food each week, providing tens of thousands of meals to those facing hardship.

What impressed me most during my meeting was not only the scale of their work but the commitment of the people behind it. OzHarvest is driven by a simple but powerful belief that good food should not go to waste, when people in our community are going hungry. Their work also extends beyond food rescue; through education programs such as NEST and FEAST, OzHarvest is helping people develop healthy eating habits, cooking skills and a greater understanding of food sustainability. Thank you OzHarvest for your work.

Correction to the record

MR BRADDOCK (Yerrabi) (5.42): I wish to correct the record for a comment I made on 10 September 2026 during the Standing Committee on the Integrity Commission and Statutory Office Holders public hearing, as part of its Inquiry into the Electoral (Gambling Industry) Amendment Bill 2026.

During the hearing, I referred to a 2023 bill I had moved to ban political donations from gambling entities. In fact, it was amendments that I moved to the government's Electoral and Road Safety Legislation Amendment Bill 2023 that, amongst other things, sought to include foreign entities, defence entities, fossil fuel entities and nicotine entities into the definition of the prohibited entities. The error was inadvertent, and I apologise.

Discussion concluded.

Adjournment

Motion (by **Ms Cheyne**) proposed:

> That the Assembly do now adjourn.

Mr Shane Vincent—tribute

MR PETTERSSON (Yerrabi—Minister for Business and Industry, Minister for Arts, Creative Industries and the Night-Time Economy, Minister for Children, Youth and Families, Minister for Multicultural Affairs, and Minister for Skills, Training and Industrial Relations) (5.43): I rise today to acknowledge with deep sadness the passing of Shane Vincent. Shane was a remarkable Canberran: a dedicated mental health advocate and proud ambassador for vocational education and training. Shane was an exceptional individual: a champion of diversity and inclusion, known for his tenacity, his kindness and his leadership. Shane was unwavering in his commitment to improving the lives of vulnerable Canberrans.

After initially considering a university degree in psychology, Shane chose to pursue a vocational pathway, completing a Certificate IV in Mental Health. Through this qualification, he gained practical skills and hands-on experience in communication, support and inclusive practice, giving him the skills and knowledge to positively impact

the lives of people in his community.

What makes Shane's achievement even more remarkable is that during his studies he faced significant health challenges. Despite these obstacles, Shane was able to navigate and advocate for his own care, drawing on the skills and self-awareness fostered by his studies. Maintaining emotional resilience during this time allowed him to remain engaged with his training and ultimately complete it.

In 2025, Shane won Vocational Student of the Year at the ACT Training Awards. His exceptional performance, commitment and dedication to his studies made him a deserving candidate to represent the ACT at the Australian Training Awards, where he was awarded runner-up for Australian Vocational Student of the Year, a massive accomplishment in an extremely competitive and prestigious national category.

Shane described winning the award as "life-changing". He said that beyond the accolades it was the humans he met along the way that made it unforgettable; their dedication, diverse stories and shared passion for excellence stayed with him.

Having completed his certificate, Shane worked as Volunteer and Inclusion Manager with VolunteeringACT. In this role, Shane strived to make workplaces more accessible and inclusive for people with disabilities and mental health conditions. He championed an inclusive approach for everyone, regardless of ability, age, gender, sexuality and culture.

On behalf of the ACT government, the Assembly and the broader ACT community, I extend our sincere condolences to Shane's family: to his mother Meg and his sister Sarah, who are here with us in the gallery this evening, as well as his partner Eleni and his father David; and to all of his friends and colleagues and all those who had the privilege of working with him.

Shane will be remembered as an empathetic, dedicated and passionate leader, who worked tirelessly to advocate for and help so many Canberrans struggling with issues associated with mental health and inclusion.

Vale Shane Vincent, you will be greatly missed.

Children and young people—youth crime

MR CAIN (Ginninderra) (5.47): I am going to read a speech, provided to me by a work experience student I had several weeks ago: Myrah Dalal, a year 10 student from Canberra Grammar. It was a delight to have Myrah in my office. As I offer to all my work experience students, this is her speech:

> A better approach to youth crime.
>
> Good afternoon, everyone. Today I stand before you to present a speech written by a student who had the opportunity to complete work experience here in mid-June. It is both a privilege and a responsibility to share a message that is not only relevant, but necessary.
>
> Youth crime is a serious issue that affects both individuals and the wider

community. However, the way we deal with it is not always effective. Too often we rely on extreme approaches: either harsh judgement, like jail, or simply releasing youth offenders back into society without enough support.

The problem is that neither of these solutions truly address the root of the issue. As a year 10 student here in the ACT, this issue is not distant. It is a real day-to-day issue. Every day in school environments, it is common to see or hear about things like vaping, alcohol and even drugs among students.

For many young people these behaviours are normalised, and it becomes part of the environment they grow up in. While not everyone becomes an offender, these influences can easily lead some students down the wrong path. This shows that youth crime does not just suddenly happen; it often starts with the environments and pressures young people are exposed to every day.

Jail, especially for young people, can often do more harm than good. While it is meant to act as a punishment and a deterrent, in reality it can expose young offenders to more experienced criminals and negative environments. Instead of learning from their mistakes, they may pick up new harmful behaviours. What was supposed to correct them can actually reinforce their criminal mindset. In many cases, young people leave jail worse than when they entered.

On the other hand, simply releasing young offenders without proper support is also ineffective. Many of these individuals return to the same environments that led them into trouble in the first place. They face the same peer pressure, the same lack of opportunities and the same challenges. Without guidance or direction, it is not surprising that they repeat the same behaviour.

This creates a cycle of reoffending that continues to harm both the individual and the community. Even rehabilitation programs, while helpful, do not always solve the problem. Some individuals go through rehab and still reoffend, because the programs may not provide long-term support or real-life opportunities. They might receive temporary guidance, but once the program ends, they may feel lost again. This shows they need a more balanced and effective solution, one that goes beyond punishment and basic support.

This is where a new approach becomes important, combining restorative justice with skill-based community programs. Restorative justice focuses on accountability in a meaningful and personal way. Instead of simply punishing young offenders, it encourages them to understand the true impact of their actions. They may meet with victims or members of the community and hear firsthand how their behaviour has affected others. This can be a powerful experience. It builds empathy, responsibility and awareness, things that punishment alone cannot achieve. When young people truly understand the consequences of their actions, they are more likely to change their behaviour. They are not just afraid of getting caught; they begin to care about the impact they have on others.

However, accountability alone is not enough. Young people also need direction and opportunity. This is why skill-based community programs are just as important. These programs give young offenders the chance to learn practical skills that can help them build a better future. This might include learning a trade, gaining work experience, participating in apprenticeships or developing job-ready skills. Instead of being defined by their mistakes, they are given a chance to grow and succeed. In addition, many of these programs involve giving back to the community, such as improving public spaces or helping local organisations. This

helps repair harm while also creating a sense of purpose and belonging. *(Extension of time granted.)*

Importantly, this approach is especially effective for repeat offenders. Many repeat offenders become stuck in a cycle where punishment and release do not lead to real change. Jail can expose them to worse influences, while release can, without support, send them back into the same situations. This combined approach helps break that cycle by addressing the reasons they continue to offend. It provides accountability but also gives them real opportunities and a clear path forward, making it more likely that they will change their behaviour long-term.

This combination of restorative justice and skill-building is what makes this approach so effective, because it benefits both the individual and the community at the same time. For the individual, it provides a real second chance. It helps them understand their actions, develop responsibility and gain the skills they need to move forward. Instead of being labelled as a criminal, they begin to see themselves as capable and valuable members of society. This shift in identity is incredibly important because it changes the way they see themselves and their future.

For the community, the benefits are just as significant. This approach helps reduce repeat offending, which leads to safer neighbourhoods. It also helps repair the damage caused by crime and strengthens relationships between young people and the community. Instead of creating division and fear, it builds connection and trust. Most importantly, it breaks the cycle of crime. If we continue to rely only on punishment, like jail, or simply releasing individuals without proper support, we will continue to see the same problems. But if we focus on solutions that combine accountability, support and opportunity, we can see real and lasting change.

In conclusion, youth crime cannot be solved through extreme measures alone. Jail is often too harsh and can make things worse, while releasing offenders without support allows the problem to continue. Even traditional rehabilitation programs may not always be enough. A better solution is to combine restorative justice with skill-based community programs. This approach helps young people understand their actions, take responsibility and build a future, while also making communities safer and stronger. By focusing on both accountability and opportunity, we can move from simply reacting to youth crime to actually preventing it.

So says Myrah Dalal. Thank you.

Waste—plastic packaging

MS CLAY (Ginninderra) (5.54): I was devastated to see last week that federal Labor has quietly shelved its promise to implement national packaging standards aimed at curbing plastic waste—devastated and angry. The Labor government has previously and repeatedly committed to reforming Australia's packaging system through an extended producer responsibility scheme that would make producers responsible for the end-of-life impacts of the packaging they put into the market. This is the very best way to deal with the problem. We should make industry design packaging that we can easily recycle, and we should make industry pay for that recycling and pay for the environmental costs if they are not doing that properly. It is the best way to deal with the problem. This legislation has been expected for well over a decade. Last week federal Labor walked back the commitment.

Australia's voluntary approach here has comprehensively failed. Australia had targets to deliver 100 per cent reusable, recyclable or compostable packaging and 70 per cent plastic packaging recycling by 2025. Instead, we have reached 86 per cent and 20 per cent respectively. We said that, by last year we would be recovering 70 per cent of our plastic packaging. We are only recovering 20 per cent, because the federal government will not bring in the regulation.

I have been locked in a battle with ACT Labor on this issue for years. Every time I ask ACT Labor if that new recycling facility they are building for us will recycle all of the plastic packaging that comes out of our supermarket, Labor says no. Then I say, "Well, what will you do with it?" and they respond, "Don't worry; national federal product stewardship will deal with that for us. It is a better solution. The federal government will bring in regulation and make industry pay to design it out in the first place and pay for it if they do not." I had agreed that that was a better solution. I got impatient waiting. Guess what? Federal Labor has now abandoned that approach altogether. So it is no longer possible to say, "Don't worry about our local facility; the federal government will save us." The federal government has just said it will not do this.

Industry want this mandatory federal packaging scheme. Industry stood up with the Greens at Parliament House. They are desperate for regulation. The regulation means that the players who are doing the right thing are not effectively punished competitively for doing the right thing. All of the big brands are lining up, asking the federal government to bring in this nationally-unified regulatory scheme. It is the best way to do it. They are really worried that the states are going to pick off all these different little solutions, because we will get so desperate because the feds are not leading. The federal government has abandoned the industry on this. It is absolutely extraordinary.

The people of Australia want this national federal packaging regulation. Eighty-five per cent of Australians are worried about plastic pollution. Think of any other issue in Australia where you can get 85 per cent of Australians to all agree that that is a problem. That is what is going on here.

Over 80 countries worldwide have already successfully implemented schemes like this. The schemes exist and they work. They are well and truly in train everywhere else and they work. All that is missing is political will. We have industry on board. We have the people of Australia who want to do it. It will not cost the people of Australia or government any money, because all they are doing is changing the rules—and industry actually want them to do this—and then industry will deliver no more packaging waste. That is what this scheme has been promising and that is what the federal government has just walked away from.

Without this, plastic waste is going to continue to pollute our environment. It is going to threaten our public health. It is going to drive up the costs for local government and households here in the ACT. We are going to pay for all of that damage and we are going to have to pick up the bill. Everyday Australians should not be left to bear the financial and environmental burden of this. Over 80 other countries have fixed this problem for their people, but ours refuses to.

Environment ministers must now act to move Australia towards this. Plastic waste is

clogging our environment and our landfills. It is turning up in our bodies. It is causing health problems in our physical bodies. Labor, ACT and federal: you cannot keep pretending that this is a problem that does not need fixing. You cannot keep pretending that a patchwork of separate regulations is a good idea. Please do what you said you would do.

Question resolved in the affirmative.

The Assembly adjourned at 6 pm until 22 September 2026 at 10 am.

Questions without notice taken on notice

Bushfires—community fire units

Dr Paterson *(in reply to a question and a supplementary question by Ms Castley on Tuesday, 15 September 2026)*:

In the Government Response to the Inquiry on into the Environment's Bushfire Preparedness, the Government noted the recommendation in relation to Community Fire Units (CFUs). The Government Response advised that while CFUs provide a practical way to manage bushfire risk in older suburbs, broadly speaking the risk profile of new suburbs has been altered due to the adoption of bushfire standards in planning, design, and construction. This altered, lower risk profile results in a decreased need for CFU's to offer protection, as new suburbs and homes become more "self-protecting" when compared to older suburbs.

Over the past 20 years, the protection of the urban environment from bushfires has become an important criterion in the planning and design of new suburbs. In conjunction with improvements in construction specifications and materials, the modern built environment has seen an overall improvement in its level of bushfire resilience when compared to older designed suburbs.

The need for CFU's to bridge any perceived gap in bushfire protection has also significantly reduced due to improvements in suburb and building design.

ACT Fire & Rescue is, therefore, focusing its future recruitment strategy on supporting existing CFU units in older suburbs to obtain/maintain an optimal membership level of 12 members per unit.

Government procurement—conduct in procurement—Campbell Primary School

Ms Stephen-Smith *(in reply to a question by Ms Lee and a supplementary question by Mrs Morris on Wednesday, 16 September 2026)*:

On Tuesday 15 September, I confirmed in response to Mr Parton's question there were employees in the Education Directorate named in the Kingfisher report, who resigned post release of the Report.

Due to privacy and confidentiality concerns, I will not go into the matters of individual public servants that may identify the staff.

However, I can advise that no staff member who resigned after the release of the Operation Kingfisher Report received a separation payment or financial settlement beyond their ordinary entitlements.

Ms Stephen-Smith *(in reply to a question and supplementary questions by Ms Lee and Mr Cain on Wednesday, 16 September 2026)*:

I met with the Director-General, Education Directorate on Thursday 30 July 2026. At this meeting the Director-General assured me that the Education Directorate was

working with the Head of Service to undertake further actions required in relation to staff adversely named in the Operation Kingfisher Report.

Regarding staff adversely named in the report I understood that some immediate actions were necessarily taken in accordance with employment obligations. However, it is not appropriate for me to make further comments in relation to individual public servants who may be subject to ongoing or unresolved processes.

Hospitals—perinatal mental health

Dr Paterson *(in reply to a question by Mr Parton on Wednesday, 16 September 2026)*:

While planning progresses for a dedicated parent-infant mental health unit in the ACT, Canberra Health Services continues to develop care arrangements based on individual circumstances, with a focus on maintaining parent-infant attachment and supporting the clinical, developmental and safety needs of both the parent and baby.

Care arrangements may include an admission to an acute adult mental health inpatient unit without their baby, a short-term admission to a general hospital or postnatal ward where clinically appropriate, or a referral to a dedicated Parent Infant Unit interstate where indicated.

Transport Canberra—advertising on buses and bus shelters

Ms Cheyne *(in reply to a question by Ms Vassarotti and a supplementary question by Mr Braddock on Wednesday, 16 September 2026)*:

1. As stated in the most recent response, City and Environment Directorate (CED) officials will continue to liaise with OohMedia to ensure they comply with their contractual obligations and operational arrangements for the remainder of their contract.

2. In the rare occasion that junk food advertisements are placed incorrectly near schools, CED officials reach out to OohMedia to have them removed as soon as possible.

3. The contract with OohMedia is a zero-revenue contract. OohMedia provides a service to CED which includes the cleaning, maintenance and repair of over 250 bus shelters.

ACT Ambulance Service—staffing

Dr Paterson *(in reply to a supplementary question by Ms Vassarotti on Thursday, 17 September 2026)*:

The last internal Intensive Care Paramedic (ICP) course was run between February 2024 to January 2025. Upon completion of the course, newly trained ICPs receive their authority to practice.

The ACT Ambulance Service is aiming to offer an ICP course in the first half of 2027.

Canberra Hospital—food services

Dr Paterson *(in reply to a question by Mr Parton on Thursday, 17 September 2026)*:

No decision has been made to implement an on-demand room service model across Canberra Hospital. The ACT Government is examining the Canberra Health Services food service model in the context of the planned insourcing of North Canberra Hospital food services in August 2027. Consideration of a room service model will form part of this work.

The ACT Government undertook a pilot of the model on which $662,239.70 was expended. Almost $400,000 of this expenditure was on equipment and software which is being utilised regardless of whether a room-service model is implemented. Deployment of some of the equipment will also be considered as part of broader food services planning associated with insourcing at North Canberra Hospital.

The ACT Government has not committed to rolling out an on-demand room service model across Canberra Hospital.

Children and young people with disability—foundational supports and thriving kids

Ms Orr *(in reply to a question and a supplementary question by Mr Cain on Thursday, 17 September 2026)*:

Prior to the external advertisement of the Thriving Kids Implementation Officer position, the functions associated with the role were being undertaken by existing HCSD officers. This work included service design, leading implementation planning, developing service pathways and operational processes, supporting workforce engagement activities, and coordinating phased implementation arrangements.

As planning progressed and the program moved towards implementation and service delivery, the need for a dedicated Implementation Officer was identified. To support this transition, an Implementation Officer position was established. On 31 August 2026, an officer was temporarily appointed to the role pending completion of the external recruitment process.

Ms Orr *(in reply to a supplementary question by Mr Milligan on Thursday, 17 September 2026)*:

Prior to the external advertisement of the Thriving Kids Implementation Officer position, the functions associated with the role were being undertaken by existing HCSD officers. This work included service design, leading implementation planning, developing service pathways and operational processes, supporting workforce engagement activities, and coordinating phased implementation arrangements.

As planning progressed and the program moved towards implementation and service delivery, the need for a dedicated Implementation Officer was identified. To support this transition, an Implementation Officer position was established. On 31 August 2026, an officer was temporarily appointed to the role pending completion of the external recruitment process.

Early childhood education and care services—Edge Early Learning closures

Ms Stephen-Smith *(in reply to a question by Miss Nuttall and a supplementary question by Ms Clay on Thursday, 17 September 2026)*:

The National Law requires the Approved Provider (in this case Edge, or subsequently the administrator) to provide timely and accurate advice to families about any closure. This should include directing families to the Starting Blocks website where information about alternative services, vacancies, quality and compliance information can be easily found.

CECA does not have access to the contact details of families enrolled at ECEC services and CECA did not receive any phone calls from families experiencing difficulty finding another service for their children. The administrators reported that they had not received any calls from families seeking assistance and occupancy information provided by the Australian Government also indicated a high number of available places for children in services near the former Edge Charnwood and Higgins services, indicating that families did not require additional support to access an alternative ECEC.

While a hotline was established previously, the Education Directorate was only able to direct families to StartingBlocks which was already part of the communications to families in the case of Edge Early Learning. The previous hotline also received calls for support from Educators primarily related to not receiving wages or advice on entitlements from their employer. This was not the case for Edge Early Learning.

Edge Early Learning's administrators wrote to all impacted staff confirming their redundancy, together with an overview of the process and responses to frequently asked questions. This included information on final pay, employee entitlements and next steps. Former employees continue to have access to Sonder, the employee wellbeing platform, to provide support and counselling services during the transition period.

The administrators also engaged the Workforce Transition Support Team (WTST) in the Australian Government's Department of Employment and Workplace Relations. The WTST assists staff to secure alternative employment opportunities. A search of commonly used recruitment sites indicates a high number of employment opportunities for qualified ECEC staff in the ACT with high-quality providers. This aligns with known workforce demands in the ECEC sector.

Housing ACT—vacant properties

Ms Orr *(in reply to a question by Mr Cain on Thursday, 17 September 2026)*:

The increase in the average vacancy period reflects a number of factors, including the nature, timing and complexity of repairs and maintenance. These can range from minor routine works through to substantial repairs, upgrades and other remediation, including works that are subject to insurance processes. The average vacancy period also reflects that within the total pool of vacant properties there are some properties that are in low demand from prospective tenants, which can prolong vacancy and affect the overall average.

Once a property has been returned to a lettable standard, Housing ACT must identify a household for whom the property suitable. Allocation is not simply a matter of matching the next vacant property with the next applicant on the Housing Register. Housing ACT must consider factors such as household size, accessibility requirements, support needs, safety considerations and connections to family, community and services. Not every vacant property will be suitable for every applicant, and in some cases a property may take longer to allocate because there are fewer households on the Register whose needs and circumstances are suited to that particular property.

It is also important to note that the pool of properties available for allocation changes on an ongoing basis and is not necessarily the same from one month to the next. Property availability and property acceptance is dependent on the suitability of available stock for applicants on the Housing Register. Consequently, the number and type of properties available for allocation can vary significantly over time.

Ms Orr *(in reply to a question and a supplementary question by Ms Barry on Thursday, 17 September 2026)*:

The numbers being referred to in Ms Barry's question relate specifically to the number of vacant properties available for allocation, which increased from 99 on 31 March 2026 to 188 on 30 June 2026.

Over the same period, the number of properties in the repairs and maintenance pathway decreased from 358 to 285. The increase in vacant properties available for allocation therefore reflects properties that have had the necessary repairs and maintenance completed to return them to a lettable standard during this period.